

Message 1 of 176

RE: IMPORTANT: CAEM Board of Directors Meeting, September 12, 2001

Sender	d..steffes@enron.com
Recipients	['j..noske@enron.com']
File	steffes-j/sent_items/666.

The Offsite is more imporant. Please call Lysa Akin to confirm the date.

Jim

-----Original Message-----

From: Noske, Linda J. Sent: Monday, August 13, 2001 4:42 PM To: Steffes, James D. Subject: RE: IMPORTANT: CAEM Board of Directors Meeting, September 12, 2001

No, however, I noticed this is the same day they rescheduled the Government Affairs Offsite in Portland.

-----Original Message-----

From: Steffes, James D. Sent: Sunday, August 12, 2001 7:16 PM To: Noske, Linda J. Subject: FW: IMPORTANT: CAEM Board of Directors Meeting, September 12, 2001

Am I scheduled to attend?

Jim

-----Original Message-----

From: Hope Duncan [mailto:hduncan@caem.org] Sent: Thursday, July 12, 2001 6:27 PM To: jmangold@caem.org Subject: IMPORTANT: CAEM Board of Directors Meeting, September 12, 2001

Subject: CAEM Board of Directors Meeting

The next meeting of the CAEM Board of Directors will be held on Wednesday, September 12, at the Grand Hyatt Hotel in Washington, DC.

The meeting is being held in conjunction with the third meeting of our DISCO of the Future Forum. (Please visit our newly updated website www.caem.org for more information on the DISCO Forum.) Following the Board meeting on Wednesday, you are invited to join with members of the DISCO Forum for a Wednesday evening reception and dinner, including a guest speaker. Board members are also invited to join in the substantive session of the DISCO Forum on Thursday, September 13.

Because of an international medical convention ongoing in Washington at the same time as our meetings, the Grand Hyatt unfortunately is already booked. However, we have reserved a block of rooms at the nearby Wyndham Hotel. To reserve one of these rooms, you must inform the Wyndham staff that you are part of the CAEM group. If you should decide to arrange lodging at a different hotel, please do so quickly as there is limited availability in all surrounding hotels. We will be making the Wyndham rooms available to members of the DISCO Forum on July 20.

If you have any questions or require any assistance at all, please contact Hope Duncan at 202.739.0134 or Jeff Mangold at 703.729.2710. We are looking forward to seeing you on September 12.

Hotel Information:

Grand Hyatt Hotel 1000 H Street NW Washington DC 20001 Phone: 202.582.1234 or 1.800.233.1234 Fax: 202.637.4781 Website: <http://washington.hyatt.com/wasgh/index.html>

Wyndham Washington DC 1400 M Street NW Washington, DC 20005 Phone: 202.429.1700 or 1.877.999.3223 Fax: 202.785.0786 Website: http://www.wyndham.com/Washington_DC/default.cfm

Message 2 of 176

RE: September Meeting - - RSVP Requested

Sender	d..steffes@enron.com
Recipients	['hduncan@caem.org', 'j..noske@enron.com']
File	steffes-j/sent_items/77.

Hope --

I will be attending the Board Meeting. Sorry I am so late. Linda Noske will be finalizing my plans.

Thanks,

Jim

-----Original Message-----

From: "Hope Duncan" <distribution@caem.org>@ENRON
[mailto:IMCEANOTES+22Hope+20Duncan+22+20+3Cdistribution+40caem+2Eorg+3E+40ENRON@ENRON.com] Sent:
Wednesday, August 22, 2001 11:51 AM To: hduncan@caem.org Cc: jmangold@caem.org Subject: September Meeting - -
RSVP Requested

[IMAGE]

[IMAGE]

MEMORANDUM

TO: Members of the CAEM Board of Directors BY: Jeff Mangold, Vice President of Administration RE: September Meeting
- - RSVP Requested Date: August 22, 2001

The next meeting of the CAEM Board of Directors will be held on the afternoon of Wednesday, September 12, at the Grand Hyatt Hotel in Washington, DC.

We will begin the meeting with a luncheon at 12 noon. The substantive session will be from 1 to 5 p.m. Following the Board meeting on Wednesday, you are invited to join with members of the DISCO of the Future Forum for an evening reception and dinner, including a guest speaker, beginning at 6:30. Board members are invited to join in the substantive session of the DISCO Forum on Thursday, September 13. A complete agenda and meeting materials will be forwarded to you shortly.

At this time we would request your RSVP for three events: - The Wednesday Board Meeting - The Wednesday evening reception and dinner - The Thursday meeting of the DISCO of the Future Forum

We also remind you of the international convention ongoing in Washington at the same time as our meetings, and the need to make hotel reservations as soon as possible. No rooms remain at the Grand Hyatt.

It is still possible to reserve a room in the CAEM block at the nearby Wyndham Hotel (see below). Just inform the Wyndham staff that you are part of the Center for the Advancement of Energy Markets group when requesting a reservation. If you should decide to arrange lodging at a different hotel, please do so quickly as there is limited availability in all surrounding hotels.

If you have any questions or require any assistance at all, please contact Hope Duncan at 202.739.0134 or Jeff Mangold at 703.729.2710. We are looking forward to seeing you on September 12.

Information on the DISCO of the Future Forum, as well as our recently released report on gas deregulation, can be found on our newly redesigned website, www.caem.org << File: www.caem.org >>

Hotel Information:

Grand Hyatt Hotel 1000 H Street NW Washington DC 20001 Phone: 202.582.1234 or 1.800.233.1234 Fax: 202.637.4781
Website: <http://washington.hyatt.com/wasgh/index.html> << File: <http://washington.hyatt.com/wasgh/index.html> >>

Wyndham WashingtonDC 1400 M Street NW Washington, DC 20005 Phone: 202.429.1700 or 1.877.999.3223 Fax: 202.785.0786 Website: http://www.wyndham.com/Washington_DC/default.cfm << File: http://www.wyndham.com/Washington_DC/default.cfm >>

- image001.gif << File: image001.gif >> - image002.jpg << File: image002.jpg >>

Message 3 of 176

JoC ONLINE: O'Neill calls for streamlined border trade

Sender	joc_online@news.joc.com
Recipients	['jsteffe@enron.com']
File	steffes-j/inbox/475.

JoC Online Daily E-mail Newsletter Tuesday Edition November 27, 2001 Anniversary of Cerro de Pasco (Peru)
www.joc.com

Take the Daily Quiz, sponsored by APL.

How many TEUs of automobiles did the U.S. export to South America in 2000?

Click on <http://news.joc.com/cgi-bin7/flo?y=eD8A0BejkZ0BbA0PuU0Av>

TODAY'S TOP HEADLINES:

* O'Neill calls for streamlined border trade * Importers key to security: Bonner * Hutchison inks China port expansion deal * Port operator warns of box exodus if UK proposal is scuttled * Cosco, Hanjin, Senator plan slot charters * India-Europe lines talking merger * Malaysia port sees ownership shift * Panama Canal railway reopens * NYK inaugurates S. Amer.-Houston bulk, ro-ro service * Howland Hook to reopen logistics facility * Europe View: Transport sector fixed on future * JoC Week: A buyer's market

YOUR ANSWERS ARE JUST BEYOND THE HORIZON. Trade Horizons is a quarterly publication produced by the PIERS Maritime Research Group. This publication provides a two-year history, forecasts and analysis of trade between 60 major trading partners and the U.S. To order the recently published Fall 2001 issue, please call 800-952-3839 ext. 7062 or visit <http://news.joc.com/cgi-bin7/flo?y=eD8A0BejkZ0BbA0R8w0AW>

O'NEILL CALLS FOR STREAMLINED BORDER TRADE The Treasury Secretary embraced a vision of trade that would significantly expedite the movement, and reduce the cost, of goods crossing borders.

<http://news.joc.com/cgi-bin7/flo?y=eD8A0BejkZ0BbA0SLF0A3>

IMPORTERS KEY TO SECURITY: BONNER Customs Commissioner Robert C. Bonner asked importers to tighten the security of their supply chains as part of their role in preventing terrorist attacks against the United States.

<http://news.joc.com/cgi-bin7/flo?y=eD8A0BejkZ0BbA0SLG0A4>

HUTCHISON INKS CHINA PORT EXPANSION DEAL The port operator will help develop the largest container facility in Shenzhen, adjacent to Hong Kong. <http://news.joc.com/cgi-bin7/flo?y=eD8A0BejkZ0BbA0SLH0A5>

PORT OPERATOR WARNS OF BOX EXODUS IF UK PROPOSAL IS SCUTTLED Britain's largest container port operator said that the United Kingdom risks losing a large share of container traffic to rival continental European ports if its planned megaport isn't approved. <http://news.joc.com/cgi-bin7/flo?y=eD8A0BejkZ0BbA0SLI0A6>

COSCO, HANJIN, SENATOR PLAN SLOT CHARTERS The carriers plan to share space and coordinate port calls and sailings in the trans-Pacific trade. <http://news.joc.com/cgi-bin7/flo?y=eD8A0BejkZ0BbA0SLJ0A7>

INDIA-EUROPE LINES TALKING MERGER Seven ocean carriers serving the trade route between South Asia and Europe are discussing a merger of their respective consortia.
<http://news.joc.com/cgi-bin7/flo?y=eD8A0BejkZ0BbA0SLK0A8>

MALAYSIA PORT SEES OWNERSHIP SHIFT The fast-growing Port of Tanjung Pelepas is getting a new owner.
<http://news.joc.com/cgi-bin7/flo?y=eD8A0BejkZ0BbA0SLL0AA>

WE'VE GOT YOUR COMPETITORS! They're attending the 6th annual Bulk Transportation Conference & Exhibition on December 3 & 4, 2001. Don't let them hoard all this knowledge and networking for themselves. Sponsorship opportunities still available. <http://news.joc.com/cgi-bin7/flo?y=eD8A0BejkZ0BbA0RqK0Aj> Please contact Yvonne Berry at (541) 485-0053 or yberry@joc.com. Become a sponsor of Bulk 2001 today! If you have any additional questions, contact Ren?e Stambach at (973) 848-7154 or rstambach@joc.com.

PANAMA CANAL RAILWAY REOPENS The new service offers shippers another option for moving containers between the Pacific and Atlantic oceans. <http://news.joc.com/cgi-bin7/flo?y=eD8A0BejkZ0BbA0SLM0AB>

NYK INAUGURATES S. AMER.-HOUSTON BULK, RO-RO SERVICE The line opened monthly breakbulk and ro-ro service to South America from the Port of Houston. <http://news.joc.com/cgi-bin7/flo?y=eD8A0BejkZ0BbA0SLN0AC>

HOWLAND HOOK TO REOPEN LOGISTICS FACILITY A warehouse and logistics facility is opened at the New York terminal. <http://news.joc.com/cgi-bin7/flo?y=eD8A0BejkZ0BbA0SLO0AD>

...and exclusively in JoC ONLINE EUROPE VIEW by Bruce Barnard TRANSPORT SECTOR FIXED ON FUTURE While transport is still reeling from the effects of September 11, there are signs that the sector will be stronger a year from now. <http://news.joc.com/cgi-bin7/flo?y=eD8A0BejkZ0BbA0SLP0AE>

...and only in JoC WEEK A BUYER'S MARKET Container ship charter rates are expected to remain low in 2002. To subscribe, visit <http://news.joc.com/cgi-bin7/flo?y=eD8A0BejkZ0BbA0RHs0Ai>

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Message 4 of 176

Deposition of Dr. Cicchetti -- Corrected Details

Sender	cgosain@step toe.com
Recipients	[el00-95@listserv.gsa.gov]
File	steffes-j/inbox/474.

This email message revises our previous message in two ways: (1) it corrects the spelling of Dr. Cicchetti's name and (2) it provides a call-in number for the conference room in which the deposition will be held. We apologize for the misspelling of Dr. Cicchetti's name; unfortunately, we copied the misspelling from the transmittal letter that accompanied Dr. Cicchetti's testimony.

The deposition of Dr. Charles J. Cicchetti will be taken at the offices of Steptoe & Johnson LLP on Wednesday, November 28, 2001, beginning at 9:30 a.m.

Details

Proceeding: San Diego Gas & Electric Co. v. Sellers of Energy and Ancillary Services, Docket Nos. EL00-95-045 et al.
Deponent: Dr. Charles J. Cicchetti Date: Wednesday, November 28, 2001 Time: 9:30 a.m. Call-In Number: Toll Free Dial In Number: (800) 382-9808 PARTICIPANT CODE: 920393

Location: Steptoe & Johnson LLP 1330 Connecticut Avenue, N.W., Washington D.C. 20036 2nd Floor -- Conference Room 2-B (Check in with Reception on 7th Floor) (202) 429-3000 Metro: Dupont Circle (Red Line) exit Dupont South Farragut West (Blue-Orange Line) at NW corner of 18th and I Sts. N.W. Reporter: Ace -- Federal Reporters, Inc. 1120 G Street, N.W. Washington, DC 20005 Tel. (202) 347-3700

Please contact me if you have any questions about the above information. Thank you.

Carol Gosain Steptoe & Johnson LLP 1330 Connecticut Avenue, N.W. Washington, D.C. 20036 Phone: (202) 429-6461 Fax: (202) 429-3902 cgosain@step toe.com

Message 5 of 176

RE: Entergy Transactions

Sender	d.steffes@enron.com
Recipients	[patrick.keene@enron.com , 'James D.', 'Steffes', jean.ryall@enron.com , luiz.maurer@enron.com]
File	steffes-j/sent_items/392.

Thanks Luiz. As a follow-up, I'd like to be on record as saying that the PUCT wasted my time in flying to Austin (when plane travel is not secure, I'd add) and not even listening to my statements. Why bring us if they had already made the

decision? Also, I don't know who is going to pay for more Market Readiness work in SPP unless AEP agrees to pay our costs. The customers pay for their activities.

Jim

-----Original Message-----

From: Maurer, Luiz Sent: Monday, October 22, 2001 10:57 AM To: Ryall, Jean; Keene, Patrick Cc: Steffes, James D.
Subject: FW: Entergy Transactions

Jean, Pat:

Jim would like us to discuss next steps.

In particular what should we do regarding Comission decision to delay retail competition - docket 24468?

As far as Docket 24469 is concerned (SERC-Texas), please confirm the following:

* Comission decision to delay competition applies only to 24468 * There is an ongoing hearing on 24469 * Today is the deadline for parties to intervene. * However, Enron is not a party in this hearing; nor we filed any motion to intervene * Comission has not requested Enron a specific Request for Testimony * Arguments for delaying competition in SERC are similar to the ones for SPP * Therefore, Comission may decide to delay retail competition as well * Is there anything we can do about it?

Any other ideas?

LM

-----Original Message-----

From: Maurer, Luiz Sent: Monday, October 22, 2001 10:50 AM To: Rorschach, Reagan Subject: RE: Entergy Transactions
Reagan

The decision is for SPP Texas only - Docket 24468.

You are right. SERC Texas has a different Docket number - 24469.

LM

-----Original Message-----

From: Rorschach, Reagan Sent: Monday, October 22, 2001 9:27 AM To: Maurer, Luiz Subject: RE: Entergy Transactions
Luiz-

Is this decision for all non-ERCOT Texas? SPP Texas and SERC Texas? I understand there are two docket numbers, and SERC Texas has not been decided yet?

Reagan C. Rorschach Enron North America 1400 Smith Street Houston, Texas 77002 713.345.3363

-----Original Message-----

From: Maurer, Luiz Sent: Monday, October 22, 2001 9:19 AM To: Rorschach, Reagan Subject: RE: Entergy Transactions
The Comission did not set a firm date for opening of the retail market in non-ERCOT Texas

Tks

LM

-----Original Message-----

From: Rorschach, Reagan Sent: Friday, October 19, 2001 7:15 PM To: Maurer, Luiz Subject: RE: Entergy Transactions
Luiz,. What dos "until further notice" mean?? Thanks

Reagan

Message 6 of 176

Re: Proposed Revised Procedural Schedule

Sender	cstrother@mshpc.com
Recipients	[el00-95@listserv.gsa.gov]
File	steffes-j/deleted_items/627.

Vernon believes that the issue of whether purchase power/transmission costs and similar costs should offset any refunds alleged owed to purchasers should be expressly made an Issue II/III testimony issue (i.e., January 2001 filing date) in the procedural schedule in this proceeding--to the extent these issues are properly in this proceeding under the Commission's order herein this docket so far in any event. Vernon obviously has a direct interest in these issues. See Vernon last request for rehearing.

Vernon believes that the Presiding Judge was quite clear on this at the 11/6 conference. Moreover, Vernon would not consider this a change in view by His Honor nor a change in the existing procedural schedule. Nevertheless, Vernon believes that the new version of the procedural schedule should spell out the Issue II/III treatment.

Thanks,

Channing

Channing D. Strother, Jr. McCarthy, Sweeney & Harkaway, PC 2175 K Street, NW Ste. 600 Washington, DC 20037
Phone: 202-393-5710 x 4045 Fax: 202-393-5721 E-Mail: cstrother@mshpc.com Pager: 1-800-209-0704

-----Original Message-----

From: EL00-95 List [mailto:EL00-95@listserv.gsa.gov] On Behalf Of Robert Rosenberg Sent: Wednesday, November 21, 2001 12:40 PM To: EL00-95@LISTSERV.GSA.GOV Subject: Re: Proposed Revised Procedural Schedule Some of us, particularly in the non-public utility group, submitted testimony on 11/6 regarding other additional sources of cost recovery, and others may have been planning to submit such testimony in Phase II. To the extent such testimony is not considered in Phase I as a result of the Judge's change of view or otherwise, the matter should be reflected in the revised procedural schedule (as indeed it was in the two September procedural schedules). ---Original Message----- From: EL00-95 List [mailto:EL00-95@listserv.gsa.gov] On Behalf Of Kunselman, Michael Sent: Wednesday, November 21, 2001 10:21 AM To: EL00-95@LISTSERV.GSA.GOV Subject: FW: Proposed Revised Procedural Schedule Parties: Enclosed is the proposed revised procedural schedule. Apparently my first attempt to send this last night failed. Please review and contact me concerning any modifications that you feel are necessary by 1:00 p.m. EST today, so that it may be circulated to the Judge. If you believe that the schedule is acceptable, there is no need to contact me. Michael Kunselman Swidler Berlin Shereff Friedman, LLP 3000 K Street, NW, Suite 300 Washington, DC 20001 (202) 295-8465 The preceding E-mail message contains information that is confidential, may be protected by the attorney/client or other applicable privileges, and may constitute non-public information. It is intended to be conveyed only to the designated recipient(s). If you are not an intended recipient of this message, please notify the sender at (202) 295-8465. Unauthorized use, dissemination, distribution, or reproduction of this message is strictly prohibited and may be unlawful. -----Original Message----- From: Kunselman, Michael Sent: Tuesday, November 20, 2001 8:21 PM To: EL00-95@LISTSERV.GSA.GOV Subject: Proposed Revised Procedural Schedule Parties: Enclosed is the proposed revised procedural schedule, as agreed to on the conference call held this afternoon. Please review and provide any modifications that you feel are necessary by 10:00 a.m. EST tomorrow in order that it may be provided to the Judge. Thanks, Michael Kunselman Swidler Berlin Shereff Friedman, LLP 3000 K Street, NW, Suite 300 Washington, DC 20001 (202) 295-8465 The preceding E-mail message contains information that is confidential, may be protected by the attorney/client or other applicable privileges, and may constitute non-public information. It is intended to be conveyed only to the designated recipient(s). If you are not an intended recipient of this message, please notify the sender at (202) 295-8465. Unauthorized use, dissemination, distribution, or reproduction of this message is strictly prohibited and may be unlawful. <<Proposed Schedule - EL00-95-045.DOC>>

Message 7 of 176

JoC ONLINE: Bonner calls for trade security partnership

Sender	joc_online@news.joc.com
Recipients	['jsteffe@enron.com']
File	steffes-j/inbox/425.

JoC Online Daily E-mail Newsletter Monday Edition November 26, 2001 Proclamation Day (Mongolia) www.joc.com

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How many nations border Russia?

Click on <http://news.joc.com/cgi-bin7/flo?y=eD6O0BejkZ0BbA0PuU0A8>

TODAY'S TOP HEADLINES:

* Bonner calls for trade security partnership * EU to ban coordinated box capacity cutbacks * United Arab line makes even dozen for Intrta * No alliance yet, lines say * Strike over at Port of Marseilles * ValuShip sets launch for North Europe-US service * CSX unit boosts equity in HK box terminal developer * Delk new railroad security czar * Kuehne & Nagel acquires contract logistics company * Three garner Cargo 2000 accreditation * JoC Week: E-commerce directory

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BONNER CALLS FOR TRADE SECURITY PARTNERSHIP Customs Commissioner Robert C. Bonner called for the trade community to form a partnership against terrorism, and laid out a four-year timetable for completion of the Automated Commercial Environment. <http://news.joc.com/cgi-bin7/flo?y=eD6O0BejkZ0BbA0SKV0AV>

EU TO BAN COORDINATED BOX CAPACITY CUTBACKS Regulators are set to outlaw coordinated capacity cuts by container shipping conferences in response to structural tonnage surpluses. <http://news.joc.com/cgi-bin7/flo?y=eD6O0BejkZ0BbA0SKW0AW>

UNITED ARAB LINE MAKES EVEN DOZEN FOR INTTRA The line has become the 12th ocean carrier to join the multi-carrier ocean shipping Web portal. <http://news.joc.com/cgi-bin7/flo?y=eD6O0BejkZ0BbA0SKX0AX>

NO ALLIANCE YET, LINES SAY Five ocean carriers that have engaged in discussions about possible cooperation say that contrary to a recent report, they have not signed an agreement to form an alliance. <http://news.joc.com/cgi-bin7/flo?y=eD6O0BejkZ0BbA0SKY0AY>

STRIKE OVER AT PORT OF MARSEILLES Cargo handling resumed at the port of Marseilles after dockworkers ended a 12-day walkout. <http://news.joc.com/cgi-bin7/flo?y=eD6O0BejkZ0BbA0SKZ0AZ>

VALUSHIP SETS LAUNCH FOR NORTH EUROPE-US SERVICE New service between North Europe and the West Coast of North America will debut in December. <http://news.joc.com/cgi-bin7/flo?y=eD6O0BejkZ0BbA0SKa0Ag>

CSX UNIT BOOSTS EQUITY IN HK BOX TERMINAL DEVELOPER The US-based conglomerate increased its stake in a company developing a new container terminal in Hong Kong. <http://news.joc.com/cgi-bin7/flo?y=eD6O0BejkZ0BbA0SKb0Ah>

DELK NEW RAILROAD SECURITY CZAR Citing the importance of security of the nation's railroads, the Association of American Railroads has created a full-time position of executive director of railroad security.

<http://news.joc.com/cgi-bin7/flo?y=eD6O0BejkZ0BbA0SKc0Ai>

KUEHNE & NAGEL ACQUIRES CONTRACT LOGISTICS COMPANY The forwarder expands its reach in the Italian market. <http://news.joc.com/cgi-bin7/flo?y=eD6O0BejkZ0BbA0SKd0Aj>

THREE GARNER CARGO 2000 ACCREDITATION Three more Cargo 2000 members have successfully achieved accreditation for the first phase of the air freight industry group's new quality management system. <http://news.joc.com/cgi-bin7/flo?y=eD6O0BejkZ0BbA0SKe0Ak>

...and only in JoC WEEK E-COMMERCE DIRECTORY Logistics technology companies clamoring to be listed in JoC Week's annual directory were given a new hurdle: They had to name some actual customers. This resulted in a slightly slimmed-down list, but there were fewer casualties than might have been expected. To subscribe, visit <http://news.joc.com/cgi-bin7/flo?y=eD6O0BejkZ0BbA0RHs0Au>

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Message 8 of 176

JoC ONLINE: Evergreen, Cosco to end space-sharing pact

Sender	joc_online@news.joc.com
Recipients	['jsteffe@enron.com']
File	steffes-j/deleted_items/514.

JoC Online Daily E-mail Newsletter Thursday Edition December 27, 2001 www.joc.com

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The highest point in Africa is located in which of the following countries?

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TODAY'S TOP HEADLINES:

* Evergreen, Cosco to end slot-sharing accord * India to sell 51% stake in ocean carrier * Asia-U.S. liner outlook gloomy * Chemoil takes stake in OceanConnect * Heavy snow slows NS operations around Buffalo * Crowley taps Grune to head Ship Assist and Escort Services * South Korea to expand Incheon airport * JoC Week: Shaky start for air cargo

The Journal of Commerce Group is proud to announce the 2nd annual Trans-Pacific Maritime Conference on March 3-5, 2002 in Long Beach, California. This is the time of year when shippers are entering contract negotiations and sizing up requirements for the summer-fall peak shipping season. We are pleased to announce that C.C. Tung, chairman and chief executive of Orient Overseas (International) Ltd., will be the keynote speaker. For additional information or to register online, please go to <http://news.joc.com/cgi-bin7/flo?y=eEft0BejkZ0BbA0RqK0AN> If you have any questions, please contact Ren?e Stambach at (973) 848-7154 or rstambach@joc.com. For sponsorship opportunities, please contact Yvonne Berry at (541) 485-0053 or yberry@joc.com.

EVERGREEN, COSCO TO END SLOT-SHARING ACCORD Evergreen in February is expected to begin to use its slot allocation on Lloyd Triestino's services between China and Singapore and between Australia and Singapore. <http://news.joc.com/cgi-bin7/flo?y=eEft0BejkZ0BbA0S1q0Aw>

INDIA TO SELL 51% STAKE IN OCEAN CARRIER The government expects a strategic partner to provide technical and management expertise, in addition to investing in fleet expansion at Shipping Corp. of India. <http://news.joc.com/cgi-bin7/flo?y=eEft0BejkZ0BbA0S1r0Ax>

ASIA-US LINER OUTLOOK GLOOMY Container lines are forecasting flat cargo business for the first half of 2002. <http://news.joc.com/cgi-bin7/flo?y=eEft0BejkZ0BbA0S1e0Ak>

CHEMOIL TAKES STAKE IN OCEANCONNECT Thomas Reilly, OceanConnect's president, announced that Chemoil Corp. has acquired an equity stake and is using OceanConnect as its exclusive online system for buying and selling fuels. <http://news.joc.com/cgi-bin7/flo?y=eEft0BejkZ0BbA0S1s0Ay>

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HEAVY SNOW SLOWS NS OPERATIONS AROUND BUFFALO Norfolk Southern Railway customers with shipments moving through the Buffalo, N.Y., area should expect delays of about 48 hours because two feet of new snow has slowed operations drastically. Another two feet is expected in the area by early next week. <http://news.joc.com/cgi-bin7/flo?y=eEft0BejkZ0BbA0S1t0Az>

CROWLEY TAPS GRUNE TO HEAD SHIP ASSIST AND ESCORT SERVICES The Seattle-based division was one of three operating groups created when Crowley announced in October the reorganization of its Crowley Marine Services subsidiary. <http://news.joc.com/cgi-bin7/flo?y=eEft0BejkZ0BbA0S1u0A1>

SOUTH KOREA TO EXPAND INCHON AIRPORT The expansion will increase capacity to 410,000 flights a year from 240,000. When complete, the airport will be able to handle 4.5 million tons of cargo a year, compared with 2.7 million now. <http://news.joc.com/cgi-bin7/flo?y=eEft0BejkZ0BbA0S1u0A1>

...and only in JoC WEEK Shaky start for air cargo Air-cargo executives undoubtedly wish they could forget the disastrous year that's about to conclude. Unfortunately, they won't be able to because few expect rates or volume to rebound until next spring, at the earliest. To subscribe, visit <http://news.joc.com/cgi-bin7/flo?y=eEft0BejkZ0BbA0RHs0AM>

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* Record losses for AMR * Taiwan still key for DHL * Railroad earnings a mixed bag - Canadian National net up 11% - CSX earnings jump - Slowdown hurts Norfolk Southern results - BNSF earnings slip * Private investment sought for Air Canada * Hamburg S?d adds S. America-Far East route * Westbound minimum for wastepaper, hay * Construction to start on FedEx Miami hub * ANZDL expands online services * Alian?a sets project service * Kinder-Morgan in two bulk deals * FMC fines NVOCC \$1.34M, revokes license * JoC Week: A matter of trust

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RECORD LOSSES FOR AMR The parent of American Airlines and TWA suffered its largest-ever quarterly loss. <http://news.joc.com/cgi-bin7/flo?y=eDTK0BejkZ0n50RHb0Ax>

TAIWAN STILL KEY FOR DHL Despite the sluggish economy, the express carrier will press ahead with its \$30 million investment projects. <http://news.joc.com/cgi-bin7/flo?y=eDTK0BejkZ0n50RHc0Ay>

RAILROAD EARNINGS A MIXED BAG - Canadian National net up 11%
<http://news.joc.com/cgi-bin7/flo?y=eDTK0BejkZ0n50RHd0Az> - CSX earnings jump
<http://news.joc.com/cgi-bin7/flo?y=eDTK0BejkZ0n50RHe0A1> - Slowdown hurts Norfolk Southern results
<http://news.joc.com/cgi-bin7/flo?y=eDTK0BejkZ0n50RHf0A2> - BNSF earnings slip
<http://news.joc.com/cgi-bin7/flo?y=eDTK0BejkZ0n50RHg0A3>

PRIVATE INVESTMENT SOUGHT FOR AIR CANADA The Canadian government plans to loosen ownership restrictions in hopes of attracting private investors to boost ailing Air Canada.
<http://news.joc.com/cgi-bin7/flo?y=eDTK0BejkZ0n50RHH0A4>

HAMBURG S?D ADDS S. AMERICA-FAR EAST ROUTE The carrier will start up a new service between South America and the Far East via South Africa. <http://news.joc.com/cgi-bin7/flo?y=eDTK0BejkZ0n50RHi0A5>

THE JoC GROUP IS PROUD TO ANNOUNCE THE LAUNCH OF THE JoC SHIPPER GROUP WEB SITES. Located at <http://news.joc.com/cgi-bin7/flo?y=eDTK0BejkZ0n50RHj0A6> <http://news.joc.com/cgi-bin7/flo?y=eDTK0BejkZ0n50RHk0A7> <http://news.joc.com/cgi-bin7/flo?y=eDTK0BejkZ0n50RHi0A8> these micro sites are the daily companions to our weekly scheduling magazines. Access our sailing schedules database - the Global Transport Analyzer (GTA), "Feature of the Week" and trade lane focus articles, container port information and much more! Questions? Contact Barbara Ross at 973-848-7186, or bross@joc.com.

WESTBOUND MINIMUM FOR WASTEPAPER, HAY Shipping lines look for a floor to sagging rates.
<http://news.joc.com/cgi-bin7/flo?y=eDTK0BejkZ0n50RHm0AA>

CONSTRUCTION TO START ON FEDEX MIAMI HUB The long-delayed groundbreaking for the Miami hub is now expected to take place in December. <http://news.joc.com/cgi-bin7/flo?y=eDTK0BejkZ0n50RHn0AB>

ANZDL EXPANDS ONLINE SERVICES New functions round out the line's Web-based shipper services.
<http://news.joc.com/cgi-bin7/flo?y=eDTK0BejkZ0n50RHo0AC>

ALIAN?A SETS PROJECT SERVICE A new service designed for breakbulk, project and rolling cargo will begin in November. <http://news.joc.com/cgi-bin7/flo?y=eDTK0BejkZ0n50RHp0AD>

KINDER-MORGAN IN TWO BULK DEALS The energy concern added to a string of recent acquisitions.
<http://news.joc.com/cgi-bin7/flo?y=eDTK0BejkZ0n50RHq0AE>

FMC FINES NVOCC \$1.34M, REVOKES LICENSE The agency sends a message about repeat violators.

<http://news.joc.com/cgi-bin7/flo?y=eDTK0BejkZ0n50RHR0AF>

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TWO CHARGED IN COAST GUARD LICENSE SCHEME A federal grand jury in Puerto Rico indicted a former Coast Guard civilian employee and another man in connection with a scheme to sell hundreds of false Coast Guard documents and licenses to unsuspecting mariners. <http://news.joc.com/cgi-bin7/flo?y=eEfE0BejkZ0BbA0S1f0Ay>

BANGLADESH, MYANMAR PLAN SHIPPING LINKS Trade within the Indian sub-continent is likely to get a boost in the coming year. <http://news.joc.com/cgi-bin7/flo?y=eEfE0BejkZ0BbA0S1g0Az>

NEW WEB SERVICE WANTS TO SHINE LIGHT ON RATES A new Web-based service wants to make international freight rates more publicly available than they currently are. <http://news.joc.com/cgi-bin7/flo?y=eEfE0BejkZ0BbA0S1h0A1>

RAILAMERICA SELLS MINNESOTA RAILROAD The shortline operator has agreed to sell its 44-mile Dakota Rail Railroad to Hennepin County Regional Rail Authority for \$7.6 million. <http://news.joc.com/cgi-bin7/flo?y=eEfE0BejkZ0BbA0S1i0A2>

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MTMC PLANS WORKSHOP FOR MILITARY TRANSPORTERS The Military Traffic Management Command will sponsor a freight-training workshop Jan. 14-17 in Hampton, Va. <http://news.joc.com/cgi-bin7/flo?y=eEfE0BejkZ0BbA0S1j0A3>

BDP OPENS CINCINNATI OFFICE The Philadelphia logistics provider says it will open its twenty-fourth domestic center. <http://news.joc.com/cgi-bin7/flo?y=eEfE0BejkZ0BbA0S1k0A4>

...and exclusively in JoC Online CUSTOMS UPDATE by Susan Kohn Ross BORDER SECURITY AND CONGRESS Washington is pondering a host of anti-terrorist cargo proposals, but unilateral action shouldn't be one of them. Here's why. <http://news.joc.com/cgi-bin7/flo?y=eEfE0BejkZ0BbA0S1l0A5>

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**JoC ONLINE: Tanker demand likely to hit 10-year low**

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\* Tanker demand likely to hit 10-year low \* New India-Europe service to start Jan. 6 \* S. Korea lowers threshold for duties \* Rail delays through Buffalo worsen \* Gems, cash stolen from South African air-cargo depot \* Maritrans loses OPA-90 case \* Proposal outlines responsibilities of security agency \* JoC Week: Shaky start for air cargo

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**TANKER DEMAND LIKELY TO HIT 10-YEAR LOW** OPEC's agreement to slash crude production by 6.5%, together with matching cuts by non-OPEC producers, will reduce the demand for shipping by the equivalent of nearly 30 supertankers a month. <http://news.joc.com/cgi-bin7/flo?y=eEgJ0BejkZ0BbA0S140AG>

**NEW INDIA-EUROPE SERVICE TO START JAN. 6** The new service will combine two consortia comprising Evergreen Marine, "K" Line, Malaysian International Shipping, Shipping Corp. of India, Yang Ming and Zim Israel Navigation. <http://news.joc.com/cgi-bin7/flo?y=eEgJ0BejkZ0BbA0S150AH>

**S. KOREA LOWERS THRESHOLD FOR DUTIES** The new rules mean that duty will be levied on products worth \$29 and more. Under current regulations, customs duties are imposed on goods whose value is \$77 or higher. <http://news.joc.com/cgi-bin7/flo?y=eEgJ0BejkZ0BbA0S160AI>

**CHEMOIL TAKES STAKE IN OCEANCONNECT** Norfolk Southern Railway is warning customers with shipments moving through the Buffalo, N.Y., area to expect 72-hour delays because of heavy snowfall. A previous alert said delays of 48 hours were expected. <http://news.joc.com/cgi-bin7/flo?y=eEgJ0BejkZ0BbA0S170AJ>

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**GEMS, CASH STOLEN FROM SOUTH AFRICAN AIR-CARGO DEPOT** Between five and eight armed men surprised three security guards at Johannesburg International Airport as they inspected cargo from Amsterdam. The thieves made off with \$9.5 million in cash and an undisclosed amount of diamonds and other jewelry. <http://news.joc.com/cgi-bin7/flo?y=eEgJ0BejkZ0BbA0S180AK>

**MARITRANS LOSES OPA-90 CASE** The U.S. Court of Federal Claims ruled that the double-hull requirement of the Oil Pollution Act of 1990 does not constitute a "taking" of Maritrans' petroleum barges. Maritrans said it is evaluating a possible appeal. <http://news.joc.com/cgi-bin7/flo?y=eEgJ0BejkZ0BbA0S2A0AU>

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JoC ONLINE: MOL net gains in first half

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MOL NET GAINS IN FIRST HALF But the carrier said a business environment that "showed a strong trend toward recession" dragged down revenues and profits. <http://news.joc.com/cgi-bin7/flo?y=eD4V0BejkZ0n50SJc0Ag>

INTERPOOL, MAHER IN CHASSIS POOL The joint venture will market and provide chassis management services to steamship lines, railroads and other players in the intermodal industry. <http://news.joc.com/cgi-bin7/flo?y=eD4V0BejkZ0n50SJd0Ah>

HAPAG-LLOYD LAUNCHES 7,500-TEU SHIP Three more of the behemoth vessels will be delivered by March 2003. <http://news.joc.com/cgi-bin7/flo?y=eD4V0BejkZ0n50SJe0Ai>

MONTREAL BOX TRAFFIC SLIPS The Port saw cargo volume weaken through the first nine months of 2001, a trend that it expects to continue. <http://news.joc.com/cgi-bin7/flo?y=eD4V0BejkZ0n50SJf0Aj>

ALITALIA TO CUT ROUTES, JOBS Italy's national airline plans to cut 3,400 jobs, sell three units and scale back some long haul routes in a bid to return to profitability by 2003. <http://news.joc.com/cgi-bin7/flo?y=eD4V0BejkZ0n50SJg0Ak>

DESCARTES LOSS WIDENS The provider of collaborative, Web-based logistics management posted a loss of \$15.6 million for the third quarter of fiscal 2002. <http://news.joc.com/cgi-bin7/flo?y=eD4V0BejkZ0n50SJh0Al>

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STRIKERS BLOCK MARSEILLES TERMINALS Dockworkers Friday blocked all freight terminals at the port of Marseilles, escalating a 10-day dispute that has paralyzed cargo handling at the French port. <http://news.joc.com/cgi-bin7/flo?y=eD4V0BejkZ0n50SJi0Am>

SINGAPORE SHIPYARDS END MERGER TALKS Two of Singapore's leading conglomerates have called off talks on a merger of their shipyard activities. <http://news.joc.com/cgi-bin7/flo?y=eD4V0BejkZ0n50SJj0An>

HUTCHISON GETS INDONESIA PORT PROJECT State-run Indonesia Port Corp. says it will work with Hong Kong-based Hutchison International Ports Holdings to develop a long-stalled container port near Jakarta. <http://news.joc.com/cgi-bin7/flo?y=eD4V0BejkZ0n50SJk0Ao>

LUFTHANSA CARGO ADDS EXPRESS SERVICES The carrier is offering time-definite delivery for certain express and perishable shipments to the consignee's doorstep. <http://news.joc.com/cgi-bin7/flo?y=eD4V0BejkZ0n50SJl0Ap>

LYKES LINES OFFERS ONLINE BILL OF LADING Customers in North Europe, the Mediterranean and Mexico now have access to the Web feature. <http://news.joc.com/cgi-bin7/flo?y=eD4V0BejkZ0n50SJm0Aq>

LAN CHILE TAKES STAKE IN BRAZIL CARGO LINE A 20% stake in a small Brazilian air cargo operator will give it a new route to the U.S. <http://news.joc.com/cgi-bin7/flo?y=eD4V0BejkZ0n50SJn0Ar>

...and only in JoC WEEK CROSSROADS FOR NIT LEAGUE The association that for 94 years has prided itself as "the shipper's voice" is considering a proposal to allow carriers and intermediaries to join its ranks. To subscribe, visit <http://news.joc.com/cgi-bin7/flo?y=eD4V0BejkZ0n50RHs0At>

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**JoC ONLINE: Lin: Taiwan is China gateway**

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JoC Online Daily E-mail Newsletter Friday Edition December 21, 2001 Transitional Government Day (Sao Tome and Principe) [www.joc.com](http://www.joc.com)

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\* Lin: Taiwan is China gateway \* Halifax freezes 2002 tariffs \* Forwarder wins round vs. CSX Lines, Matson \* EVA Airways names Yen \* Feeders cut India surcharge \* Cargo vessel stopped and searched in Channel \* New York files to abandon rail car float line \* Descartes buys Tradevision \* SNAME elects Rosenblatt \* Export ABCs: Information, please \* JoC Week: Teamsters target port drayage

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LIN: TAIWAN IS CHINA GATEWAY A trade minister says the island nation is ideally positioned as it and China enter the WTO. <http://news.joc.com/cgi-bin7/flo?y=eEem0BejkZ0BbA0S30Az>

HALIFAX FREEZES 2002 TARIFFS Harbor dues, berthage and anchorage fees, wharfage and passenger charges will remain unchanged. <http://news.joc.com/cgi-bin7/flo?y=eEem0BejkZ0BbA0S40A1>

FORWARDER WINS ROUND VS. CSX LINES, MATSON A Los Angeles forwarder can press its case over rates in the Hawaii trade. <http://news.joc.com/cgi-bin7/flo?y=eEem0BejkZ0BbA0S50A2>

EVA AIRWAYS NAMES YEN Kitty Yen, a 25-year veteran of Evergreen Marine Corp., becomes the first woman to head the group's aviation affiliate. <http://news.joc.com/cgi-bin7/flo?y=eEem0BejkZ0BbA0S60A3>

FEEDERS CUT INDIA SURCHARGE Improved turnarounds times at the port of Chennai have led feeder operators to cut their congestion surcharge. <http://news.joc.com/cgi-bin7/flo?y=eEem0BejkZ0BbA0S70A4>

CARGO VESSEL STOPPED AND SEARCHED IN CHANNEL A cargo ship sailing from Mauritius was stopped and searched by British anti-terrorist forces in the English Channel. <http://news.joc.com/cgi-bin7/flo?y=eEem0BejkZ0BbA0S80A5>

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MEET THE TOP NAMES IN THE TRANS-PACIFIC MARITIME INDUSTRY! The 2nd annual Trans-Pacific Maritime Conference on March 3-5, 2002 is the premier way to network and learn. We are pleased to announce that C.C. Tung, chairman and chief executive of Orient Overseas (International) Ltd., will be the keynote speaker. For additional information or to register online, please go to <http://news.joc.com/cgi-bin7/flo?y=eEem0BejkZ0BbA0RqK0AF> If you have any questions, please contact Ren?e Stambach at (973) 848-7154 or [rstambach@joc.com](mailto:rstambach@joc.com). For sponsorship opportunities, please contact Yvonne Berry at (541) 485-0053 or [yberry@joc.com](mailto:yberry@joc.com).

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NEW YORK FILES TO ABANDON RAIL CAR FLOAT LINE The City of New York wants to shut down the last remaining operator of car float service across New York Harbor. <http://news.joc.com/cgi-bin7/flo?y=eEem0BejkZ0BbA0S1A0A1>

DESCARTES BUYS TRADEVISION The Canadian logistics information company has bought Tradevision AB, a provider of data transfer technology for air cargo management. <http://news.joc.com/cgi-bin7/flo?y=eEem0BejkZ0BbA0S1B0A2>

SNAME ELECTS ROSENBLATT The Society of Naval Architects and Marine Engineers has elected Bruce S. Rosenblatt as its new president. <http://news.joc.com/cgi-bin7/flo?y=eEem0BejkZ0BbA0S1C0A3>

...and exclusively in JoC ONLINE EXPORT ABCs by Frank Reynolds INFORMATION, PLEASE From books to industry associations to Web sites, there's a wealth of really useful information waiting for the inquiring exporter. <http://news.joc.com/cgi-bin7/flo?y=eEem0BejkZ0BbA0S1D0A4>

...and only in JoC WEEK TEAMSTERS TARGET PORT DRAYAGE Backed by the ILWU and the ILA, the Teamsters will ask unionized trucking companies to enter the harbor-hauling business. Not everyone is convinced the plan will work. To subscribe, visit <http://news.joc.com/cgi-bin7/flo?y=eEem0BejkZ0BbA0RHs0AE>

Want to do a good deed this holiday season? Send a gift to a seafarer who's at sea over the holidays. The Lutheran Seafarers and International House is requesting work jackets, hooded sweatshirts, gloves, new video tapes and chocolates for its annual Christmas-at-Sea program. Gifts will be delivered to ships calling at U.S. ports. Contact Christopher Roehrer at [cvr@sihnyc.org](mailto:cvr@sihnyc.org) <http://www.sihnyc.org>

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JoC ONLINE: Trans-Pacific lines ready China surcharges

Sender	joc_online@news.joc.com
Recipients	[' jsteffe@enron.com ']
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JoC Online Daily E-mail Newsletter Monday Edition December 24, 2001 Christmas Eve (USA) www.joc.com

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TODAY'S TOP HEADLINES:

* Trans-Pacific lines ready China surcharges * Tanker owners brace for OPEC cuts * Buenos Aires terminal operating after riots * A&B expects lower results for Matson * Port Canaveral first to meet new security rules * Another war-risk cut for Pakistan * Terror ship search could take weeks * Winter shutdown for St. Lawrence Seaway * Cleanup underway in CSX derailment * JoC Week: Shaky start for air cargo

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Trans-Pacific lines ready China surcharges Carriers said the surcharges reflect rising terminal-related costs in handling cargo and managing carrier equipment throughout China. <http://news.joc.com/cgi-bin7/flo?y=eEen0BejkZ0BbA0S1E0A6>

Tanker owners brace for OPEC cuts More production cutbacks will break a short-lived rally in tanker rates. <http://news.joc.com/cgi-bin7/flo?y=eEen0BejkZ0BbA0S1F0A7>

Buenos Aires terminal operating after riots Normal port operations have resumed at the Exolgan container terminal after riots left more than 20 dead in Argentina. <http://news.joc.com/cgi-bin7/flo?y=eEen0BejkZ0BbA0S1G0A8>

A&B expects lower results for Matson Alexander & Baldwin, parent of Matson Navigation Co., said it expects significantly lower fourth-quarter results for the carrier. <http://news.joc.com/cgi-bin7/flo?y=eEen0BejkZ0BbA0S1H0AA>

Port Canaveral first to meet new security rules Port Canaveral has been certified by the Florida Department of Law Enforcement (FDLE) for substantial compliance with the Florida Legislature's new laws for seaport security. <http://news.joc.com/cgi-bin7/flo?y=eEen0BejkZ0BbA0S1I0AB>

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Another war-risk cut for Pakistan Following discussions with insurance underwriters, major shipping lines serving Pakistan have cut the war-risk premium by an additional \$9 per TEU. <http://news.joc.com/cgi-bin7/flo?y=eEen0BejkZ0BbA0S1J0AC>

Terror ship search could take weeks The search of a cargo ship seized in the English Channel four days ago on suspicion of carrying "terrorist material" to Great Britain is likely to take several weeks, British law enforcement officials said. <http://news.joc.com/cgi-bin7/flo?y=eEen0BejkZ0BbA0S1K0AD>

Winter shutdown for St. Lawrence Seaway The St. Lawrence Seaway was closed to vessel traffic Monday, beginning its traditional three-month winter shutdown. <http://news.joc.com/cgi-bin7/flo?y=eEen0BejkZ0BbA0S1L0AE>

Cleanup underway in CSX derailment It could be several days before crews have completely cleaned up chemicals that spilled and ignited a fire after a freight train derailed in western New York. <http://news.joc.com/cgi-bin7/flo?y=eEen0BejkZ0BbA0S1M0AF>

...and only in JoC WEEK Shaky start for air cargo Air-cargo executives undoubtedly wish they could forget the disastrous year that's about to conclude. Unfortunately, they won't be able to because few expect rates or volume to rebound until next spring, at the earliest. To subscribe, visit <http://news.joc.com/cgi-bin7/flo?y=eEen0BejkZ0BbA0RHs0AF>

The Journal of Commerce Group is proud to announce the 2nd annual Trans-Pacific Maritime Conference on March 3-5, 2002 in Long Beach, California. This is the time of year when shippers are entering contract negotiations and sizing up requirements for the summer-fall peak shipping season. We are pleased to announce that C.C. Tung, chairman and chief executive of Orient Overseas (International) Ltd., will be the keynote speaker. For additional information or to register online, please go to <http://news.joc.com/cgi-bin7/flo?y=eEen0BejkZ0BbA0RqK0AG> If you have any questions, please contact Ren?e Stambach at (973) 848-7154 or rstambach@joc.com. For sponsorship opportunities, please contact Yvonne Berry at (541) 485-0053 or yberry@joc.com.

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FW: REMINDER: CAEM DISCO of the Future Meeting Location

Sender	hduncan@caem.org
Recipients	['hduncan@caem.org', 'jmangold@caem.org']
File	steffes-j/deleted_items/178.

MEMORANDUM

October 3, 2001

TO: CAEM DISCO Members BY: Hope Duncan, CAEM, Director of Administration RE: CAEM DISCO Meeting Logistics

The next meeting of the CAEM DISCO of the Future will be held on Wednesday, October 24th, at the Grand Hyatt Hotel in Washington, DC.

The Grand Hyatt Hotel has blocked rooms for us under the "Center for the Advancement of Energy Markets" at a rate of \$169.00 per night. Please contact the hotel as soon as possible to reserve your room.

We will begin the meeting with a continental breakfast at 8:00 a.m. The substantive session will be from 8:30 a.m. to 3:30 p.m. Prior to the DISCO meeting, you are invited to join us for an evening reception and dinner on Tuesday, October 23rd, including a guest speaker, beginning at 6:00. A complete agenda will be forwarded to you shortly.

If you have any questions or require any assistance at all, please contact Hope Duncan at 202.739.0134 or Jeff Mangold at 703.729.2710. We are looking forward to seeing you on October 25th.

Hotel Information:

Grand Hyatt Hotel 1000 H Street NW Washington DC 20001 Phone: 202.582.1234 or 1.800.233.1234 Fax: 202.637.4781
Website: <http://washington.hyatt.com/wasgh/index.html>

Message 16 of 176

REMINDER: Board of Directors Meeting, October 25th

Sender	hduncan@caem.org
Recipients	['hduncan@caem.org', 'jmangold@caem.org']
File	steffes-j/deleted_items/179.

MEMORANDUM

October 2, 2001

TO: CAEM Board of Directors BY: Hope Duncan, CAEM, Director of Administration RE: Board of Directors, RSVP requested

The next meeting of the CAEM Board of Directors will be held on Thursday, October 25th, at the Grand Hyatt Hotel in Washington, DC.

We will begin the meeting with a luncheon at 12 noon. The substantive session will be from 1 to 5 p.m. Prior to the Board meeting, you are invited to join with members of the DISCO of the Future Forum for an evening reception and dinner on Tuesday, October 23rd, including a guest speaker, beginning at 6:30. Board members are also invited to join in the substantive session of the DISCO Forum on Wednesday, October 24th. A complete agenda and will be forwarded to you shortly.

At this time we would request your RSVP for three events:

- The Thursday Board Meeting - The Tuesday evening reception and dinner - The Wednesday meeting of the DISCO of the Future Forum

If you have any questions or require any assistance at all, please contact Hope Duncan at 202.739.0134 or Jeff Mangold at 703.729.2710. We are looking forward to seeing you on October 25th.

Hotel Information:

Grand Hyatt Hotel 1000 H Street NW Washington DC 20001 Phone: 202.582.1234 or 1.800.233.1234 Fax: 202.637.4781
Website: <http://washington.hyatt.com/wasgh/index.html>

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ISO Depositions this Week

Sender	mnkunselman@swidlaw.com
Recipients	['el00-95@listserv.gsa.gov']
File	steffes-j/deleted_items/430.

Parties: As indicated in an earlier email to listserv, please be aware that Coral Power will depose Ean O'Neill of the ISO tomorrow (Tuesday, October 30th) at 10:00 a.m. Pacific time. However, pursuant to an agreement reached between the ISO and Coral, the depositions of Boyd Busker, George Black, and Bob Sullivan, originally noticed for October 31st, will not take place. Ms. O'Neill's deposition will take place at the ISO's headquarters in Folsom, California. As was the case previously, the reporting service will be Esquire Deposition Services in Sacramento, CA (916-448-0505); parties should make their own arrangements for transcripts. If parties have any questions concerning Ms. O'Neill's deposition, please contact either Gene Waas at (916) 608-7049 or myself at (202) 295-8465. Michael Kunselman Swidler Berlin Shereff Friedman, LLP 3000 K Street, NW, Suite 300 Washington, DC 20001 (202) 295-8465 The preceding E-mail message contains information that is confidential, may be protected by the attorney/client or other applicable privileges, and may constitute non-public information. It is intended to be conveyed only to the designated recipient(s). If you are not an intended recipient of this message, please notify the sender at (202) 295-8465. Unauthorized use, dissemination, distribution, or reproduction of this message is strictly prohibited and may be unlawful.

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First Set of Discovery Requests of the California Parties to Duk e

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Recipients	['el00-95@listserv.gsa.gov']
File	steffes-j/deleted_items/595.

Please see attached. Hard copies are being served on the restricted service list.

Joseph H. Fagan ATTORNEY HellerEhrman

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-----Original Message-----

From: Fagan, Joseph H. Sent: Tuesday, November 20, 2001 1:15 PM To: 'EL00-95 List' Subject: First Set of Discovery Requests of the California Parties to LADWP

Please see attached. Hard copies are being sent to the restricted service list.

Joseph H. Fagan ATTORNEY HellerEhrman

tel.: 202.912.2162 fax: 202.912.2020 e-mail: jfagan@hewm.com web: <http://www.hewm.com> <<http://www.hewm.com>>
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Message 19 of 176

FW: Proposed Revised Procedural Schedule

Sender	mnkunselman@swidlaw.com
Recipients	[el00-95@listserv.gsa.gov]
File	steffes-j/deleted_items/609.

Parties: Enclosed is the proposed revised procedural schedule. Apparently my first attempt to send this last night failed. Please review and contact me concerning any modifications that you feel are necessary by 1:00 p.m. EST today, so that it may be circulated to the Judge. If you believe that the schedule is acceptable, there is no need to contact me. Michael Kunselman Swidler Berlin Shereff Friedman, LLP 3000 K Street, NW, Suite 300 Washington, DC 20001 (202) 295-8465 The preceding E-mail message contains information that is confidential, may be protected by the attorney/client or other applicable privileges, and may constitute non-public information. It is intended to be conveyed only to the designated recipient(s). If you are not an intended recipient of this message, please notify the sender at (202) 295-8465. Unauthorized use, dissemination, distribution, or reproduction of this message is strictly prohibited and may be unlawful. -----Original Message----- From: Kunselman, Michael Sent: Tuesday, November 20, 2001 8:21 PM To: EL00-95@LISTSERV.GSA.GOV Subject: Proposed Revised Procedural Schedule Parties: Enclosed is the proposed revised procedural schedule, as agreed to on the conference call held this afternoon. Please review and provide any modifications that you feel are necessary by 10:00 a.m. EST tomorrow in order that it may be provided to the Judge. Thanks, Michael Kunselman Swidler Berlin Shereff Friedman, LLP 3000 K Street, NW, Suite 300 Washington, DC 20001 (202) 295-8465 The preceding E-mail message contains information that is confidential, may be protected by the attorney/client or other applicable privileges, and may constitute non-public information. It is intended to be conveyed only to the designated recipient(s). If you are not an intended recipient of this message, please notify the sender at (202) 295-8465. Unauthorized use, dissemination, distribution, or reproduction of this message is strictly prohibited and may be unlawful. <<Proposed Schedule - EL00-95-045.DOC>>

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Recipients	[robert.frank@enron.com]
File	steffes-j/sent_items/617.

Bob --

Sorry this is just getting to you. Pls work with Fergus to come up with an answer.

Jim -----Original Message----- From: "Dan Watkiss" <dwatkiss@bracepatt.com>@ENRON
[mailto:IMCEANOTES+22Dan+20Watkiss+22+20+3Cdwatkiss+40bracepatt+2Ecom+3E+40ENRON@ENRON.com]
Sent: Friday, August 03, 2001 12:45 PM To: gfergus@brobeck.com; Steffes, James D. Subject: Fwd: PNW

Please see Seabron's request, attached. Can we arrange for him to see how the PNW trading is done?

Jeffrey D. (Dan) Watkiss Bracewell & Patterson, LLP 2000 K St., N.W. Suite 500 Washington, D.C. 20006-1872 (202) 828-5851 dwatkiss@bracepatt.com jdwtatkiss@aol.com Content-Transfer-Encoding: 7bit Received: from mcafee.bracepatt.com by mail.bracepatt.com; Fri, 03 Aug 2001 12:42:28 -0500 Received: FROM imta02a2.registeredsite.com BY mcafee.bracepatt.com ; Fri Aug 03 12:56:35 2001 -0500 X-Proxy: keymaster.bracepatt.com protected Received: from seabronlaptop ([10.0.58.26]) by imta02a2.registeredsite.com with SMTP id <20010803173944.TFUP3881.imta02a2.registeredsite.com@seabronlaptop> for <dwatkiss@bracepatt.com>; Fri, 3 Aug 2001 13:39:44 -0400 Reply-To: <seabron.adamson@frontier-economics.com> From: "Seabron Adamson" <seabron.adamson@frontiereconomics.com> To: "Dan Watkiss" <dwatkiss@bracepatt.com> Subject: PNW Date: Fri, 3 Aug 2001 13:41:39 -0400 Message-ID: <NDBBJDNDALMDFFFCOAEBCEBKJAA.seabron.adamson@frontiereconomics.com> MIME-Version: 1.0 Content-Type: text/plain; charset="us-ascii" X-Priority: 3 (Normal) X-MSMail-Priority: Normal X-Mailer: Microsoft Outlook IMO, Build 9.0.2416 (9.0.2910.0) X-MimeOLE: Produced By Microsoft MimeOLE V5.50.4133.2400 Importance: Normal In-Reply-To: <sb6963be.023@mail.bracepatt.com>

Dan:

Just a thought. In prep. for the PNW hearing it would be very useful to spend a day with the PNW traders in Portland (or from another firm in the group, if that were more appropriate) just watching what they do. It would help give me some better insight into the practical mechanics of the market, which may prove important in the hearing. All of the various regions have their own rules and procedures, including the WSCC. We should check with Fergus I suppose to make sure its OK from the litigation front before calling anyone in Portland.

I am sending you a proposed budget for the California hearing this p.m. as well, to copy to Steffes. I assume that CRA will take the lead on the number crunching, and that i will just follow the work plan items communicated earlier to Steffes.

Seabron

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RE: Budget for PNW hearing

Sender	d.steffes@enron.com
Recipients	['harry.kingerski@enron.com', 'richard.shapiro@enron.com', 'rfrank@enron.com', 'robert.frank@enron.com']
File	steffes-j/sent_items/7.

Bob --

Please be on the next RCR call to update. See Ginger for time.

Jim

-----Original Message-----

From: Frank, Robert Sent: Wednesday, August 29, 2001 9:03 AM To: Shapiro, Richard; Steffes, James D.; Kingerski, Harry Subject: FW: Budget for PNW hearing

I thought I'd pass this along to the RCR committee - I am going to try to get other participants in the Pacific NW refund case to chip in for Seabron's fees. As you know, things are moving quite fast. -----Original Message----- From: "Seabron Adamson" <seabron.adamson@frontiereconomics.com>@ENRON [mailto:IMCEANOTES+22Seabron+20Adamson+22+20+3Cseabron+2Eadamson+40frontiereconomics+2Ecom+3E+40ENRON@ENRON.com] Sent: Tuesday, August 28, 2001 2:10 PM To: rfrank@enron.com Cc: dwatkiss@bracepatt.com Subject: Budget for PNW hearing

Bob (cc Dan):

On August 9th I sent a memo to Dan and Bob re: budget for the Pacific Northwest hearing. This included a PNW budget of \$87,300 through the end of the hearing September 6th. I noted that we had already spent some time on PNW issues, including a meeting in Washington, etc. These were outside the \$87K value.

Just as an update, and to avoid any surprises, I thought I would provide Bob with an update. So far we have spent a total of 206 hours on the Pacific Northwest issues, through yesterday night. Needless to say, much of this went into drafting the numerous bits of testimony, plus the data analysis of the gas/power forwards prices. I also ended up drafting testimony on some other issues not originally contemplated, including ripple, etc.

On that basis, we have gone through \$66,575 of the total budget. I just wanted to make sure people were OK with this as we still have a very long 9 days left to go before the hearing concludes next Thursday...and I expect we will be very busy the entire time.

Seabron

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-----Original Message-----

From: Shelby Kelley [mailto:skelley@bracepatt.com] Sent: Tuesday, August 28, 2001 10:09 AM To: svv@econ.com; seabron.adamson@frontiereconomics.com Cc: rfrank@enron.com Subject: Fwd: EL01-10: BPA's Testimony

Shelby J. Kelley, Esq. Bracewell & Patterson, L.L.P. 2000 K Street, NW Suite 500 Washington, DC 20006-1872 (202) 828-5859 skelley@bracepatt.com

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HOUSE GETS GSP EXTENSION The House Ways and Means Committee has passed on to the House floor a bill that would extend the Generalized System of Preferences. <http://news.joc.com/cgi-bin7/flo?y=eDLn0BejkZ0n50RDr0Ac>

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BRAZIL OKS FREE TRADE ZONES FOR PORTS, AIRPORTS Tax breaks are aimed at spurring trade and attracting shippers to South America's largest country. <http://news.joc.com/cgi-bin7/flo?y=eDLn0BejkZ0n50RDt0Ae>

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EVERGREEN NEXT TO QUIT SINGAPORE? The fast-growing Malaysian port of Tanjung Pelepas may have gained another tenant - at Singapore's expense. <http://news.joc.com/cgi-bin7/flo?y=eDQE0BejkZ0n50RGF0AL>

Seaway strike averted St. Lawrence Seaway management and labor reached agreement on a contract less than two hours before a strike deadline that would have closed the waterway.
<http://news.joc.com/cgi-bin7/flo?y=eDQE0BejkZ0n50RGG0AM>

BRITISH AIRWAYS, KLM REVIVE TALKS Europe's largest airline revived alliance talks with the Dutch carrier 13 months after breaking off merger negotiations. <http://news.joc.com/cgi-bin7/flo?y=eDQE0BejkZ0n50RGH0AN>

SWISSAIR BAILOUT OK'D The Swiss government approved a \$2.4 billion rescue package for bankrupt Swissair after securing additional private capital. <http://news.joc.com/cgi-bin7/flo?y=eDQE0BejkZ0n50RGI0AO>

REPORT: DEUTSCHE POST TO ACQUIRE AIRBORNE EXPRESS A published report said the Germany logistics conglomerate is about to acquire the U.S. package delivery provider.
<http://news.joc.com/cgi-bin7/flo?y=eDQE0BejkZ0n50RGJ0AP>

BOLERO MOVES INTO PAYMENT CLEARANCE The London-based company will offer gathering and verifying electronic documents necessary for clearing payment on international trades.
<http://news.joc.com/cgi-bin7/flo?y=eDQE0BejkZ0n50RGK0AQ>

SCHNEIDER LOGISTICS, HELLMANN WORLDWIDE PARTNERING The logistics provider will mesh services with the latter's worldwide freight forwarding network. <http://news.joc.com/cgi-bin7/flo?y=eDQE0BejkZ0n50RGL0AR>

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FEDEX OPENS SHANGHAI HUB Ahead of China's accession to the WTO, FedEx Corp. unveiled a vast express center in a joint venture. <http://news.joc.com/cgi-bin7/flo?y=eDQE0BejkZ0n50RGM0AS>

CGM ADDS SOUTH AMERICA CONNECTIONS The carrier will launch a new feeder service between hub ports in the Caribbean islands and northern Brazil. <http://news.joc.com/cgi-bin7/flo?y=eDQE0BejkZ0n50RGN0AT>

CROP-DUSTED TUG, BARGES RELEASED A Mississippi River tugboat and barges it was transporting were released by authorities after tests of a substance sprayed on them by a crop-duster came back negative. <http://news.joc.com/cgi-bin7/flo?y=eDQE0BejkZ0n50RGO0AU>

BRAZIL PORT GETS \$40M LOAN Sepetiba has secured financing for its expansion. <http://news.joc.com/cgi-bin7/flo?y=eDQE0BejkZ0n50RGP0AV>

SCHENKER OPENS JAPAN LOGISTICS CENTER A joint venture will open a logistics center next to the New Tokyo International Airport. <http://news.joc.com/cgi-bin7/flo?y=eDQE0BejkZ0n50RGQ0AW>

...and only in JoC WEEK WINNING TICKET In the \$130 million-a-year lottery industry, GTech Corp. can't afford to gamble. The company, the world's largest provider of lottery terminals and supplies, faces stiff penalties if its shipments are late. That means the company puts a high priority on its supply-chain management. To subscribe, visit <http://news.joc.com/cgi-bin7/flo?y=eDQE0BejkZ0n50QAO0AN>

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JoC ONLINE: WTO sees trade slump

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* WTO sees trade slump * ACL profits up * Ports ask carriers, terminals to help clean air * UN: Liberia registry paid for arms * China, Korea open shortest sea route * GT Nexus lands P&G ocean contract * Alps trucking snarled after Swiss tunnel disaster * Lufthansa grounds more planes * Syntegra rolls out new air cargo application * NTE names Murphy VP * Trade Scene: An uncertain road for exports * JoC Week: A matter of trust

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WTO SEES TRADE SLUMP The World Trade Organization warned that growth in global trade in goods will slow to only 2% this year from 12% in 2000, and could weaken further. <http://news.joc.com/cgi-bin7/flo?y=eDUZ0BejkZ0n50RP30Aa>

ACL PROFITS UP The ro-ro specialist turned in third-quarter net of \$6 million, up from \$4 million in 2000. <http://news.joc.com/cgi-bin7/flo?y=eDUZ0BejkZ0n50RP40Ab>

PORTS ASK CARRIERS, TERMINALS TO HELP CLEAN AIR Port authorities want vessel and terminal operators to get a jump on stricter emission rules set to take effect by mid-decade. <http://news.joc.com/cgi-bin7/flo?y=eDUZ0BejkZ0n50RP50Ac>

UN: LIBERIA REGISTRY PAID FOR ARMS A United Nations report alleges that Liberia's shipping register, the world's second-largest flag of convenience, is financing illegal arms purchases. <http://news.joc.com/cgi-bin7/flo?y=eDUZ0BejkZ0n50RP60Ad>

CHINA, KOREA OPEN SHORTEST SEA ROUTE A new sea route between China and South Korea has opened between the Port of Longyan at Rongcheng in Shandong province and Pyongtaek in Korea. <http://news.joc.com/cgi-bin7/flo?y=eDUZ0BejkZ0n50RP70Ae>

GT NEXUS LANDS P&G OCEAN CONTRACT The multi-carrier Web portal and logistics management software company has won a contract to manage and track ocean shipments for the consumer products giant. <http://news.joc.com/cgi-bin7/flo?y=eDUZ0BejkZ0n50RP80Af>

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presented. Pending Senate port security bill will be examined in detail. Exhibit hall included. Reasonable registration fee of only \$199. Contact NCSC at ncsc@cargosecurity.com.

ALPS TRUCKING SNARLED AFTER SWISS TUNNEL DISASTER The future of trans-Alpine trucking took another hit following a fiery collision in a Swiss tunnel that left at least 10 dead and shut down the main north-south route between Italy and Germany. <http://news.joc.com/cgi-bin7/flo?y=eDUZ0BejkZ0n50RQA0Ap>

LUFTHANSA GROUNDS MORE PLANES Europe's second largest airline said it will ground more planes and axe more routes in response to the steep decline in traffic. <http://news.joc.com/cgi-bin7/flo?y=eDUZ0BejkZ0n50RQB0Aq>

SYNTEGRA ROLLS OUT NEW AIR CARGO APPLICATION The British consulting firm said it has developed a new mobile data application that enables airlines and ground-handling companies to manage cargo at the piece level. <http://news.joc.com/cgi-bin7/flo?y=eDUZ0BejkZ0n50RQC0Ar>

NTE NAMES MURPHY VP The Web marketplace has named John Murphy as vice president of product and solution strategy. <http://news.joc.com/cgi-bin7/flo?y=eDUZ0BejkZ0n50RQD0As>

...and exclusively in JoC ONLINE TRADE SCENE by Richard Lawrence AN UNCERTAIN ROAD FOR EXPORTS For the first time in nearly a generation, U.S. exports and imports are in decline. The outlook may may not be much better. <http://news.joc.com/cgi-bin7/flo?y=eDUZ0BejkZ0n50RQE0At>

...and only in JoC WEEK LESSONS FROM VALDEZ Richard M. Larrabee, a retired Coast Guard rear admiral and now head of the Port of New York and New Jersey, says the government can draw valuable lessons from the 1989 oil spill in responding to threats tied to ocean commerce. To subscribe, visit <http://news.joc.com/cgi-bin7/flo?y=eDUZ0BejkZ0n50RHs0AW>

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JoC ONLINE: US alert after terror arrest

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COAST GUARD ALERT AFTER ITALY TERROR ARREST Italian authorities were investigating an Egyptian stowaway hidden in a container furnished with a bed, toilet and communications gear.
<http://news.joc.com/cgi-bin7/flo?y=eDXb0BejkZ0n50RU0Ar>

UPS IN CONSULTING BUSINESS United Parcel Service eyes a lucrative share of the market beyond traditional supply chain services. <http://news.joc.com/cgi-bin7/flo?y=eDXb0BejkZ0n50RU0As>

FEDEX CORP. UPDATES 2Q FORECAST In its first estimate, the company said earnings will range from 40-45 cents per share. <http://news.joc.com/cgi-bin7/flo?y=eDXb0BejkZ0n50RU0At>

CMA CGM WARNS ON PROFITS, SELLS ACL STAKE First-half net income rose 13%, but the carrier said full-year earnings will fall significantly below 2000 results. <http://news.joc.com/cgi-bin7/flo?y=eDXb0BejkZ0n50RU0Au>

SWISSAIR COULD BE GROUNDED AGAIN Flights are in doubt again as the subsidiary that maintains the airline's fleet warned it is running out of cash. <http://news.joc.com/cgi-bin7/flo?y=eDXb0BejkZ0n50RU0Av>

NEW RESTRICTIONS ON BORDER BRIDGES, TUNNELS Trucks in service between the United States and Canada will face tighter security due to new restrictions on bridges and tunnels.
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WORLD TRADE CENTERS' MISSION "STRONGER THAN EVER" The mission of the World Trade Centers Association remains "stronger than ever" despite the destruction of the twin towers in New York where the organization had its headquarters. <http://news.joc.com/cgi-bin7/flo?y=eDXb0BejkZ0n50RUv0Ax>

AIR CARGO SALES AGENTS FORM ALLIANCE A group of air cargo general sales agents have formed the Airline Business Alliance, saying they can offer airlines significant cost and service benefits by combining local market expertise with global coverage. <http://news.joc.com/cgi-bin7/flo?y=eDXb0BejkZ0n50RUw0Ay>

TANK DATABASE GOES ONLINE The American Bureau of Shipping has launched an electronic-based information system for owners of tank containers that provides quick access to inspection reports. <http://news.joc.com/cgi-bin7/flo?y=eDXb0BejkZ0n50RUx0Az>

RUSSIAN LIFELINE FOR KVAERNER Russia's Yukos Oil announced a \$150 million rescue package for Kvaerner that will keep the troubled Anglo-Norwegian company that owns the Philadelphia Shipyard afloat for another week. <http://news.joc.com/cgi-bin7/flo?y=eDXb0BejkZ0n50RUy0A1>

LOGISTICS.COM SIGNS RITE AID The third-largest drug store chain in the United States, has contracted with Logistics.com, the Burlington, Mass.-based transportation management technology company, to provide it with strategic transportation buying services. <http://news.joc.com/cgi-bin7/flo?y=eDXb0BejkZ0n50RUz0A2>

...and only in JoC WEEK A DEFENSE OF THE JONES ACT A new study says shippers in the Puerto Rico trade are enjoying good rates and service. To subscribe, visit <http://news.joc.com/cgi-bin7/flo?y=eDXb0BejkZ0n50RHs0Ah>

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Free Bay Area Wireless Applications Conference Symbol Technologies invites you to Wireless Advantage 2001, Oct. 29 at The Westin Hotel-Santa Clara, CA. Choose from over 25 educational sessions, including WIRELESS ERP, WAREHOUSING & DISTRIBUTION, FIELD FORCE AUTOMATION and LOGISTICS. Reply by 10/19 and attend FREE.
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MINETA: US NEEDS TRANSPORT SECURITY AGENCY The Transportation Secretary wants to create an agency within the DOT to handle security for all modes of transportation. <http://news.joc.com/cgi-bin7/flo?y=eDNI0BejkZ0n50REN0AS>

UPS EARNINGS OFF Earnings slid 19% although international volume continued to grow.
<http://news.joc.com/cgi-bin7/flo?y=eDNI0BejkZ0n50REO0AT>

BOX VOLUME UP AT P&O PORTS Peninsular and Oriental Steam Navigation Co. said its ports business posted strong container volume despite a weaker trading environment. <http://news.joc.com/cgi-bin7/flo?y=eDNI0BejkZ0n50REP0AU>

US, FRANCE TO SET "OPEN SKIES" ACCORD The two countries will try to hammer out an ambitious agreement that will open up air services. <http://news.joc.com/cgi-bin7/flo?y=eDNI0BejkZ0n50REQ0AV>

ZIM OPENS NEW HEADQUARTERS The event took on new meaning since the carrier relocated from New York's World Trade Center just days before the Sept. 11 attacks. <http://news.joc.com/cgi-bin7/flo?y=eDNI0BejkZ0n50RER0AW>

HYUNDAI MERCHANT MARINE EYES CORPORATE SPLIT The carrier will sever connections with parent Hyundai Group in exchange for financial support from creditors. <http://news.joc.com/cgi-bin7/flo?y=eDNI0BejkZ0n50RES0AX>

RUSSIA BANS FLA. MEAT AMID ANTHRAX FEARS Fears of contamination spread beyond the U.S. as Russia banned all meat products and livestock shipped from Florida. <http://news.joc.com/cgi-bin7/flo?y=eDNI0BejkZ0n50RET0AY>

ROYAL NEDLLOYD CONTINUES STOCK BUYBACK The Dutch conglomerate and half-owner of container carrier P&O Nedlloyd and charter airline Martinair said that it has repurchased more than 5% of its issued share capital. <http://news.joc.com/cgi-bin7/flo?y=eDNI0BejkZ0n50REU0AZ>

ARMED MARSHALS FOR SAN DIEGO SHIPS The Coast Guard said its is placing Sea Marshals on all commercial deep-draft vessels moving San Diego Bay. <http://news.joc.com/cgi-bin7/flo?y=eDNI0BejkZ0n50REV0Aa>

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HUB GROUP CANADA NAMES SUPPLY CHAIN DIRECTOR John Mann is the new director of supply chain solutions for the company's Canadian unit. <http://news.joc.com/cgi-bin7/flo?y=eDNI0BejkZ0n50REW0Ab>

ALITALIA CUTS US FREIGHTER SERVICE, FUEL SURCHARGE After the decline in air traffic, the Italian airline will cut U.S. freighter flights. <http://news.joc.com/cgi-bin7/flo?y=eDNI0BejkZ0n50REX0Ac>

MILLENNIUM PORT PROJECT SEEKING DEVELOPERS Louisiana's is ready to begin attracting private developers to meet a deadline for completing the initial phase of the proposed project. <http://news.joc.com/cgi-bin7/flo?y=eDNI0BejkZ0n50REY0Ad>

KINDER MORGAN BUYS CHICAGO, NJ BULK TERMINALS Two more facilities come under the energy concern's growing roster. <http://news.joc.com/cgi-bin7/flo?y=eDNI0BejkZ0n50REZ0Ae>

STINNES UNVEILS WEB-BASED B2B FOR CHEMICALS New technology solutions will offer Web-based tools for the global market. <http://news.joc.com/cgi-bin7/flo?y=eDNI0BejkZ0n50REa0AI>

...and only in JoC WEEK CUSTOMS' NEW AUDIT PLAN The agency has introduced a new compliance-assessment program that it says will cover more importers and be less intrusive. To subscribe, visit <http://news.joc.com/cgi-bin7/flo?y=eDNI0BejkZ0n50QA00AO>

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Sherry A. Quirk (202) 775-6814 squirk@sandw.com

Montina M. Cole (202) 775-6824 mcole@sandw.com

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An Inbound Message For You Has Been Quarantined

Sender	enron.mailsweeper.admin@enron.com
Recipients	['jsteffe@notes.enron.com']
File	steffes-j/deleted_items/515.

You have received this message because someone has attempted to send you an e-mail from outside of Enron with an attachment type that Enron does not allow into our messaging environment. Your e-mail has been quarantined and is being held at the MailSweeper server.

Sender: sbndys@flash.net Date: Wed, 26 Dec 2001 19:48:54 -0500 Subject: Mohamad Bahaa CHATAH Ambassador of Lebanon 2560. Attachment Type: Scenarios/Incoming/Inbound EXE Catcher: A filename matching the file mask was detected: 'nkwashington.exe'. Scenarios/Incoming/Inbound DOC Catcher: A filename matching the file mask was detected: 'dc33.doc'. Scenarios/Incoming/Inbound Image Catcher: 'Selected'.

If the intended email is of valid business-related content and you believe it requires Enron resources to retrieve it, you may call your Help Desk and ask to have it released from quarantine and delivered to your e-mail Inbox. Your message will be scanned and checked for viruses prior to requested release. If it contains a virus or there is reason to suspect it is malicious code, it will not be delivered.

North American Resolution Center: 713 853 1411 European Resolution Center: 0044 207 78 36777 EES Help Desk: 888 853 9797 ETS Solution Center: 713 345 4745 (Houston) or 402 398 7454 (Omaha)

Please DO NOT reply to this address as it is not a monitored system mailbox.

Message 32 of 176

An Inbound Message For You Has Been Quarantined

Sender	enron.mailsweeper.admin@enron.com
Recipients	['alan.comnes@enron.com', 'ray.alvarez@enron.com', 'sarah.novosel@enron.com']
File	steffes-j/deleted_items/597.

You have received this message because someone has attempted to send you an e-mail from outside of Enron with an attachment type that Enron does not allow into our messaging environment. Your e-mail has been quarantined and is being held at the MailSweeper server.

Sender: owner-el00-95@listserv.gsa.gov Date: Tue, 20 Nov 2001 17:44:43 -0500 Subject: Competitive Supplier Group Response to Data Requests of California Parties Email 2 of 4 Attachment Type: Scenarios/Incoming/Inbound CMD Catcher: A filename matching the file mask was detected: 'cjca.cmd'. Scenarios/Incoming/Inbound CMD Catcher: A filename matching the file mask was detected: 'emergency.cmd'. Scenarios/Incoming/Inbound CMD Catcher: A filename matching the file mask was detected: 'cjc7.cmd'.

If the intended email is of valid business-related content and you believe it requires Enron resources to retrieve it, you may call your Help Desk and ask to have it released from quarantine and delivered to your e-mail Inbox. Your message will be scanned and checked for viruses prior to requested release. If it contains a virus or there is reason to suspect it is malicious code, it will not be delivered.

North American Resolution Center: 713 853 1411 European Resolution Center: 0044 207 78 36777 EES Help Desk: 888 853 9797 ETS Solution Center: 713 345 4745 (Houston) or 402 398 7454 (Omaha)

Please DO NOT reply to this address as it is not a monitored system mailbox.

Message 33 of 176

An Inbound Message For You Has Been Quarantined

Sender	enron.mailsweeper.admin@enron.com
Recipients	['alan.comnes@enron.com', 'ray.alvarez@enron.com', 'sarah.novosel@enron.com']
File	steffes-j/deleted_items/603.

You have received this message because someone has attempted to send you an e-mail from outside of Enron with an attachment type that Enron does not allow into our messaging environment. Your e-mail has been quarantined and is being held at the MailSweeper server.

Sender: owner-el00-95@listserv.gsa.gov Date: Tue, 20 Nov 2001 18:16:23 -0500 Subject: Competitive Supplier Group Response to Data Requests of California Parties Email 4 of 8 Attachment Type: Scenarios/Incoming/Inbound CMD Catcher: A filename matching the file mask was detected: 'gasdlyso.cmd'. Scenarios/Incoming/Inbound CMD Catcher: A filename matching the file mask was detected: 'gasdaily.cmd'. Scenarios/Incoming/Inbound CMD Catcher: A filename matching the file mask was detected: 'events4.cmd'.

If the intended email is of valid business-related content and you believe it requires Enron resources to retrieve it, you may call your Help Desk and ask to have it released from quarantine and delivered to your e-mail Inbox. Your message will be scanned and checked for viruses prior to requested release. If it contains a virus or there is reason to suspect it is malicious code, it will not be delivered.

North American Resolution Center: 713 853 1411 European Resolution Center: 0044 207 78 36777 EES Help Desk: 888 853 9797 ETS Solution Center: 713 345 4745 (Houston) or 402 398 7454 (Omaha)

Please DO NOT reply to this address as it is not a monitored system mailbox.

Message 34 of 176

An Inbound Message For You Has Been Quarantined

Sender	enron.mailsweeper.admin@enron.com
Recipients	['alan.comnes@enron.com', 'ray.alvarez@enron.com', 'sarah.novosel@enron.com']
File	steffes-j/deleted_items/604.

You have received this message because someone has attempted to send you an e-mail from outside of Enron with an attachment type that Enron does not allow into our messaging environment. Your e-mail has been quarantined and is being held at the MailSweeper server.

Sender: owner-el00-95@listserv.gsa.gov Date: Tue, 20 Nov 2001 17:47:41 -0500 Subject: Competitive Supplier Group Response to Data Requests of California Parties Email 3 of 4 Attachment Type: Scenarios/Incoming/Inbound CMD Catcher: A filename matching the file mask was detected: 'emrgncy4.cmd'. Scenarios/Incoming/Inbound CMD Catcher: A filename matching the file mask was detected: 'ev_lag4.cmd'. Scenarios/Incoming/Inbound CMD Catcher: A filename

matching the file mask was detected: 'ev_lead4.cmd'.

If the intended email is of valid business-related content and you believe it requires Enron resources to retrieve it, you may call your Help Desk and ask to have it released from quarantine and delivered to your e-mail Inbox. Your message will be scanned and checked for viruses prior to requested release. If it contains a virus or there is reason to suspect it is malicious code, it will not be delivered.

North American Resolution Center: 713 853 1411 European Resolution Center: 0044 207 78 36777 EES Help Desk: 888 853 9797 ETS Solution Center: 713 345 4745 (Houston) or 402 398 7454 (Omaha)

Please DO NOT reply to this address as it is not a monitored system mailbox.

Message 35 of 176

DISCO of the Future Meeting/Dinner 10/23rd-24th: Grand Hyatt Block

Sender	hduncan@caem.org
Recipients	['hduncan@caem.org']
File	steffes-j/deleted_items/163.

MEMORANDUM

TO: Members of the DISCO Forum BY: Hope Duncan, Director of Administration RE: RSVP Requested - - October DISCO Meeting Date: October 18, 2001

The third meeting of the DISCO of the Future Forum will be held on Wednesday, October 24th at the Grand Hyatt Hotel in Washington, DC. The meeting will include a reception and dinner with speaker on Tuesday evening, October 23rd. A complete agenda and meeting materials will be forwarded to you shortly.

For those of you that have not reserved space, please send an email to hduncan@caem.org no later than October 19th at 1:00 pm ET indicating attendance or non attendance for the following:

The Tuesday evening reception and dinner The Wednesday meeting of the DISCO of the Future Forum

Rooms remain in the CAEM block at the Grand Hyatt Hotel (see below). However, as of October 19th at 5:00 pm the block will not remain. To reserve your room, inform the Grand Hyatt staff that you are part of the Center for the Advancement of Energy Markets group.

The meetings are being held in conjunction with the October meeting of the CAEM Board of Directors. Members of the Board will be at the reception and dinner on Tuesday and have been invited to observe the Forum meeting on Wednesday as well.

If you have any questions or require any assistance at all, please contact Hope Duncan at 202.739.0134. We are looking forward to seeing you on October 23rd.

Hotel Information: Grand Hyatt Hotel 1000 H Street NW Washington DC 20001 Phone: 202.582.1234 or 1.800.233.1234 Fax: 202.637.4781 Website: <http://washington.hyatt.com/wasgh/index.html>

Message 36 of 176

Re: EL00-95--AEPCO Responses-- public version of AEPCO's

Sender	joann.scott@ferc.fed.us
Recipients	['el00-95@listserv.gsa.gov']
File	steffes-j/california_issues/ca_refunds/71.

Got it!

cstrother@MSHPC.COM 11/26/01 04:04PM >>>

Before I started having my on e-mail problems today, I told Robert Rosenberg of Slover & Loftus ((202) 347-7170; rdr@sloverandloftus.com) that I would see if I could successfully distribute his Wednesday Nov. 21 message and attachments through the EL00-95 listserv. Thus, I am giving it a try.

However, as I look at the attachments, one is 13 plus megs. I will send that one separately. I might guess that it size is a problem, except that many large files have made it through previously. The file that is coming separately is named "1121trl.pdf".

Below is the text of his original message. Attached are attachments hi provided me separately, but which were supposed to go with that message. Thanks,

"From: EL00-95 List mailto:EL00-95@listserv.gsa.gov] On Behalf Of

Robert Rosenberg Sent: Wednesday, November 21, 2001 3:27 PM To: EL00-95@LISTSERV.GSA.GOV Subject: EL00-95, public version of AEPCO's 11/6/01 filing Attached are the items that Arizona Electric Power Cooperative, Inc. ("AEPCO"), filed today in response to Judge Birchman's 11/15 order on confidentiality: transmittal letter, testimony summary (same as before), AEP-2 (redacted), AEP-8 (made public in its entirety), AEP-10 (made public in its entirety), and certificate of service. Hardcopy (no CD) is also being mailed to the restricted service list."

Channing

Channing D. Strother, Jr. McCarthy, Sweeney & Harkaway, PC 2175 K Street, NW Ste. 600 Washington, DC 20037
Phone: 202-393-5710 x 4045 Fax: 202-393-5721 E-Mail: cstrother@mshpc.com Pager: 1-800-209-0704

Message 37 of 176

RE: PUCT Reporting Requirements - FINAL

Sender	nancy.hetrick@enron.com
Recipients	['jean.ryall@enron.com', 'gloria.ogenyi@enron.com', 'd..steffes@enron.com']
File	steffes-j/deleted_items/437.

Yes, all REPS are required to report this information on the pilot. In the pilot there is no PTB, that becomes effective on January 2, 2002, market opening. These requirements are defined in Substantive Rule 25.431(j)(3)(B) and Project 22384 - Implementation Issues Related to Retail Competition Pilots. Rebecca Fite is the EES point person who is working with EES internal resources and CSC to obtain the required data. Please let me know if you have additional questions or concerns.

Nancy A. Hetrick Enron Corp. Director, Government Affairs Phone: 712-366-3399 Pager: 888-912-1426

-----Original Message-----

From: Steffes, James D. Sent: Monday, October 29, 2001 7:21 AM To: Hetrick, Nancy Cc: Ryall, Jean; Ogenyi, Gloria
Subject: RE: PUCT Reporting Requirements - FINAL

Do all REPs have to report this information - including our customer complaints? Even if we only serve non-PTB customers? Who is tracking this internally assuming we have to file it? Do the business people understand this obligation?

Jim

-----Original Message-----

From: Hetrick, Nancy Sent: Saturday, October 27, 2001 1:32 AM To: Fite, Rebecca; 'ahafner2@csc.com' Cc: Keene, Patrick; Lindberg, Susan; Nicolay, Christi L.; Ogenyi, Gloria; Ryall, Jean; Steffes, James D.; Twiggs, Thane Subject: PUCT Reporting Requirements - FINAL

Attached is the final report requirements and reporting template to be used for the draft report to the PUCT on October 31st and the November 15h report to be filed with the PUCT. I had provided due dates in the previous email, but please have the October 31st information to me so I can send to the PUCT by 2:00 p.m., October 30th. I would like to have the

November 15th report by COB November 12th so we can properly prepare the filing. Thanks. << File: PilotStatusReportAtt1.doc >> << File: PilotStatusReportTemplate1.doc >>

Nancy A. Hetrick Enron Corp. Director, Government Affairs Phone: 712-366-3399 Pager: 888-912-1426

Message 38 of 176

Next Steps

Sender	d..steffes@enron.com
Recipients	[c..williams@enron.com]
File	steffes-j/sent_items/842.

Bob --

When should we file our complaint at the CPUC?

Jim

-----Original Message-----

From: Hughes, Evan Sent: Friday, August 24, 2001 11:52 AM To: Steffes, James D.; Bob Williams@ENRON; Mellencamp, Lisa Subject: Re: SCE Direct Access Bills

fyi -- this just came across my screen. ----- Forwarded by Evan Hughes/HOU/EES on 08/24/2001 11:51 AM -----

Janet.Covington@sce.com on 08/24/2001 11:44:53 AM To: "Diann Huddleson" <dhuddles@enron.com> cc: "Evan Hughes" <ehughes2@enron.com>, Diane.Romeyko@sce.com, Matt.Pagano@sce.com Subject: Re: SCE Direct Access Bills

Diann,

Your billing dispute has been reviewed and SCE has determined that all charges were correctly calculated. New accounts were established as a result of the change in direct access status and financial relationship and all amounts are properly due and owing.

Please feel free to contact your Account Manager Matt Pagano should you require assistance with regard to payment. These bills are due and payable and subject to further collection activity which may include Late Payment Charges and/or reversion to dual billing if they remain unpaid.

Please feel free to call me if you have any questions regarding this matter.

Janet L. Covington Account Manager ESP/AMS Services Division SSID Administration Bldg., First Floor 7300 Fenwick Lane Westminster, CA 92683 Phone: 714-895-0198 (54198) Fax: 714-895-0347 (54347) janet.covington@sce.com

"Diann Huddleson" To: janet.covington@sce.com <dhuddles@enr cc: diane.romeiko@csc.com, "Evan Hughes" on.com> <ehughes2@enron.com> Subject: SCE Direct Access Bills 08/20/2001 03:24 PM

Janet, I think I've cleaned this thoroughly. Let me know if you find discrepancies. Thanks.

(See attached file: SCE_DA_Bills_081701.xls) (See attached file: SCE_DA_Bills_081701.xls)

Janet,

With reference to the bills listed on the attached, pursuant to Rule 22 and Rule 10A we are disputing that any charges are properly due and owing on these accounts. Each of these accounts has a credit balance. We are therefore withholding payment.

(See attached file: SCE_DA_Bills_081701.xls) (See attached file: SCE_DA_Bills_081701.xls)

- SCE_DA_Bills_081701.xls - SCE_DA_Bills_081701.xls

<Embedded Picture (Device Independent Bitmap)>

Message 39 of 176

Argus Power Europe and Argus Asia Gas & Power

Sender	r-7-56294-3597217-2-2146-us2-bee9e2ee@xmr3.com
Recipients	['d..steffes@enron.com']
File	steffes-j/inbox/364.

=20 =09=09=09 Energy Argus Global. Pricing. Analysis. _____ Coal COAL Daily= Coal Transportation Manual Coal Transportation Report Environment AIR Da= ily Clean Air Compliance Review Power Latin American Power Watch New Powe= r Plants Projects - Central America New Power Plants Projects - US U.S. Pow= er East U.S. Power West Weekly Power Plays Transportation Intermodal Busi= ness Rail Business Rail Supplier News To find out more email: rlippock@ene= rgyargus.com or telephone: 202-775-0240 ext 304 =09=09ARGUS POWER EUROP= E AND ARGUS ASIA GAS & POWER Respond today to this FREE Trial Offer! Dea= r Colleague: Energy Argus has just launched two new bi-monthly publicati= ons that focus on the European and Asian energy markets - Argus Power Euro= pe and Argus Asia Gas & Power. AND - we'd like to offer you a FREE no-obl= igation trial to both! Why Argus Power Europe and Argus Asia Gas & Power?= Because you need to know what's going on in the international markets. T= hese markets are deregulating and expanding, causing opportunities oversea= s - and threatening to steal away your own domestic opportunies as well. No= w more than ever, you need to be in the know and stay ahead of your competi= tion. Argus Power Europe covers these essential issues: Consolidation -= who's buying what, and why; Price trends and analysis; Analysis of the = differences in the European markets - from the Nordic market's complex stru= cture and the dominant UK and German markets to the EU expansion's impact o= n new markets in the Czech Republic, Hungary and Poland. Much, much more! = Argus Asia Gas & Power covers the electricity and natural gas markets in= Asia - from upstream to downstream. It's power coverage focuses on restr= icturing, financing, competition and demand (both residential and commercia= l). It's gas coverage focuses on supply to and from the Asia region - inc= luding proposals to ship for the first time liquefied natural gas from Asia= and Australia to the US West Coast, a development that may have a serious = impact on the US's involvement in the region's gas industry. SIGN UP TODA= Y! To start your FREE, no-obligation trial to one or both newsletters, ju= st reply to this email and let us know which one(s) you'd like to receive! = rlippock@energyargus.com . If you would rather not receive Argus prom= otions please follow the opt out instructions below: Energy Argus 1700 K S= treet NW Suite 1202 Washington DC 20006 Tel: 202-775-0240 Fax: 202-872-8045= rlippock@energyargus.com www.energyargus.com =09

If you would prefer not to receive further messages from this sender: 1. Click on the Reply button. 2. Replace the Subject field with the word REMOVE. 3. Click the Send button. You will receive one additional e-mail message confirming your removal.

Message 40 of 176

RE: EPSA Draft Motion to Intervene and Protest in the WestConnect

Sender	alan.comnes@enron.com
Recipients	['dave.perrino@enron.com', 'steve.walton@enron.com', 'd..steffes@enron.com', 'ray.alvarez@enron.com', 'l..nico...]
File	steffes-j/california_issues/360.

This filing strongly endorses the GridSouth Market Monitoring Plan in lieu of the non-plan filed by WestConnect? Are we OK with that?

Dave or Christi--Can you send me or point me to the GridSouth MM Plan? Thanks,

Ray or Dave, can you make the Wed EPSA call where this filing will be discussed?

Alan Comnes

-----Original Message-----

From: Steffes, James D. Sent: Monday, November 12, 2001 9:54 AM To: Perrino, Dave Cc: Walton, Steve; Comnes, Alan; Alvarez, Ray Subject: RE: EPSA Draft Motion to Intervene and Protest in the WestConnect RTO filing

Thanks.

-----Original Message-----

From: Perrino, Dave Sent: Monday, November 12, 2001 11:52 AM To: Steffes, James D. Cc: Walton, Steve; Comnes, Alan; Alvarez, Ray Subject: RE: EPSA Draft Motion to Intervene and Protest in the WestConnect RTO filing

Jim,

I was not aware EPSA was filing an intervention to the WestConnect tariff. After a cursory review of the attachment however, it very much lines up with what I have sent to Ray and Steve. We focus a bit more on the lack of definition of a congestion management plan as well as hit on "hints" of where WestConnect is probably going to stay (contract path) based upon some clues in the filing. We focus more on existing contracts (lack of conversion) as well as additional comments on the planning appendix. They hit just about every other point we cover, independence, or lack thereof being the key.

Thanks,

Dave

-----Original Message-----

From: Steffes, James D. Sent: Monday, November 12, 2001 9:43 AM To: Perrino, Dave Cc: Walton, Steve; Comnes, Alan Subject: FW: EPSA Draft Motion to Intervene and Protest in the WestConnect RTO filing

Dave --

I assume you are following this?

Jim

-----Original Message-----

From: "Michael Reddy" <mreddy@epsa.org>@ENRON Sent: Monday, November 12, 2001 10:54 AM To: acomnes@enron.com; Hawkins, Bernadette; Nersesian, Carin; Nicolay, Christi L.; Fulton, Donna; Steffes, James D.; Scheuer, Janelle; Hartsoe, Joe; Shelk, John; Noske, Linda J.; Robertson, Linda; Alvarez, Ray; Shapiro, Richard; Novosel, Sarah; Mara, Susan; Lindberg, Susan; Hoatson, Tom Subject: EPSA Draft Motion to Intervene and Protest in the WestConnect RTO filing

MEMORANDUM

TO: Regulatory Affairs Committee Power Marketers Working Group

FROM: Jim Steffes, Regulatory Affairs Committee Chair Bob Reilley, Power Marketers Working Group Chair Julie Simon, Vice President of Policy Erin Perrigo, Manager of Policy

DATE: November 12, 2001

RE: EPSA Draft Motion to Intervene and Protest in the WestConnect RTO filing ? Filing due November 15th ? Attached is EPSA's motion to intervene and protest in the WestConnect RTO filing (Docket Nos. EL02-9-000 and RT02-1-000). The draft primarily focuses on independence and governance issues, however also highlights the WestConnect tariff, congestion management, market monitoring, pricing and interconnection aspects of the filing. For example, the draft argues that the participating transmission owners retain too much authority over RTO operations, that FERC should require all RTO load to take service under the WestConnect tariff, and that WestConnect should adopt the GridFlorida market monitoring plan.

Interventions are due to FERC on Thursday, November 15th. Please have any edits or comments to Erin Perrigo at eperrigo@epsa.org by noon on Wednesday, November 14th. We'll also discuss the draft on this week's Regulatory Affairs

conference call on Wednesday, November 14th, at 3:30 P.M. (EST). To access the call, dial 1-800-937-6563. Ask for the Julie Simon/EPSA Call. If you have further questions or comments, please contact Erin Perrigo at eperrigo@epsa.org or 202-628-8200.

Attachment

Michael Reddy Policy/Research Assistant EPSA 1401 New York Avenue, NW, 11th Floor Washington, DC 20005 (202) 628-8200 (202) 828-8260 Fax

- WestConnect Protest.DOC << File: WestConnect Protest.DOC >>

Message 41 of 176

RE: ERCOT LSE's

Sender	nancy.hetrick@enron.com
Recipients	['Rogers; Ochsner', 'Jeremy; Holmes', 'David; Dietrich', 'Mark; Hetrick', 'Sean; Bernstein', 'Nancy; Herndon',...]
File	steffes-j/deleted_items/97.

I would agree. I have just been trying to answer any question that are posed. I just wanted to make sure that you were aware of this in case you were asked any questions. Thanks.

Nancy A. Hetrick Enron Corp. Director, Government Affairs Phone: 712-366-3399 Pager: 888-912-1426

-----Original Message-----

From: Steffes, James D. Sent: Wednesday, October 17, 2001 7:15 AM To: Hetrick, Nancy; Kingerski, Harry Subject: RE: ERCOT LSE's

this is a fight we should avoid.

-----Original Message-----

From: Hetrick, Nancy Sent: Wed 10/17/2001 5:59 AM To: Kingerski, Harry; Steffes, James D. Cc: Subject: FW: ERCOT LSE's

FY!! Please see the emails below. I just wanted to let you know that this "political" battle within EES/EWS is brewing. I have been providing support whenever I have been asked, e.g. answering questions, research, etc. I will be in my office tomorrow if you would like to discuss or have any questions. Otherwise you can page me today (I have meetings and flights, but I will call if I can.) Thanks.

Nancy A. Hetrick Enron Corp. Director, Government Affairs Phone: 712-366-3399 Pager: 888-912-1426

-----Original Message-----

From: Ader, Jeff Sent: Tuesday, October 16, 2001 12:21 PM To: Wagner, Joseph Cc: Delaine, David; Dietrich, Janet; Blachman, Jeremy; Holmes, Sean; Bernstein, Mark; Hetrick, Nancy; Herndon, Rogers; Ochsner, Preston

Subject: Re: ERCOT LSE's

Joe,

I requested a meeting with you yesterday to work with you and convey what we have learned over the last three months by working with regulatory and the ERCOT ISO to utilize and create additional LSE accounts. As you were informed by Nancy Hetrick of regulatory all three currently available LSE account are committed by Structured Supply for use under currently negotiated masters. We requested the meeting with you yesterday to explain what we were doing and why we needed the other three EES LSE accounts. We also took the time to explain the process for establishing new LSE accounts, under a LLC structure which is not complicated, but the structure that the new LSE accounts would be created under (SPV) is inconsistent with the masters negotiated and EES would not be able to perform under these masters.

We have tried to work with you in cooperation to accomplish your goals consistent with the constraints of the ERCOT rules. We have explained our needs and the reason for them. We conveyed our interest in working together to accomplish the greater good for the company and offered our help in any way we could. You mark and I agreed that it would be easier to help each other and not duplicate efforts. We were appreciative of your willingness to proceed consistent with this spirit of cooperation. It disheartens and surprises me that you would leave the meeting with this understanding and in agreement of the business situation and send an e-mail the next morning, without picking up the phone or stopping by to discuss this and just attempt to dictatorially commandeer the LSE accounts that you knew were committed and why they were committed.

Moreover; you told us that you thought you might need one more and you have attempted to take three more.

Best regards,

Jeff

From: Joseph Wagner/ENRON@enronXgate on 10/16/2001 09:14 AM To: Mark Bernstein/HOU/EES@EES, Jeff Ader/HOU/EES@EES cc: Nancy Hetrick/ENRON@enronXgate, Rogers Herndon/ENRON@enronXgate, Preston Ochsner/ENRON@enronXgate Subject: ERCOT LSE's

Thank you for taking the time to discuss the LSE situation in ERCOT. The present LSE was set up by EES and is being utilized by EWS Retail and EWS Services Group, for physical delivery in ERCOT for EES load. In order to better manage EES volume and structure growth in ERCOT, billing issues, and optimization of the present and future portfolio, EES/EWS Retail will require the use of the sub LSE's available under EES's existing LSE arrangement. Structured Supply will be responsible for the creation of any LLC's that need to be created to facilitate additional LSE availability. If you have any questions or comments, please either email or call me (ext 33143). Thanks.

-Joe

Message 42 of 176

RE: PaPUC assessment of \$147,000 to Enron

Sender	d..steffes@enron.com
Recipients	['evan.hughes@enron.com', 'dan.leff@enron.com']
File	steffes-j/sent_items/37.

thanks

-----Original Message-----

From: Hughes, Evan Sent: Monday, September 03, 2001 5:52 PM To: Steffes, James D. Cc: Leff, Dan Subject: Re: PaPUC assessment of \$147,000 to Enron

I have not seen the assessment -- but let me reach out to our team and get back with you.

Evan

From: James D Steffes/ENRON@enronXgate on 09/03/2001 05:02 PM To: Tom Hoatson/ENRON@enronXgate, Christi L Nicolay/ENRON@enronXgate, Steve Montovano/ENRON@enronXgate, Vicki Sharp/HOU/EES@EES, Evan Hughes/HOU/EES@EES cc: Subject: PaPUC assessment of \$147,000 to Enron

Vicki & Evan --

Please see the e-mail trail below. The PAPUC has assessed EES \$147,000 for its costs. We intend to protest. Do you have any idea of who this bill would go to?

Jim

-----Original Message-----

From: Hoatson, Tom Sent: Sunday, September 02, 2001 10:09 AM To: Nicolay, Christi L.; Montovano, Steve Cc: Steffes, James D.; 'kmoody@wolfblock.com'; Moore, Janet H. Subject: RE: ASAP!! EES' objections to PaPUC assessment of \$147,000

I will talk with Kevin on Tuesday (we have traded phone calls) and get this done. I may need some help in identifying who in EES might have the assessment and fax it to Kevin. I will keep you informed.

-----Original Message-----

From: Nicolay, Christi L. Sent: Friday, August 31, 2001 5:24 PM To: Hoatson, Tom; Montovano, Steve Cc: Steffes, James D.; 'kmoody@wolfblock.com'; Moore, Janet H. Subject: ASAP!! EES' objections to PaPUC assessment of \$147,000

Tom/Steve -- Janet Moore (the ENA attorney) is on vacation, so cannot handle. I do not know if Enron has received the assessment, but in an abundance of caution, this objection probably needs to be filed on Tues. 9/4 (per Kevin Moody). Please call me if one of you knows about this and can take care of it, otherwise I'll get it done on Tues.

Jim --do you know who at EES may have gotten this. MAIN THING IS THAT THE VERIFICATION NEEDS TO BE DONE--CURRENTLY IN TOM HOATSON'S NAME. (Also, may need an RCR) Thanks. Christi wk 713-853-7007 home 713-853-7007

-----Original Message-----

From: Kevin J. Moody [mailto:KMoody@wolfblock.com] Sent: Friday, August 31, 2001 4:17 PM To: Nicolay, Christi L. Subject: Enron Energy Services' objections to PaPUC assessment

Christie, below is the message I sent to Tom. Attached are the objections. I'll call you Tuesday morning to see where things stand on this.

Tom, the PaPUC has recently assessed gas marketers for the regulatory expenses for the PUC, the OCA and the OSBA. Enron Energy Services' assessment for all three is \$147,277.

Unless you tell us to the contrary, we assume that you want us to file objections to the assessments. Attached are objections that we have prepared. Can you please fax us a copy of the assessment notice Enron received? We believe the assessments may have been received around 8/19-8/21.

Objections must be filed within fifteen (15) days of receipt of the assessment notice. The 15-day objection period begins on the date the certified mail return receipt is signed. If the 15th day falls on a weekend or a legal holiday, the last date for filing is extended to the next business day.

The statutes require the assessments to be paid within 30 days of receipt, even though objections are filed. The payments must be made "under protest" in order to be refunded under the statutory procedure, which we believe is inadequate.

We are attempting to avoid the payment obligation thru a preliminary injunction request in Commonwealth Court, but we have no assurance that the court will act before the 30th day for payment. If not, the assessment must be paid under protest. If necessary, we will provide a cover letter for the protest payment to the PUC.

Please call me if you have any questions or comments. Thanks.

Kevin J. Moody, Esq. Wolf, Block, Schorr and Solis-Cohen LLP 212 Locust Street, Suite 300 Harrisburg, PA 17101 (717) 237-7187 (717) 237-7161 (fax)

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Message 43 of 176

RE: Resignation from Enron

Sender	richard.shapiro@enron.com
Recipients	['d..steffes@enron.com', 'steve.walton@enron.com']
File	steffes-j/inbox/142.

Steve: You're a very good man and did great work for us...Thank you. All of us wish you the very best of luck. Warm regards....Rick

-----Original Message-----

From: Walton, Steve Sent: Thu 12/20/2001 10:01 AM To: Steffes, James D.; Shapiro, Richard Cc: Subject: Resignation from Enron

Jim and Rick,

I will am resigning from Enron and terminating my employment, effective December 31, 2001. At the first of the year, I will be joining the consulting team building RTO West.

It has been a great opportunity to work with you here at Enron. I have learned a great deal. Thanks for all you kindnesses to me.

Steve

Contact Information:

Steven L. Walton 17231 S. Bristle Pine Dr. Spring, TX 77379 Phone 281-251-5301 Cell 713-594-3142

Message 44 of 176

RE: 357983_1.DOC

Sender	d..steffes@enron.com
Recipients	['drom@pjm.com']
File	steffes-j/sent_items/1463.

Rick -

Please be advised that James D. Steffes will replace Tom Hoatson as Enron's representative to the PJM Members Committee.

Thank you,

James D. Steffes Vice President, Government Affairs Enron Corp 1400 Smith, eb4716c Houston, TX 77002 713-853-7673 (p) 713-646-8160 (f) 713-851-2499 (c)

-----Original Message-----

From: drom@pjm.com@ENRON Sent: Wednesday, December 05, 2001 11:43 AM To: Steffes, James D. Subject: 357983_1.DOC

As we discussed today, PJM will be disclosing the attached statement at the PJM Energy Markets Committee meeting in Wilmington, DE this afternoon.

I look forward to receiving from you a formal notification that you have become Enron's PJM Members Committee representative and also providing me with a name and address to forward the November 2001 PJM bill.

Thanks.

Rick Drom (610) 666-8939 - 357983_1.DOC << File: 357983_1.DOC >>

Message 45 of 176

Re: SWC/MWD Response to Presiding Judge's Nov. 15 Order

Sender	dmm@dwgp.com
Recipients	[el00-95@listserv.gsa.gov]
File	steffes-j/deleted_items/639.

Attached is the State Water Contractors and The Metropolitan Water District of Southern California's Response to the Presiding Judge's November 15 Order Lifting Protective Order. Michael Kunselman Swidler Berlin Shereff Friedman, LLP 3000 K Street, NW, Suite 300 Washington, DC 20001 (202) 295-8465 The preceding E-mail message contains information that is confidential, may be protected by the attorney/client or other applicable privileges, and may constitute non-public information. It is intended to be conveyed only to the designated recipient(s). If you are not an intended recipient of this message, please notify the sender at (202) 295-8465. Unauthorized use, dissemination, distribution, or reproduction of this message is strictly prohibited and may be unlawful.

Daisy M. Matthews Duncan, Weinberg, Genzer & Pembroke, P.C. 1615 M Street, N.W. Suite 800 Washington, D.C. 20036 202-467-6370 202-467-6379 (fax)dmm@dwgp.com - SWC-ResptoProtOrder11.21.doc

Message 46 of 176

Western Govt Affairs

Sender	d..steffes@enron.com
Recipients	['steve.walton@enron.com', 'dave.perrino@enron.com', 'alan.comnes@enron.com']
File	steffes-j/sent_items/888.

Mike Roan and Tom Hoatson would be the best.

Jim

-----Original Message-----

From: Comnes, Alan Sent: Tuesday, October 02, 2001 6:32 PM To: Perrino, Dave; Steffes, James D.; Walton, Steve Subject: RE:

Dave, Jim, Steve

I talked to Belden and he is looking forward to the meeting next week.

He is interested in talking about market structure. He recommends that we get someone who really understands the PJM market structure. I suggested Mike Roan in an earlier email to Dave and would reiterate my suggestion that we invite him or someone else who knows PJM.

He also wants to discuss our RTO Week position at the meeting. If that's too late, we should talk to him in advance of next Wed.

That's it for now,

Alan C.

-----Original Message-----

From: Perrino, Dave Sent: Tuesday, October 02, 2001 3:48 PM To: Comnes, Alan Subject: Importance: High

<< File: Western Regional Governmental Affairs meeting 10_9 and 10.doc >>

David F. Perrino Director, Government Affairs Enron Corporation 101 California Street, Suite 1950 San Francisco, CA 94111 Phone: 415.782.7801 Fax: 415.782.7854 Mobile: 415.794.8740

Message 47 of 176

RE: FPL

Sender	d..steffes@enron.com
Recipients	['beustis@romcapital.com']
File	steffes-j/sent_items/1381.

I'll ask around floor. Given my background, this position does not sound like the best fit - I'd rather be more on the long-term contracting (origination) side or business development. Thanks for the inquiry.

As you know, things are pretty crazy right now here at Enron. I intend to take the week off after Thanksgiving and intend to give you a call during that period. Have a great Thanksgiving.

Jim

-----Original Message-----

From: "Barbara Eustis" <beustis@romcapital.com>@ENRON Sent: Tuesday, November 20, 2001 9:40 AM To: jsteffe@enron.com Subject: FPL

Hi Jeff. Hope all is well. I have a position coming up for a trader at FPL in West Palm Beach - don't have many specifics yet, but they are dying for someone from Enron. Would this be of interest to you or anyone you know? Let me know.

Hope you have a great Thanksgiving. I look forward to hearing from you.

Cheers, Barbara

Barbara Eustis Principal Management and Capital Partners 805 Third Avenue New York, NY 10022 office: 646-735-8872 fax: 646-735-8888 cell: 914-419-6590 www.romcapital.com beustis@romcapital.com

- Barbara Eustis.vcf << File: Barbara Eustis.vcf >>

Message 48 of 176

RE: DSTAR Advidosry Committee Dues

Sender	d..steffes@enron.com
Recipients	['dave.perrino@enron.com', 'steve.walton@enron.com']
File	steffes-j/sent_items/106.

Fine.

Jim

-----Original Message-----

From: Perrino, Dave Sent: Wednesday, September 05, 2001 2:08 PM To: Steffes, James D. Cc: Walton, Steve Subject: DSTAR Advidosry Committee Dues

Jim,

Next week is the annual DSTAR meeting. Our dues will be due on Sept 11, the fee is \$250.00. If there is no problem I plan on writing a check, obtaining a receipt and putting this charge on my expense report. I just found out about this requirement, hence the late notice to you. If there is any problem, please let me know.

FYI, the benefits that Enron would receive from this would be the ability to run for a place on the Advisory Board, which I am doing. The Advisory Board works directly with the (currently not-so) independent DSTAR Board. If anything, it gets us close to the ears of the decision makers and I would expect that after the TO's file in October the Board may regain some of their much needed independence, at which point we'd be in a good position to influence policy.

Kind Regards,

Dave

David F. Perrino Director, Government Affairs Enron Corporation 101 California Street, Suite 1950 San Francisco, CA 94111 Phone: 415.782.7801 Fax: 415.782.7854 Mobile: 415.794.8740

Message 49 of 176

ISO Depositions in EL00-95-045

Sender	mnkunselman@swidlaw.com
Recipients	['el00-95@listserv.gsa.gov']
File	steffes-j/deleted_items/50.

Parties: On October 12, the ISO notified the parties through Listserv that Ean O'Neill would be available on October 22 and 23 in Folsom, California, should any party desire to depose her on matters relevant to her testimony filed on October 9. Because no party has indicated a desire to depose Ms. O'Neill at that time, the ISO no longer intends to hold her available. The depositions of Dr. Hildebrandt and Messrs. Rothleder and Detmers will go forward during the week of October 22 as noted in the ISO's posting of October 12 and as subsequently noticed by certain sellers. If anyone has any questions, please contact Phil Jordan immediately at (202) 424-7757. Michael Kunselman Swidler Berlin Shereff Friedman, LLP 3000 K Street, NW, Suite 300 Washington, DC 20001 (202) 295-8465 The preceding E-mail message contains information that is confidential, may be protected by the attorney/client or other applicable privileges, and may constitute non-public information. It is intended to be conveyed only to the designated recipient(s). If you are not an intended recipient of this message, please notify the sender at (202) 295-8465. Unauthorized use, dissemination, distribution, or reproduction of this message is strictly prohibited and may be unlawful.

Message 50 of 176

Re: Request for Unredacted Testimony

Sender	jrs@duncanallen.com
Recipients	['el00-95@listserv.gsa.gov']
File	steffes-j/california_issues/ca_refunds/35.

I request the same and have signed all applicable protective order certificates as well.

Jon Stickman

-----Original Message-----

From: Channing Strother [mailto:cstrother@MSHPC.COM] Sent: Thursday, November 08, 2001 11:17 AM To: EL00-95@LISTSERV.GSA.GOV Subject: Re: Request for Unredacted Testimony

I request the same and have signed all applicable protective order certificates and am otherwise eligible to receive all protected documents. My client, Vernon, has made the required certification.

Thanks,

Channing D. Strother, Jr. McCarthy, Sweeney & Harkaway, PC 2175 K Street, NW Ste. 600 Washington, DC 20037 Phone: 202-393-5710 x 4045 Fax: 202-393-5721 E-Mail: cstrother@mshpc.com Pager: 1-800-209-0704

-----Original Message-----

From: EL00-95 List [mailto:EL00-95@listserv.gsa.gov] On Behalf Of Roberts, Richard Sent: Wednesday, November 07, 2001 10:51 PM To: EL00-95@LISTSERV.GSA.GOV Subject: Request for Unredacted Testimony

To all parties that did not electronically distribute protected testimony and exhibits, please forward electronic versions of the protected documents to me at RRoberts@steptoe.com. I have signed the protective order and am eligible to review documents designated "Not available to competitive duty personnel."

Thank you,

Rick Roberts

Message 51 of 176

RE: Merger analysis

Sender	richard.shapiro@enron.com
Recipients	['Steffes', 'James D.', 'Shapiro', 'Richard']
File	steffes-j/deleted_items/585.

Please send it...I'm going to be intimately involved in the regulatory approvals process. Thanks. I'll give you a call early next week to discuss.

-----Original Message-----

From: Seabron Adamson [mailto:seabron.adamson@frontiereconomics.com] Sent: Tuesday, November 20, 2001 11:14 AM To: Steffes, James D.; Shapiro, Richard Subject: Merger analysis

I realize both of you are probably crazy busy, but I thought I'd drop a line. I hope everything is going OK during the upheaval.

I have a very good argument (and paper by an academic) to send you regarding market power analysis for the Enron-Dynegy merger approval process if you are involved in all of that. Seems like the FERC is going to be trying very hard to figure out how to do this.

All the best,

Seab

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Seabron Adamson Frontier Economics Inc Two Brattle Square Cambridge, MA 02138 USA Ph: (617) 354-0060 Fax: (617) 354-0640 seabron.adamson@frontier-economics.com

www.frontier-economics.com

Message 52 of 176

RE: Causes and Lessons of the CA Electricity Crisis - by the CBO

Sender	d..steffes@enron.com
Recipients	[dave.perrino@enron.com]
File	steffes-j/sent_items/274.

Talk with John Shelk in our DC office.

Jim

-----Original Message-----

From: Perrino, Dave Sent: Monday, October 08, 2001 1:25 PM To: Steffes, James D. Cc: Nicolay, Christi L.; Comnes, Alan; Karen Denne (E-mail); Walton, Steve; Landwehr, Susan M.; Mara, Susan; Kaufman, Paul Subject: Causes and Lessons of the CA Electricity Crisis - by the CBO

Jim,

Last week some time I had been on the distribution of a paper published by the CBO entitled, "Causes and Lessons of the CA Electricity Crisis". In reviewing this paper several things struck me. The paper is not particularly accurate, they make unsubstantiated claims of market power abuse, they ignore the lack of implementation of demand-side response programs that were supposed to be a integral part of the AB1890 and they use inappropriate terms, such as "Idle" when describing plants that were unavailable because of maintenance or repair.

My reason for writing is to ask you, how politically influential is a paper like this? Are papers published by the CBO looked at as the authority on problems, especially with those associated with the problems experienced in CA? And if so, because of some of the mis-representations it contains, do we want to develop a fact sheet for our folks in DC to use to refute some of the claims made in this paper?

Thanks,

Dave

David F. Perrino Director, Government Affairs Enron Corporation 101 California Street, Suite 1950 San Francisco, CA 94111 Phone: 415.782.7801 Fax: 415.782.7854 Mobile: 415.794.8740

Message 53 of 176

PRIVILEGED AND CONFIDENTIAL - Scott Jones Draft

Sender	donk@prestongates.com
Recipients	[]
File	steffes-j/california_issues/240.

Attached is the draft testimony of Scott Jones.

Comments should be received no later than 3:00 PM EST on Sunday, August 26. All comments and suggestions need to be in writing and can be faxed (not E-mailed) to Dan Watkiss at 202-857-2131. Also, if your suggestion is a proposed addition, please write out the exact language you would propose we incorporate into the testimony and where you would place the addition.

Donald A. Kaplan, Esq. Preston Gates Ellis & Rouvelas Meeds LLP Suite 500 1735 New York Avenue, N.W. Washington, D.C. 20006 Ph: (202) 662-8466 Fax: (202) 331-1024 donk@prestongates.com

(See attached file: TFG SJones Draft 8-25-01.doc)(See attached file: Exhibit STJ-6.xls)(See attached file: Exhibit STJ-3.xls)(See attached file: Exhibit STJ-4.xls)(See attached file: Exhibit STJ-5.xls)(See attached file: Exhibit STJ-2.doc)

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<<TFG SJones Draft 8-25-01.doc>> <<Exhibit STJ-6.xls>> <<Exhibit STJ-3.xls>> <<Exhibit STJ-4.xls>> <<Exhibit STJ-5.xls>> <<Exhibit STJ-2.doc>>

- TFG SJones Draft 8-25-01.doc - Exhibit STJ-6.xls - Exhibit STJ-3.xls - Exhibit STJ-4.xls - Exhibit STJ-5.xls - Exhibit STJ-2.doc

Message 54 of 176

RE: UC/CSU Customer Complaint -- Quail Ridge Research Station

Sender	tom.riley@enron.com
Recipients	['susan.mara@enron.com', 'jeff.dasovich@enron.com', 'mike.smith@enron.com', 'd..steffes@enron.com', 'evan.hugh...]
File	steffes-j/ees_mgmt/18.

Jim - I will look into and get back to you.

Tom

-----Original Message-----

From: Smith,Mike Sent: Wednesday, October 31, 2001 7:18 AM To: James D Steffes/ENRON@enronXgate@ENRON Cc: Riley, Tom; Hughes,Evan; Susan J Mara/ENRON@enronXgate@ENRON; Jeff Dasovich/ENRON@enronXgate@ENRON; Wu,Andrew Subject: Re: UC/CSU Customer Complaint -- Quail Ridge Research Station

Sounds like a call for Tom to make. Let me know if we can help.

From: James D Steffes/ENRON@enronXgate on 10/30/2001 05:08 PM To: Tom Riley/Western Region/The Bentley Company@Exchange, Mike D Smith/HOU/EES@EES, Evan Hughes/HOU/EES@EES cc: Susan J Mara/ENRON@enronXgate, Jeff Dasovich/ENRON@enronXgate Subject: UC/CSU Customer Complaint -- Quail Ridge Research Station

Tom --

I received a call today from the CPUC (came through the main Enron number) - a CPUC staffer named Joyce at 415-703-2199 (no one was interested in giving the last names).

Someone named Dan at the Quail Ridge Research Station (7001 Hwy 128 Napa, CA 94558) called the CPUC to complain that he was inappropriately switched from PG&E to Enron. It's a strange situation - the Universities own the bldg and land but a Trust pays the bills. He says that "the facility isn't anywhere near the campus."

The PG&E account number is ZNL8242005. His phone number is 503-752-0873.

I told him that we would look into this and get back by end of business Thursday.

The CPUC staffer is Joyce at 415-703-2199 (no one was interested in giving the last names).

My guess is that UC/CSU listed this account on a switch request but didn't ask Dan. What should we do??

Jim

Message 55 of 176

EL00-95: SMUD Testimony

Sender	aclair@moheck.com
Recipients	[el00-95@listserv.gsa.gov]
File	steffes-j/california_issues/ca_refunds/110.

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Attached please find a cover letter, summaries, Exhibit SMD-1 (Direct Testimony of James Tracy) and Exhibit SMD-3 (Affidavit of Douglas Calvert) which were filed with FERC this afternoon. The remainder of the documents filed today on behalf of the Sacramento Municipal Utility District, Exhibits SMD-2 and SMD-5 through SMD-8, include protected materials and have been sent via U.S. mail to the restricted service list.

Adrienne Clair Morrison and Hecker, LLP 1150 18th Street, NW Suite 800 Washington, DC 20036 (202) 785-9100 (phone) (202) 785-9163 (fax)

- 95letter.doc - calvert.doc - sumcalvert.doc - summtracy.doc - tracy.doc

Message 56 of 176

Re: EL00-95, proposed revision to the ISO's Revised

Sender	cstrother@mshpc.com
Recipients	[el00-95@listserv.gsa.gov]
File	steffes-j/california_issues/ca_refunds/57.

Vernon had understood that issues of costs (other than emissions and start-up) offsetting refunds claimed to be due as a result of the application of the MMCP came within Issues II/III and that testimony from intervenors on these issues would be due along with other Issue II/III issues on January 25, 2002. Thus, Vernon did not file testimony on these issues on November 8. And, thus, Vernon cannot agree that such issues are ripe for consideration in the Issue I part of the proceeding.

The below language suggested by Mr. Rosenberg, standing alone, too ambiguous and vague to Vernon to go into an order setting the procedural schedule.

Thus, Vernon suggests that the narrative describing the testimony to be filed on or before January 25 better elaborate on what that testimony is to address, e.g.:

"Participants' simultaneous responsive testimony on issues 2 and 3, including APX evidence, [and evidence concerning any offsetting costs (other than emission allowances and fuel start-up costs)], and narrative summaries of material points, including page and line references thereto."

Or whatever language makes the point clear.

Channing

Channing D. Strother, Jr. McCarthy, Sweeney & Harkaway, PC 2175 K Street, NW Ste. 600 Washington, DC 20037
Phone: 202-393-5710 x 4045 Fax: 202-393-5721 E-Mail: cstrother@mshpc.com Pager: 1-800-209-0704

-----Original Message-----

From: EL00-95 List [mailto:EL00-95@listserv.gsa.gov] On Behalf Of Robert Rosenberg Sent: Wednesday, November 21, 2001 3:16 PM To: EL00-95@LISTSERV.GSA.GOV Subject: EL00-95, proposed revision to the ISO's Revised Procedural Schedule

As a follow-up to conversations with the ISO, we propose the addition of the following language to address our interests:

To the extent that evidence concerning any other additional sources of cost recovery (other than emission allowances and fuel start-up costs) is not considered in Phase I, it shall be submitted and considered in Phase II.

It would fit as an addition or footnote to the December 10, 2001 entry.

Message 57 of 176

RE: Portland General PRIVILEGED AND CONFIDENTIAL

Sender	d..steffes@enron.com
Recipients	['b..sanders@enron.com', 'ray.alvarez@enron.com']
File	steffes-j/sent_items/833.

I'll discuss tomorrow with Bob.

Jim

-----Original Message-----

From: Sanders, Richard B. Sent: Sunday, August 26, 2001 7:51 AM To: Steffes, James D.; 'gfergus@brobeck.com'
Subject: FW: Portland General PRIVILEGED AND CONFIDENTIAL

Can you guys handle this in my absence -----Original Message----- From: "Seabron Adamson" <seabron.adamson@frontiereconomics.com>@ENRON [mailto:IMCEANOTES-+22Seabron+20Adamson+22+20+3Cseabron+2Eadamson+40frontiereconomics+2Ecom+3E+40ENRON@ENRON.com] Sent: Friday, August 24, 2001 6:38 PM To: Sanders, Richard B. Subject: FW: Portland General PRIVILEGED AND CONFIDENTIAL

Dan:

(cc Richard Sanders and Gary Fergus)

I have a document by someone named Marty Howard, who I believe may be associated with Portland General. The document was sent to me by Richard Tabors. According to the email Howard used to work for McCullough.

After a very brief read through, I think it tries to show that the statistical link between prices in CA and the PNW was WEAK in peak hours. I suppose they are trying to show that the "contagion" effect from California show not be an issue? I have some problems from an initial read with the econometric analysis, but I have not yet reviewed it fully.

However, it also leaves open the very possibility that was discussed earlier on the call. If there is a refund, and it is based on some notion of "PNW prices", it could be a very large one. I think we need to consider this issue quite carefully.

Seabron

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Seabron Adamson Frontier Economics Inc Two Brattle Square Cambridge, MA 02138 USA Ph: (617) 354-0060 Fax: (617) 354-0640 seabron.adamson@frontier-economics.com

www.frontier-economics.com

Message 58 of 176

RE: Comments on Extending West-wide Mitigation Beyond Summer 2001

Sender	d..steffes@enron.com
Recipients	['dave.perrino@enron.com', 'steve.walton@enron.com']
File	steffes-j/sent_items/732.

Dave --

I'll look at today. Is there an RCR?

Jim

-----Original Message-----

From: Perrino, Dave Sent: Monday, August 20, 2001 11:47 AM To: Steffes, James D. Cc: Walton, Steve Subject: FW: Comments on Extending West-wide Mitigation Beyond Summer 2001 Importance: High

Jim,

Attached to this message is a copy of the document that Kim Curry had composed for EPMI to file with FERC today (8/20) in regard to on-going price mitigation in the WSCC. I have added a couple comments to Kim's document for consideration.

I would appreciate it if you could review this attachment and let me know if you have any questions relating to either our filing of comments or of the content. FYI, our comments line up with those being made PGE and other parties in the Northwest.

Kind Regards, Dave

-----Original Message-----

From: Perrino, Dave Sent: Sunday, August 19, 2001 10:38 PM To: "Kimberly Curry" <kcurry@bracepatt.com>@ENRON; Alvarez, Ray; smara@enron.com Cc: Ronald Carroll Subject: RE: Comments on Extending West-wide Mitigation Beyond Summer 2001

Kim,

Great job! I really like the comments and like what you have done with the material I had sent to you.

I have added a couple comments for yours and the groups consideration. The only other thing I was wondering about was what do you think about adding your "alternative" price recommendations in the footnote on page 4 to the body of the document at the end of the first section "Summary of Comments"?

I have attached my comments for your review. I'll be in Portland on Monday morning and can be reached on my cell at 415.794.8740.

Kind Regards,

Dave

<< File: comments dfp.doc >>

-----Original Message-----

From: "Kimberly Curry" <kcurry@bracepatt.com>@ENRON
[mailto:IMCEANOTES-+22Kimberly+20Curry+22+20+3Ckcurry+40bracepatt+2Ecom+3E+40ENRON@ENRON.com]
Sent: Friday, August 17, 2001 2:42 PM To: Perrino, Dave; Alvarez, Ray; smara@enron.com Cc: Ronald Carroll Subject:

Comments on Extending West-wide Mitigation Beyond Summer 2001

We have attached our draft of EPMI's above-referenced comments. If you have any revisions or edits, please contact us! The filing deadline for this document is Monday, August 20.

Kimberly A. Curry Bracewell & Patterson, L.L.P 2000 K Street, N.W. Suite 500 Washington, D.C. 20006 (202) 828-7623 (phone) (202) 857-2107 (fax) kcurry@bracepatt.com

- comments.doc << File: comments.doc >>

Message 59 of 176

FW: ENRON Installed Capacity Liability

Sender	drom@pjm.com
Recipients	['heinc@www1.pjm.com', 'd..steffes@enron.com', 'moleski@www1.pjm.com']
File	steffes-j/inbox/201.

I have just learned that the subject 35 MW actually is "in excess" of Enron's obligations. Thus, there is no need for Enron to act tomorrow to acquire any additional installed capacity, in order to avoid potential deficiency penalties. Sorry for the false alarm during the Holidays. Please call Tom Moleski for further details. Best wishes. -----Original Message----- From: Drom, Richard A. Sent: Thursday, December 27, 2001 4:20 PM To: James D. Steffes (james.d.steffes@enron.com); 'jklauber@lgm.com' Cc: Hein, Christopher; Moleski, Thomas M. Subject: ENRON Installed Capacity Liability Importance: High Jim & John: Given the pressing events and the Holidays, I want to ensure that you are both aware of the financial consequences associated with Enron's decision to end transaction # 23454 in PJM's installed capacity marketplace. It is my understanding that if Enron wants to avoid the deficiency penalty of approximately \$570,000, it should immediately contract to acquire 35 MW of installed capacity. The market for this product closes on Friday, December 28th, I believe at 10:00 am. EST. You can learn more about the PJM installed capacity market by contacting Tom Moleski, (610) 666-8826. -----Original Message----- From: Moleski, Thomas M. Sent: Thursday, December 27, 2001 4:07 PM To: Drom, Richard A. Cc: Hein, Christopher; Kirby, J. W.; Brown, Yvette; Herling, Steven R. Subject: Importance: High Rick Please be advised that we have received a request from Morgan Stanley to change the end date of transaction 23454 from 5/31/02 to "immediately". Enron is the counterparty, and they have given their approval to this change. Following our established rules, since the capacity credit market has already run for 12/28/01, the first day this transaction can be removed is 12/29/01. Given their recent downsizing efforts, I'm not sure Enron is aware that this will create a 35 MW deficiency in their account. Since the deficiency was not incurred due to load shift, the interval deficiency rate of \$16,268 / MW would apply for a total deficiency charge of ~\$570,000. Enron still has the opportunity to make this deficiency up in the daily capacity credit market, if they choose to do so. Please call if you have any further questions on this matter. Tom Thomas M. Moleski Senior Analyst Capacity Adequacy Planning Department (610) 666-8826

Message 60 of 176

FW: Council of Energy Advisors

Sender	d..steffes@enron.com
Recipients	['dalestef@flash.net']
File	steffes-j/sent_items/616.

Dad --

Thought you may be interested.

Jim

-----Original Message-----

From: Matthew O'Brien [mailto:mobrien@glgroup.com] Sent: Thursday, July 19, 2001 2:56 PM To: jsteffe@enron.com
Subject: Council of Energy Advisors

Dear James, I noticed your involvement in the Center for the Advancement of Energy Markets and I would like to invite you to join the Council of Energy Advisors, an association of petroleum engineers, electrical engineers, petroleum geologists, consultants, power traders, and energy professionals whom we pay their hourly rate to fill out brief online surveys and/or consult part-time by telephone on issues of power and energy products and services for investment managers. I think that your knowledge of the power and energy industry would be a valuable addition to the Council. Membership in the Council is free; you can register online at <http://www.thecouncils.com/peapp.asp> (a quick 5-minute form). We pay Advisors variable rates for surveys depending on the time commitment and their customary consulting rates for telephone consultations. You may decline any survey or consultation that is not in your area of interest or should you not have the time; you are therefore not making any time commitment by joining. Also, Advisors are never asked to answer questions about their own employers; we don't create any appearance of a potential conflict of interest.

The Council of Energy Advisors includes members from leading universities, organizations, and firms such as SPE, EPRI, ABB, TVA, MIT, Square D, Calpine, Halliburton, Schlumberger, Enron, Mirant, Exxon, Shell, BP and Chevron. The Council has more than 400 engineers, petroleum professionals, technology solution end users, independent consultants and researchers working at utilities and solution design consultancies, leaders on IEEE standards bodies and thought leaders in the industry. Our clients include Morgan Stanley Dean Witter, Salomon Smith Barney, Fidelity Fund Management, JP Morgan and about ninety other leading investment firms on both coasts.

Our web site at www.thecouncils.com gives more information about our work. Please take some time to consider the Council, look over our website, and let me know what you think. I look forward to working with you.

Best regards, Matt

Matthew O'Brien Gerson Lehrman Group Council of Energy Advisors 11 E. 44th St., 11th floor New York, NY 10017 (212) 838-6900 ext. 265 www.thecouncils.com

Matthew O'Brien Gerson Lehrman Group 11 E. 44th St., 11th floor New York, NY 10017 (212) 838-6900 ext. 265

Message 61 of 176

Re: Proposed Revised Procedural Schedule

Sender	rdr@sloverandloftus.com
Recipients	['el00-95@listserv.gsa.gov']
File	steffes-j/deleted_items/616.

Some of us, particularly in the non-public utility group, submitted testimony on 11/6 regarding other additional sources of cost recovery, and others may have been planning to submit such testimony in Phase II. To the extent such testimony is not considered in Phase I as a result of the Judge's change of view or otherwise, the matter should be reflected in the revised procedural schedule (as indeed it was in the two September procedural schedules). ---Original Message----- From: EL00-95 List [mailto:EL00-95@listserv.gsa.gov] On Behalf Of Kunselman, Michael Sent: Wednesday, November 21, 2001 10:21 AM To: EL00-95@LISTSERV.GSA.GOV Subject: FW: Proposed Revised Procedural Schedule Parties: Enclosed is the proposed revised procedural schedule. Apparently my first attempt to send this last night failed. Please review and contact me concerning any modifications that you feel are necessary by 1:00 p.m. EST today, so that it may be circulated to the Judge. If you believe that the schedule is acceptable, there is no need to contact me. Michael Kunselman Swidler Berlin Shereff Friedman, LLP 3000 K Street, NW, Suite 300 Washington, DC 20001 (202) 295-8465 The preceding E-mail message contains information that is confidential, may be protected by the attorney/client or other applicable privileges, and may constitute non-public information. It is intended to be conveyed only to the designated recipient(s). If you are not an intended recipient of this message, please notify the sender at (202) 295-8465. Unauthorized use, dissemination, distribution, or reproduction of this message is strictly prohibited and may be unlawful. -----Original Message----- From:

Kunselman, Michael Sent: Tuesday, November 20, 2001 8:21 PM To: EL00-95@LISTSERV.GSA.GOV Subject: Proposed Revised Procedural Schedule Parties: Enclosed is the proposed revised procedural schedule, as agreed to on the conference call held this afternoon. Please review and provide any modifications that you feel are necessary by 10:00 a.m. EST tomorrow in order that it may be provided to the Judge. Thanks, Michael Kunselman Swidler Berlin Shereff Friedman, LLP 3000 K Street, NW, Suite 300 Washington, DC 20001 (202) 295-8465 The preceding E-mail message contains information that is confidential, may be protected by the attorney/client or other applicable privileges, and may constitute non-public information. It is intended to be conveyed only to the designated recipient(s). If you are not an intended recipient of this message, please notify the sender at (202) 295-8465. Unauthorized use, dissemination, distribution, or reproduction of this message is strictly prohibited and may be unlawful. <<Proposed Schedule - EL00-95-045.DOC>>

Message 62 of 176

FW: FYI - Urgent 10/10/01 Response Required by OMB - New EIA-411

Sender	d..steffes@enron.com
Recipients	['Richard; Ehrlich', 'John; Kowalski', 'Michael; Liepe', 'Paul; Norden', 'Wong', 'Dave', 'Peter; Henderson', '...]
File	steffes-j/sent_items/260.

Pls get with Susan to make sure coverage is appropriate.

Jim -----Original Message----- From: Lindberg, Susan Sent: Monday, October 08, 2001 8:21 AM To: Novosel, Sarah; Steffes, James D.; Shelk, John; Nicolay, Christi L. Subject: RE: FYI - Urgent 10/10/01 Response Required by OMB - New EIA-411 and EIA-860 Forms

I am running this by the relevant folks here on 31 -- have not heard from them but I will follow up.

-----Original Message-----

From: Novosel, Sarah Sent: Sunday, October 07, 2001 10:50 AM To: Steffes, James D.; Shelk, John; Nicolay, Christi L.; Lindberg, Susan Subject: FW: FYI - Urgent 10/10/01 Response Required by OMB - New EIA-411 and EIA-860 Forms

Do any of you know anything about these proposed changes to EIA forms? Please let me know either way.

Thanks

Sarah

-----Original Message-----

From: Condon, Kathy Sent: Wed 10/3/2001 12:26 PM To: CELT Respondents (E-mail) Cc: Wong, Peter; Henderson, Michael; Liepe, Paul; Norden, John; Kowalski, Richard; Ehrlich, Dave Subject: FYI - Urgent 10/10/01 Response Required by OMB - New EIA-411 and EIA-860 Forms

Dear CELT Respondent: Attached below are several documents concerning the upcoming changes the Energy Information Administration (EIA) of the U.S. Department of Energy (DOE) submitted to the Office of Management and Budget (OMB) on September 11th, regarding changes to the EIA 860 and 411 Forms. <<Proposed EIA-860.pdf>> <<Proposed EIA-411.pdf>> In particular, you may want to review the sections concerning confidentiality and transmission data. A short summary of the changes can be found in the "Summary of Form Changes to the March 13, 2001 Proposal", located at: <http://www.eia.doe.gov/cneaf/electricity/elec2002/forms_page.html> <http://www.eia.doe.gov/cneaf/electricity/elec2002/forms_page.html>> The "OMB Support Statement" located on the same page provides more detailed explanations of the changes. DATES: Comments must be filed on or before October 11, 2001. If you anticipate that you will be submitting comments but find it difficult to do so within that period, you should contact the OMB Desk Officer for DOE listed below as soon as possible.

Office of Management and Budget 726 Jackson Place NW. Washington, DC 20503.

The OMB Desk Officer may be telephoned at (202) 395- 7318. (A copy of your comments should also be provided to EIA's Statistics and Methods Group). Please see the attached Federal Register Notice (below) regarding important information for filing your comments. <<fedreg.pdf>> Please forward a courtesy copy (cc) of your comments to me at: ISO New England Inc. One Sullivan Road, Holyoke, MA 01040-2841 (413) 540-4203 FAX e-mail: kcondon@iso-ne.com <<mailto:kcondon@iso-ne.com>>

Thanks Kathy Condon (413) 535-4134

The information in this message is privileged and confidential and is intended solely for the addressee(s) listed above. If you have received this transmission in error, please notify us immediately by e-mail and delete the original message.

Message 63 of 176

FW: Greenhouse Gas Strategy Discussion, Nov. 20.....

Sender	d..steffes@enron.com
Recipients	['margaret.huson@enron.com']
File	steffes-j/sent_items/1192.

Maggie --

You may want to attend - Global Markets?

Jim

-----Original Message-----

From: Jacobson, Lisa Sent: Thursday, November 01, 2001 1:02 PM To: Terraso, Michael; Kean, Steven J.; Badger, Dan; Profir, Diana; Dindarova, Nailia; Styles, Peter; Roberts, Dave; Mitchell, Heather; Oliver, John; Massey II, John; Woods, Trevor; Taylor, Michael E; Mainzer, Elliot; Bolton, Stacey; Thome, Jennifer; Kendrick, William; Jensen, Ruth; 'enrique_rolando@tgs.com.ar'; 'florentino_tobares@tgs.com.ar'; Zuleta, Edgar; Churbock, Scott; Brodbeck, Kelly; Schoen, Mary; Grimes, Michael; Crowther, Mark; Quilkey, Paul; Smith, Cheryl A.; Stewart, Rob; Denton, Greg; Hemstock, Robert; Wilson, Jan; Loy, Brian; Tripp, Garrett; Alcalde-Navarro, Rafael; Boyd, Hap; Moses, Edwin; Lei, Wayne; Shapiro, Richard; Shortridge, Pat; Nersesian, Carin; Robertson, Linda; Keeler, Jeff; Worthen, Susan; Phillis, Marc; Van, Henry; Kimberly, Kelly; McKalip-Thompson, Catherine; Meyer, Vance; Yoho, Lisa; Steffes, James D.; Huson, Margaret; Mongeon, Kathy Subject: Greenhouse Gas Strategy Discussion, Nov. 20.....

RSVP REQUESTED -- RSVP REQUESTED

You are invited to participate in a Greenhouse Gas Strategy Discussion on November 20 to explore commercial opportunities related to greenhouse gas emissions markets. Several groups within Enron are working to monetize and integrate greenhouse-gas reduction benefits into their deals, as well as take advantage of greenhouse gas regulatory and incentive-based programs for origination, project development and risk management.

The aim of the meeting is discussion -- with minimal formal presentations. We seek reactions to possible greenhouse gas commercial models; identification of barriers to market entry (and solutions); and ways that commercial groups across the company can enhance each other's capabilities to achieve commercial targets.

Given the range and varying circumstances under which current greenhouse gas emissions transactions are occurring, Enron business groups should:

begin to capture (define ownership and package) internal greenhouse gas reductions, look for opportunities to integrate greenhouse gas emissions concerns into existing risk management products, and Enron assets that are significant greenhouse gas emissions sources, should assess and manage exposures.

DATE - TIME - LOCATION

Tuesday, November 20 8:30 a.m. - 11:30 a.m. EB 8C1

Video conference and teleconference capabilities are available.

Please see the attached agenda. Comments on the scope and objectives of the meeting are most welcome.

Please RSVP to Kathy Mongeon, using the form below, at (kathy.mongeon@enron.com) or (202) 466-9154. Please indicate if you would like to participate via video- or teleconference.

Greenhouse Gas Strategy Meeting November 20, 2001 8:30 a.m. - 11:30 a.m. EB 8C1

Yes, I will attend the Greenhouse Gas Strategy meeting _____

-- I would like to attend via video conference _____

-- I would like to participate via teleconference _____

-- Please indicate your Enron office location _____

No, I will not be able to attend _____

I cannot attend, but please inform me of meeting outcomes _____

Lisa Jacobson Enron Manager, Environmental Strategies 1775 Eye Street, NW Suite 800 Washington, DC 20006

Phone: +(202) 466-9176 Fax: +(202) 331-4717

Message 64 of 176

ISO's Supp. Responses to TID's First Set of DRs

Sender	mnkunselman@swidlaw.com
Recipients	['Ken' <kweisel@tid.org>, 'Weisel', 'el00-95@listserv.gsa.gov']
File	steffes-j/deleted_items/86.

Enclosed please find the ISO's Supplemental Response to Turlock's First Set of Discovery and Data Requests, as well as attachments responsive to those requests. <<TID #s 13,14 and 18 - 1019_v1.DOC>> <<January sales to the CAISO>> <<RE: January sales to the CAISO>> <<RE: January sales to the CAISO>> Michael Kunselman Swidler Berlin Shereff Friedman, LLP 3000 K Street, NW, Suite 300 Washington, DC 20001 (202) 295-8465 The preceding E-mail message contains information that is confidential, may be protected by the attorney/client or other applicable privileges, and may constitute non-public information. It is intended to be conveyed only to the designated recipient(s). If you are not an intended recipient of this message, please notify the sender at (202) 295-8465. Unauthorized use, dissemination, distribution, or reproduction of this message is strictly prohibited and may be unlawful.

- TID #s 13,14 and 18 - 1019_v1.DOC Message-ID: <sb867205.056@tid.org> From: Christian Poley <capoley@tid.org> To: "Nickel, Judy" <JNickel@caiso.com> Cc: "Weisel, Ken" <kweisel@tid.org> Subject: January sales to the CAISO Date: Fri, 24 Aug 2001 18:25:36 -0400 MIME-Version: 1.0 X-Mailer: Internet Mail Service (5.5.2653.19) Content-Type: multipart/mixed; boundary="----=_NextPart_002_01C158F6.1F1D7D70"

This list is what I have for TID's sales to the ISO in January. Please get back to me as soon as possible on this issue.
Thanks, Chris

- CISO January sales.xls Message-ID: <132A7F5BA87AD311AB8200508B7306E1031E120E@csfiapp667.wepex.net> From: "Nickel, Judy" <JNickel@caiso.com> To: 'Christian Poley' <capoley@tid.org>, "Brommer, Mike" <mtbrommer@tid.org> Subject: RE: January sales to the CAISO Date: Tue, 28 Aug 2001 10:58:32 -0400 MIME-Version: 1.0 X-Mailer: Internet Mail Service (5.5.2653.19) Content-Type: multipart/mixed; boundary="----=_NextPart_002_01C158F6.1F1D7D70"

Mike/Chris: So far, our research only shows 1/3/01 OOM transactions with TID (on that date you should have received 175 MW of OOM at \$250 throughout the day per attached spreadsheet). We see no other OOM transactions for the additional Trade Dates you have listed on your spreadsheet. The next step would be to get the specifics on the OOM

purchases. Was it with ISO or CERS? Do you have transcripts of OOM calls? Judy -----Original Message----- From: Christian Poley [mailto:capoley@tid.org] Sent: Friday, August 24, 2001 3:26 PM To: JNickel@caiso.com Cc: Ken Weisel Subject: January sales to the CAISO This list is what I have for TID's sales to the ISO in January. Please get back to me as soon as possible on this issue. Thanks, Chris

- Sheet1.xls Message-ID: <132A7F5BA87AD311AB8200508B7306E1031E1204@csifiapp667.wepex.net> From: "Nickel, Judy" <JNickel@caiso.com> To: 'Christian Poley' <capoley@tid.org>, "Brommer, Mike" <mtbrommer@tid.org> Subject: RE: January sales to the CAISO Date: Mon, 27 Aug 2001 14:20:42 -0400 MIME-Version: 1.0 X-Mailer: Internet Mail Service (5.5.2653.19) Content-Type: multipart/alternative; boundary="-----=_NextPart_003_01C158F6.1F1D7D70"

Mike and Chris: The original Market Invoice for January, 2001 transactions was faxed to Leslie B. at 209-656-2147 on March 27, 2001. I am researching some of these transactions to see if I can get specific data breakdown on the charges. Do you have the hours for these transactions for each day? Judy -----Original Message----- From: Christian Poley [mailto:capoley@tid.org] Sent: Friday, August 24, 2001 3:26 PM To: JNickel@caiso.com Cc: Ken Weisel Subject: January sales to the CAISO This list is what I have for TID's sales to the ISO in January. Please get back to me as soon as possible on this issue. Thanks, Chris

Message 65 of 176

RE: Greenhouse Gas Strategy Discussion, Nov. 20.....

Sender	d..steffes@enron.com
Recipients	['margaret.huson@enron.com', 'lisa.yoho@enron.com']
File	steffes-j/sent_items/1197.

How about 10am Tuesday??

-----Original Message-----

From: Huson, Margaret Sent: Thursday, November 01, 2001 2:11 PM To: Steffes, James D. Cc: Yoho, Lisa Subject: RE: Greenhouse Gas Strategy Discussion, Nov. 20.....

Thanks for the notice Jim.

Hey, do you have a few minutes on Mon. or Tues. for Lisa and me to touch base with you on a few things? Let us know what works for you.

Maggy

-----Original Message-----

From: Steffes, James D. Sent: Thursday, November 01, 2001 1:09 PM To: Huson, Margaret Subject: FW: Greenhouse Gas Strategy Discussion, Nov. 20.....

Maggie --

You may want to attend - Global Markets?

Jim

-----Original Message-----

From: Jacobson, Lisa Sent: Thursday, November 01, 2001 1:02 PM To: Terraso, Michael; Kean, Steven J.; Badger, Dan; Profir, Diana; Dindarova, Nailia; Styles, Peter; Roberts, Dave; Mitchell, Heather; Oliver, John; Massey II, John; Woods, Trevor; Taylor, Michael E; Mainzer, Elliot; Bolton, Stacey; Thome, Jennifer; Kendrick, William; Jensen, Ruth; 'enrique_rolando@tgs.com.ar'; 'florentino_tobares@tgs.com.ar'; Zuleta, Edgar; Churbock, Scott; Brodbeck, Kelly; Schoen, Mary; Grimes, Michael; Crowther, Mark; Quilkey, Paul; Smith, Cheryl A.; Stewart, Rob; Denton, Greg; Hemstock, Robert; Wilson, Jan; Loy, Brian; Tripp, Garrett; Alcalde-Navarro, Rafael; Boyd, Hap; Moses, Edwin; Lei, Wayne; Shapiro, Richard; Shortridge, Pat; Nersesian, Carin; Robertson, Linda; Keeler, Jeff; Worthen, Susan; Phillis, Marc; Van, Henry; Kimberly, Kelly; McKalip-Thompson, Catherine; Meyer, Vance; Yoho, Lisa; Steffes, James D.; Huson, Margaret; Mongeon, Kathy

Subject: Greenhouse Gas Strategy Discussion, Nov. 20.....

RSVP REQUESTED -- RSVP REQUESTED

You are invited to participate in a Greenhouse Gas Strategy Discussion on November 20 to explore commercial opportunities related to greenhouse gas emissions markets. Several groups within Enron are working to monetize and integrate greenhouse-gas reduction benefits into their deals, as well as take advantage of greenhouse gas regulatory and incentive-based programs for origination, project development and risk management.

The aim of the meeting is discussion -- with minimal formal presentations. We seek reactions to possible greenhouse gas commercial models; identification of barriers to market entry (and solutions); and ways that commercial groups across the company can enhance each other's capabilities to achieve commercial targets.

Given the range and varying circumstances under which current greenhouse gas emissions transactions are occurring, Enron business groups should:

begin to capture (define ownership and package) internal greenhouse gas reductions, look for opportunities to integrate greenhouse gas emissions concerns into existing risk management products, and Enron assets that are significant greenhouse gas emissions sources, should assess and manage exposures.

DATE - TIME - LOCATION

Tuesday, November 20 8:30 a.m. - 11:30 a.m. EB 8C1

Video conference and teleconference capabilities are available.

Please see the attached agenda. Comments on the scope and objectives of the meeting are most welcome.

Please RSVP to Kathy Mongeon, using the form below, at (kathy.mongeon@enron.com) or (202) 466-9154. Please indicate if you would like to participate via video- or teleconference.

Greenhouse Gas Strategy Meeting November 20, 2001 8:30 a.m. - 11:30 a.m. EB 8C1

Yes, I will attend the Greenhouse Gas Strategy meeting _____

-- I would like to attend via video conference _____

-- I would like to participate via teleconference _____

-- Please indicate your Enron office location _____

No, I will not be able to attend _____

I cannot attend, but please inform me of meeting outcomes _____

<< File: GHG Agendapublic.doc >>

Lisa Jacobson Enron Manager, Environmental Strategies 1775 Eye Street, NW Suite 800 Washington, DC 20006

Phone: +(202) 466-9176 Fax: +(202) 331-4717

Message 66 of 176

RE: FYI - Urgent 10/10/01 Response Required by OMB - New EIA-411

Sender	d..steffes@enron.com
Recipients	['Richard; Ehrlich', 'john.shelk@enron.com', 'John; Kowalski', 'Michael; Liepe', 'Paul; Norden', 'Wong', 'Dave...]
File	steffes-j/sent_items/255.

I'd have Susan Lindberg and Charles take on this.

Jim

-----Original Message-----

From: Yeung, Charles Sent: Monday, October 08, 2001 8:02 AM To: Steffes, James D.; Novosel, Sarah; Shelk, John; Nicolay, Christi L.; Lindberg, Susan Subject: RE: FYI - Urgent 10/10/01 Response Required by OMB - New EIA-411 and EIA-860 Forms

I have been following Form EIA-417 - Emergency Incident and Disturbance Report

I am not familiar with the changes on these other forms. Should I follow up on these as well?

Form EIA-411, "Coordinated Bulk Power Supply Program Report," Form EIA-412, "Annual Electric Industry Financial Report," Form EIA-423, "Cost and Quality of Fuels for Electric Plants," Form EIA-767, "Steam-Electric Plant Operation and Design Report," Form EIA-826, "Monthly Electric Sales and Revenue Report with State Distributions," Form EIA-860, "Annual Electric Generator Report" (combined Forms EIA-860A and EIA-860B), Form EIA-861, "Annual Electric Power Industry Report," and, Form EIA-906, "Power Plant Report."

Since I have no former experience with these reports, it would be a great help if those familiar with these reports take a look at them first and provide me any comments.

[Yeung, Charles] -----Original Message----- From: Steffes, James D. Sent: Sunday, October 07, 2001 12:18 PM To: Novosel, Sarah; Shelk, John; Nicolay, Christi L.; Lindberg, Susan; Yeung, Charles Subject: RE: FYI - Urgent 10/10/01 Response Required by OMB - New EIA-411 and EIA-860 Forms

I thought Susan and Charles were leading EIA reporting issues?

Jim

-----Original Message-----

From: Novosel, Sarah Sent: Sun 10/7/2001 10:49 AM To: Steffes, James D.; Shelk, John; Nicolay, Christi L.; Lindberg, Susan Cc: Subject: FW: FYI - Urgent 10/10/01 Response Required by OMB - New EIA-411 and EIA-860 Forms

Do any of you know anything about these proposed changes to EIA forms? Please let me know either way.

Thanks

Sarah

-----Original Message-----

From: Condon, Kathy Sent: Wed 10/3/2001 12:26 PM To: CELT Respondents (E-mail) Cc: Wong, Peter; Henderson, Michael; Liepe, Paul; Norden, John; Kowalski, Richard; Ehrlich, Dave Subject: FYI - Urgent 10/10/01 Response Required by OMB - New EIA-411 and EIA-860 Forms

Dear CELT Respondent: Attached below are several documents concerning the upcoming changes the Energy Information Administration (EIA) of the U.S. Department of Energy (DOE) submitted to the Office of Management and Budget (OMB) on September 11th, regarding changes to the EIA 860 and 411 Forms. <<Proposed EIA-860.pdf>> <<Proposed EIA-411.pdf>> In particular, you may want to review the sections concerning confidentiality and transmission data. A short summary of the changes can be found in the "Summary of Form Changes to the March 13, 2001 Proposal", located at: <http://www.eia.doe.gov/cneaf/electricity/elec2002/forms_page.html> <http://www.eia.doe.gov/cneaf/electricity/elec2002/forms_page.html>> The "OMB Support Statement" located on the same page provides more detailed explanations of the changes. DATES: Comments must be filed on or before October 11, 2001. If you anticipate that you will be submitting comments but find it difficult to do so within that period, you should contact the OMB Desk Officer for DOE listed below as soon as possible.

Office of Management and Budget 726 Jackson Place NW. Washington, DC 20503.

The OMB Desk Officer may be telephoned at (202) 395- 7318. (A copy of your comments should also be provided to EIA's Statistics and Methods Group). Please see the attached Federal Register Notice (below) regarding important information for filing your comments. <<fedreg.pdf>> Please forward a courtesy copy (cc) of your comments to me at: ISO New England Inc. One Sullivan Road, Holyoke, MA 01040-2841 (413) 540-4203 FAX e-mail: kcondon@iso-ne.com <<mailto:kcondon@iso-ne.com>>>

Thanks Kathy Condon (413) 535-4134

The information in this message is privileged and confidential and is intended solely for the addressee(s) listed above. If you have received this transmission in error, please notify us immediately by e-mail and delete the original message.

Message 67 of 176

RE: UBP-RSB Revised Documents -- Your Response Is Needed

Sender	d..steffes@enron.com
Recipients	['nancy.hetrick@enron.com']
File	steffes-j/sent_items/33.

No. Just wanted your thoughts. Thanks.

-----Original Message-----

From: Hetrick, Nancy Sent: Thursday, August 30, 2001 8:51 PM To: Steffes, James D. Subject: RE: UBP-RSB Revised Documents -- Your Response Is Needed

This vote was for UBP members only. I cast a vote for Option A on behalf of Enron. We still a small group of suppliers that are a holdover from the CUBR days and we keep in close contact through this process. It appears from the email votes that I have seen that most members are choosing Option A - even some of the "harder to convince" utilities. Any thoughts?

-----Original Message-----

From: Steffes, James D. Sent: Thursday, August 30, 2001 8:03 PM To: Hetrick, Nancy Subject: RE: UBP-RSB Revised Documents -- Your Response Is Needed

Nancy --

1. Are we able to vote? 2. If yes to #1, what is your recommendation for our vote?

Thanks,

Jim -----Original Message----- From: Hetrick, Nancy Sent: Thursday, August 30, 2001 6:12 PM To: Yeung, Charles; Perrino, Dave; Binns, Darran; Steffes, James D.; Ingersoll, Richard; Nicolay, Christi L.; Novosel, Sarah; Walton, Steve; Rodriguez, Andy; Bestard, Jose; Mangskau, David Subject: FW: UBP-RSB Revised Documents -- Your Response Is Needed

FY!! This is a note that was sent out to the UBP membership for vote.

-----Original Message-----

From: "Driggs, Charlie" <Charlie.Driggs@conectiv.com>@ENRON [mailto:IMCEANOTES-+22Driggs+2C+20Charlie+22+20+3CCharlie+2EDriggs+40conectiv+2Ecom+3E+40ENRON@ENRON.com] Sent: Monday, August 13, 2001 10:41 AM To: anne.mcglynn@exeloncorp.com; ccorcoran@BTUwatch.com; david_koogler@dom.com; jmminneman@pplweb.com; jphill8@entergy.com; Karen.Oneill@Greenmountain.com; newboldw@detroitdison.com; nhetrick@enron.com; scott.brown@exeloncorp.com; WCamp@uspowersolutions.com; wmastin@sct.com Subject: UBP-RSB Revised Documents -- Your Response Is Needed

As discussed during Friday's conference call, we're sending out the overall governance documents asap for an email vote of affirmation by August 31st. Scott has provided the revised documents.

Does the following statement to our membership do the job?? If you have any changes / suggestions, please provide them by Wednesday, as I will send out this email by the end of Wednesday.

The risk of asking for this is: What if we don't get an affirmative vote?? The risk of not asking for this may be worse. I don't expect a unanimous affirmation based upon recent events.

Charlie

Members of UBP-RSB,

The attached documents represent the basis of organizational design development for a Retail Standards Board per the original charge of this organization. The versions of the documents attached here reflect the changes identified in discussions during our Baltimore meeting on July 23rd. Your Governance Committee needs you to confirm that these documents now state our intentions and the design needs of a Retail Standards Board before we can reasonably proceed with detail organizational design efforts.

As the Governance Committee's work proceeds, the organizational design may evolve slightly as the high level view of these documents does not contain every design requirement or anticipate every contingency. There may be issues that arise in developing an inclusive organization that need your further attention. As, or if, such issues arise, the GC will seek your input.

For now, please provide an email response which indicates either that

a) your company agrees with and supports the Statement of Structure and the membership's revisions to Strawman 2 as described in the attached documents,

or

b) your company cannot support the Statement of Structure and the membership's revisions to Strawman 2 as described in the attached documents.

Please provide your response no later than August 31, 2001.

UBP voting rules will be applied in this instance.

Charles L. Driggs Chair, Governance Committee

Manager, Gas Operations & Planning Conectiv Power Delivery -- Gas 630 MLK Boulevard mail stop 88MK62 Wilmington, Delaware 19899-0231

office (302) 429-3194 cell phone (302) 229-4515 fax (302) 429-3207

Message 68 of 176

lunch or breakfast?

Sender	jason.riley@novoforum.com
Recipients	['james_d_steffes@enron.com']
File	steffes-j/inbox/67.

Jim, It's been a while since we visited. Let's catch up over a breakfast/lunch. Saw Civileto last week and he mentioned you have another bambino on the way. My schedule is good this Friday, else Monday or Tuesday next week. Jason Riley NOVOFORUM 10370 Richmond Ave #200 Houston , Texas 77042 832.201.3120 office <mailto:jason.riley@novoforum.com> See us at: <http://www.novoforum.com> Novoforum (Latin for "New Markets") provides e-business infrastructure for manufacturing and energy companies. Novoforum creates competitive advantage for its clients through cost-efficient solutions that enable supply chain integration and collaboration with their key customers, suppliers and service providers.

Message 69 of 176

RE: Repeated E-mails from Mark Bennett

Sender	d..steffes@enron.com
Recipients	['mreddy@epsa.org']
File	steffes-j/sent_items/1320.

Haven't got anything today. If I get some, I'll send to EPSA.

Thanks.

-----Original Message-----

From: "Michael Reddy" <Mreddy@epsa.org>@ENRON Sent: Monday, November 12, 2001 3:55 PM To: Steffes, James D. Cc: Admin; Shannon Gordon Subject: Repeated E-mails from Mark Bennett

Jim, Could you please forward the e-mail that you keep receiving from Mark Bennett to admin@epsa.org. Our IT person wants to look at it so he can stop the e-mail from being sent to you and Jose Bestard. I am sorry for the inconvenience and hope that we can fix this problem as soon as possible.

Michael Reddy Policy/Research Assistant EPSA 1401 New York Avenue, NW, 11th Floor Washington, DC 20005 (202) 628-8200 (202) 828-8260 Fax

Message 70 of 176

First Set of Discovery Requests of the California Parties to Mira

Sender	jfagan@hewm.com
Recipients	['el00-95@listserv.gsa.gov']
File	steffes-j/deleted_items/631.

Please see attached. Hard copies are being sent to the restricted service list.

Joseph H. Fagan ATTORNEY HellerEhrman tel.: 202.912.2162 fax: 202.912.2020 e-mail: jfagan@hewm.com web: <http://www.hewm.com> Address: 1666 K Street, N.W. Suite 300 Washington, D.C. 20006-1228

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- Transmittal Letter to Mirant.rtf - First Set - Mirant - Start Up .rtf

Message 71 of 176

EL00-95, AEPCO 11/6/01 testimony filing, Part 5 of 5

Sender	rdr@sloverandloftus.com
Recipients	['el00-95@listserv.gsa.gov']
File	steffes-j/california_issues/ca_refunds/32.

On behalf of Arizona Electric Power Cooperative, Inc. (AEPCO), we are attempting to distribute our 11/06/01 testimony filing electronically as well as by mail.

This is part 5 of 5, and it includes some of the spreadsheets, which have not been compressed. The specific exhibits are AEP-6, AEP-7, and AEP-9.

The filing consists almost entirely of protected materials and materials that are not available to competitive duty personnel. If you are an unauthorized person who receives these materials, please destroy them and so notify us.

Robert D. Rosenberg Slover & Loftus 1224 Seventeenth Street, N.W. Washington, D.C. 20036 (202) 347-7170 (202) 347-3619 (fax) rdr@sloverandloftus.com

- AEP-6.XLS - AEP-7.XLS - AEP-9.XLS

Message 72 of 176

First Set of Discovery Requests of the California Parties to AES

Sender	jfagan@hewm.com
Recipients	['el00-95@listserv.gsa.gov']
File	steffes-j/deleted_items/628.

Please see attached. Hard copies are being sent to the restricted service list.

Joseph H. Fagan ATTORNEY HellerEhrman tel.: 202.912.2162 fax: 202.912.2020 e-mail: jfagan@hewm.com web: <http://www.hewm.com> Address: 1666 K Street, N.W. Suite 300 Washington, D.C. 20006-1228

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- Transmittal Letter to AES Plac.rtf - First Set to AES - Start up co.rtf

Message 73 of 176

Deposition - Scott Jones - Date, Location and Time

Sender	jfagan@hewm.com
Recipients	['el00-95@listserv.gsa.gov']
File	steffes-j/deleted_items/580.

The deposition of Dr. Scott Jones (PPL) has been scheduled for Tuesday, December 4th at the DC offices of Steptoe and Johnson, beginning at 9:30 AM.

Joseph H. Fagan ATTORNEY HellerEhrman

tel.: 202.912.2162 fax: 202.912.2020 e-mail: jfagan@hewm.com web: <http://www.hewm.com> <<http://www.hewm.com>>
Address: 1666 K Street, N.W. Suite 300 Washington, D.C. 20006-1228

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Message 74 of 176

Second Set of Data Requests of the California Parties to PPL

Sender	jfagan@hewm.com
Recipients	[el00-95@listserv.gsa.gov]
File	steffes-j/deleted_items/521.

Please see attached. Hard copies are being served on the restricted service list.

Joseph H. Fagan ATTORNEY HellerEhrman

tel.: 202.912.2162 fax: 202.912.2020 e-mail: jfagan@hewm.com web: <http://www.hewm.com> <<http://www.hewm.com/>>

Address: 1666 K Street, N.W. Suite 300 Washington, D.C. 20006-1228

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- Second Transmittal - PPL.rtf - Second Set - PPL Discovery.rtf

Message 75 of 176

First Set of Discovery Requests of the California Parties to Rel

Sender	jfagan@hewm.com
Recipients	[el00-95@listserv.gsa.gov]
File	steffes-j/deleted_items/630.

Please see attached. Hard copies are being sent to the restricted service list.

Joseph H. Fagan ATTORNEY HellerEhrman

tel.: 202.912.2162 fax: 202.912.2020 e-mail: jfagan@hewm.com web: <http://www.hewm.com> <<http://www.hewm.com/>>

Address: 1666 K Street, N.W. Suite 300 Washington, D.C. 20006-1228

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- Transmittal Letter to Reliant.rtf - First Set to Reliant - Start U.rtf

Message 76 of 176

First Set of Discovery Requests of the California Parties to Wil

Sender	jfagan@hewm.com
Recipients	[el00-95@listserv.gsa.gov]
File	steffes-j/deleted_items/596.

Please see attached. Hard copies are being sent to the restricted service list.

Joseph H. Fagan ATTORNEY HellerEhrman

tel.: 202.912.2162 fax: 202.912.2020 e-mail: jfagan@hewm.com web: http://www.hewm.com <http://www.hewm.com/>

Address: 1666 K Street, N.W. Suite 300 Washington, D.C. 20006-1228

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- Transmittal Letter to Williams.rtf - First Set to Williams - Start .rtf

Message 77 of 176

ISO's Response to Presiding Judge's Nov. 15 Order

Sender	mnkunselman@swidlaw.com
Recipients	['el00-95@listserv.gsa.gov']
File	steffes-j/deleted_items/643.

Enclosed is the ISO's Response to the Presiding Judge's November 15 Order Lifiting Protective Order. <<ISO Response to Nov 15 Order.DOC>> Michael Kunselman Swidler Berlin Shereff Friedman, LLP 3000 K Street, NW, Suite 300 Washington, DC 20001 (202) 295-8465 The preceding E-mail message contains information that is confidential, may be protected by the attorney/client or other applicable privileges, and may constitute non-public information. It is intended to be conveyed only to the designated recipient(s). If you are not an intended recipient of this message, please notify the sender at (202) 295-8465. Unauthorized use, dissemination, distribution, or reproduction of this message is strictly prohibited and may be unlawful.

- ISO Response to Nov 15 Order.DOC

Message 78 of 176

Re: ISO Depositions in EL00-95-045

Sender	mnkunselman@swidlaw.com
Recipients	['el00-95@listserv.gsa.gov']
File	steffes-j/deleted_items/43.

Parties: Please contact Gene Waas at the ISO as well as Phil Jordan with any questions regarding the ISO's depositions to be held next week. Gene can be reached at (916) 608-7049. Michael Kunselman Swidler Berlin Shereff Friedman, LLP 3000 K Street, NW, Suite 300 Washington, DC 20001 (202) 295-8465 The preceding E-mail message contains information that is confidential, may be protected by the attorney/client or other applicable privileges, and may constitute non-public information. It is intended to be conveyed only to the designated recipient(s). If you are not an intended recipient of this message, please notify the sender at (202) 295-8465. Unauthorized use, dissemination, distribution, or reproduction of this message is strictly prohibited and may be unlawful.

Message 79 of 176

FW: Stipulation Comments

Sender	jbennett@gmssr.com
Recipients	['jdasovic@enron.com', 'james_d_steffes@enron.com', 'Robert C. Williams', 'smara@enron.com']
File	steffes-j/inbox/16.

-----Original Message-----

From: Dan Douglass [mailto:douglass@energyattorney.com] Sent: Tuesday, October 23, 2001 11:05 AM To: Jeanne Bennett; Mike Day Cc: Robert C. Williams Subject: Stipulation Comments

Mike, Jeanne and Bob....the draft looks good...I have noted a few possible changes and one question. Let's discuss at your convenience.

With regard to interest, APSES asked for an audit. Why don't we at least ask for interest and use it at least as a trading point to get the calculation after Jan. 18 pinned down.

Dan

Law Offices of Daniel W. Douglass 5959 Topanga Canyon Blvd. Suite 244 Woodland Hills, CA 91367 Tel: (818) 596-2201 Fax: (818) 346-6502 <mailto:douglass@energyattorney.com> douglass@energyattorney.com

- Amendment No. 2 to Stipulation Staying Proceedings - Draft 3.DOC

Message 80 of 176

Third Set of Discovery of California Parties to Williams

Sender	jfagan@hewm.com
Recipients	['el00-95@listserv.gsa.gov']
File	steffes-j/inbox/353.

Third Set of Discovery of California Parties to Williams. Hard copies are being sent to the restricted service list.

Joseph H. Fagan ATTORNEY HellerEhrman

tel.: 202.912.2162 fax: 202.912.2020 e-mail: jfagan@hewm.com web: <http://www.hewm.com> <<http://www.hewm.com>>
Address: 1666 K Street, N.W. Suite 300 Washington, D.C. 20006-1228

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- Third Transmittal - Williams.rtf - Third Set of Discovery - Willi.rtf

Message 81 of 176

ISO's Response to IID's Request for Admissions

Sender	mnkunselman@swidlaw.com
Recipients	['el00-95@listserv.gsa.gov']
File	steffes-j/deleted_items/84.

Parties: Enclosed please find the ISO's Response to Imperials Request for Admissions and First Set of Interrogatories and Request for Data and Document Production. <<Imperial Admissions - 10 18.DOC>> Michael Kunselman Swidler Berlin Shereff Friedman, LLP 3000 K Street, NW, Suite 300 Washington, DC 20001 (202) 295-8465 The preceding E-mail message contains information that is confidential, may be protected by the attorney/client or other applicable privileges, and may constitute non-public information. It is intended to be conveyed only to the designated recipient(s). If you are not an intended recipient of this message, please notify the sender at (202) 295-8465. Unauthorized use, dissemination, distribution, or reproduction of this message is strictly prohibited and may be unlawful.

- Imperial Admissions - 10 18.DOC

Message 82 of 176

Enron Energy Services;Inc.: Pilot Status Report

Sender	gloria.ogenyi@enron.com
Recipients	['nancy.hetrick@enron.com', 'd..steffes@enron.com', 'rebecca.fite@enron.com', 'connie.corona@puc.state.tx.us']
File	steffes-j/texas/22.

CONFIDENTIAL FILING: The information contained in the e-mail message below is strictly confidential.

Dear Ms Corona,

PROJECT NO. 22834: IMPLEMENTATION ACTIVITIES RELATED TO RETAIL COMPETITION PILOT PROJECTS

Enron Energy Services; Inc. (EES) provides this status report on pilot project implementation in compliance with PUC subst. R. 25.431 (j) (34) (B). As a certified retail electric provider (REP), EES has participated in the pilot program of TXU Electric Company (TXU) since August 2001. EES is currently marketing to industrial customers in TXU's territory, and has enrolled 3 customers and 12 accoounts. In accordance with the above referenced rule, EES hereby files the following confidential justification report.

Respectfully submitted Gloria Ogenyi Esq Director, Government Affairs Enron Corp. Phone: 713-345-8202 Fax: 713-646-3409

Message 83 of 176

ISO's Response to TID's First Request for Admissions.

Sender	mnkunselman@swidlaw.com
Recipients	['el00-95@listserv.gsa.gov']
File	steffes-j/deleted_items/201.

Parties: Please find enclosed the Partial Response of the California Independent System Operator Corporation to the Turlock Irrigation District's Request for Admissions and First Set of Interrogatories and Request for Data and Document Production. <<TID Admissions - 1017_v1.DOC>> Michael Kunselman Swidler Berlin Shereff Friedman, LLP 3000 K Street, NW, Suite 300 Washington, DC 20001 (202) 295-8465 The preceding E-mail message contains information that is confidential, may be protected by the attorney/client or other applicable privileges, and may constitute non-public information. It is intended to be conveyed only to the designated recipient(s). If you are not an intended recipient of this message, please notify the sender at (202) 295-8465. Unauthorized use, dissemination, distribution, or reproduction of this message is strictly prohibited and may be unlawful.

- TID Admissions - 1017_v1.DOC

Message 84 of 176

Responses of California Parties to Staff's First Set of Data Requ

Sender	cgosain@steptoe.com
Recipients	['el00-95@listserv.gsa.gov']
File	steffes-j/california_issues/ca_refunds/47.

Attached please find the above-referenced documents.

The attachment referred to in the response to Staff/CALPAR-5 contains protected materials and has been provided under seal and pursuant to the Protective Order in this proceeding. Only those individuals who have signed Non-Disclosure Certificates in this proceeding may have access to the attachment. No electronic version of the attachment is available; it has been supplied to Staff by hard copy only. If you have signed a Non-Disclosure Certificate in this proceeding and would like a hard copy of the attachment, please contact me. Thank you.

<<Cover - Responses to Staff's First Set.doc>> <<Responses to Staff's First Set.doc>>

Carol Gosain Steptoe & Johnson LLP 1330 Connecticut Avenue, N.W. Washington, D.C. 20036 Phone: (202) 429-6461
Fax: (202) 429-3902 cgosain@steptoe.com

- Cover - Responses to Staff's First Set.doc - Responses to Staff's First Set.doc

Message 85 of 176

FW: Edison Advice Letter 1586

Sender	jeff.dasovich@enron.com
Recipients	['d..steffes@enron.com']
File	steffes-j/inbox/339.

FYI. -----Original Message----- From: Dan Douglass [mailto:douglass@energyattorney.com] Sent: Wednesday, November 21, 2001 4:30 PM To: Dasovich, Jeff; Tamara Johnson; Mara, Susan; Neustaedter, Robert; Timothy Coffing; Frost, David; Gordon Savage; Swain, Steve Subject: Edison Advice Letter 1586

You may recall that the last summary included SCE advice letter 1586-E. This was the advice filing that seeksto implement a number of the regulatory components included in the October 2, 2001 Settlement Agreement between the CPUC and SCE. The summary noted that Edison asked for comments to be due on November 28. That request has been denied (see the attached letter), and comments are instead due on December 4.

Happy Thanksgiving, everyone!

Dan

Law Offices of Daniel W. Douglass 5959 Topanga Canyon Blvd. Suite 244 Woodland Hills, CA 91367 Tel: (818) 596-2201
Fax: (818) 346-6502 douglass@energyattorney.com <mailto:douglass@energyattorney.com>

Message 86 of 176

Additional Schedule Clarification - 202(c) witness availability

Sender	pjs@dwgp.com
Recipients	['el00-95@listserv.gsa.gov']
File	steffes-j/inbox/381.

Judge Birchman's November 23rd Order sets January 8, 2002 as the hearing date for 202(c) issues. As we discussed during the November 20th phone conference, the witness for the State Water Contractors, Richard Jones, is not available for cross examination on January 8th. As we agreed during the phone conference, Mr. Jones will be available during the December hearing dates for cross examination on the 202(c) issues.

Since he will be traveling in for the hearings we need to set a date within the December hearings when the cross examination (if any) will take place. We suggest that he be available on December 21st, the last day of the December hearings. If anyone prefers that he be available on a different date, please advise us by the end of the this week (November 30th) so that travel plans can be made.

Sincerely,

Peter J. Scanlon, Esq. Duncan, Weinberg, Genzer & Pembroke, P.C. 1615 M Street, NW Suite 800 Washington, DC 20036 T: 202-467-6370 F: 202-467-6379 E-m: pjs@dwgpc.com

Message 87 of 176

RE: lunch or breakfast?

Sender	d..steffes@enron.com
Recipients	['jason.riley@novoforum.com']
File	steffes-j/sent_items/514.

Friday breakfast works for me. 6:30 am at 59 Diner.

Jim

-----Original Message-----

From: Jason Riley <jason.riley@novoforum.com>@ENRON Sent: Monday, October 29, 2001 1:19 PM To: 'Jim Steffes - work' Subject: lunch or breakfast?

Jim, It's been a while since we visited. Let's catch up over a breakfast/lunch. Saw Civileto last week and he mentioned you have another bambino on the way. My schedule is good this Friday, else Monday or Tuesday next week. Jason Riley NOVOFORUM 10370 Richmond Ave #200 Houston , Texas 77042 832.201.3120 office <mailto:jason.riley@novoforum.com << File: mailto:jason.riley@novoforum.com >> > See us at: <http://www.novoforum.com> << File: <http://www.novoforum.com> >> Novoforum (Latin for "New Markets") provides e-business infrastructure for manufacturing and energy companies. Novoforum creates competitive advantage for its clients through cost-efficient solutions that enable supply chain integration and collaboration with their key customers, suppliers and service providers.

Message 88 of 176

FW: Stipulation Comments

Sender	jeff.dasovich@enron.com
Recipients	['susan.mara@enron.com', 'Robert C. Williams', 'd..steffes@enron.com']
File	steffes-j/deleted_items/275.

I asked Mike Day to make sure that we were kept in the distribution loop on this stuff.

Best, Jeff

-----Original Message-----

From: JBennett [mailto:JBennett@GMSSR.com] Sent: Tuesday, October 23, 2001 5:25 PM To: Jeff Dasovich (E-mail); Jim Steffes (E-mail); Sue Mara (E-mail) Subject: FW: Stipulation Comments

-----Original Message-----

From: Dan Douglass [mailto:douglass@energyattorney.com] Sent: Tuesday, October 23, 2001 11:05 AM To: Jeanne Bennett; Mike Day Cc: Robert C. Williams Subject: Stipulation Comments

Mike, Jeanne and Bob....the draft looks good...I have noted a few possible changes and one question. Let's discuss at your convenience.

With regard to interest, APSES asked for an audit. Why don't we at least ask for interest and use it at least as a trading point to get the calculation after Jan. 18 pinned down.

Dan

Law Offices of Daniel W. Douglass 5959 Topanga Canyon Blvd. Suite 244 Woodland Hills, CA 91367 Tel: (818) 596-2201
Fax: (818) 346-6502 <mailto:douglass@energyattorney.com> douglass@energyattorney.com

Message 89 of 176

EL01-10: CONFIDENTIAL- TFG Testimony of Seabron Adamson

Sender	skelley@bracepatt.com
Recipients	['linda.robertson@enron.com']
File	steffes-j/california_issues/241.

Attached please find the testimony of Seabron Adamson.

Comments should be received no later than 3:00 PM EST on Sunday, August 26. All comments and suggestions need to be in writing and can be faxed (not E-mailed) to Dan Watkiss at 202-857-2131. Also, if your suggestion is a proposed addition, please write out the exact language you would propose we incorporate into the testimony and where you would place the addition.

Shelby J. Kelley, Esq. Bracewell & Patterson, L.L.P. 2000 K Street, NW Suite 500 Washington, DC 20006-1872 (202) 828-5859 skelley@bracepatt.com

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- 01-08-22 Second draft Seabron PNW direct testimony.doc

Message 90 of 176

EL01-10: CONFIDENTIAL- TFG: Van Vactor Testimony

Sender	skelley@bracepatt.com
Recipients	['linda.robertson@enron.com']
File	steffes-j/california_issues/245.

Attached please find the testimony, exhibits and resume of Sam Van Vactor.

Comments should be received no later than 3:00 PM EST on Sunday, August 26. All comments and suggestions need to be in writing and can be faxed (not E-mailed) to Dan Watkiss at 202-857-2131. Also, if your suggestion is a proposed addition, please write out the exact language you would propose we incorporate into the testimony and where you would place the addition.

Shelby J. Kelley, Esq. Bracewell & Patterson, L.L.P. 2000 K Street, NW Suite 500 Washington, DC 20006-1872 (202) 828-5859 skelley@bracepatt.com

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- TESTIMONY OF S. VAN VACTOR.doc - SVVEXHIBITS.PPT - SVVresume01-07.rtf

Message 91 of 176

Sept. 4 Conf Call Re: Response Letter to enron UDC Billing Issues

Sender	cafergus@llgm.com
Recipients	['jklauer@llgm.com', 'ceklund@llgm.com', 'skingsle@llgm.com', 'diann.huddleson@enron.com', 'lisa.mellencamp@e...]
File	steffes-j/california_issues/16.

A conference call to continue the discussion of the above-referenced subject has been scheduled for 7:45 a.m. Central Time, Tuesday, September 4.

The dial-in number is 800-569-0883. No passcode is needed. Simply ask to join the "Ferguson" call.

Should anyone at Enron wish to change the time or date, the confirmation number 5507108.

Charles A. Ferguson One Embarcadero Center, Suite 400 San Francisco, California 94111 (415) 951-1171
cafergus@llgm.com

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Message 92 of 176

RE: Be there on Sunday @ 5p

Sender	d..steffes@enron.com
Recipients	['jason.riley@novoforum.com']
File	steffes-j/sent_items/813.

Jason --

Dinner is at 5pm at the house. We are catering from Eatzi's. Casual dress is preferred.

See you then.

Jim

-----Original Message-----

From: Jason Riley <jason.riley@novoforum.com>@ENRON
[mailto:IMCEANOTES-Jason+20Riley+20+3Cjason+2Eriley+40novoforum+2Ecom+3E+40ENRON@ENRON.com] Sent:
Tuesday, August 28, 2001 8:12 AM To: 'Jim Steffes - work' Subject: Be there on Sunday @ 5p

Jim, Thanks for the call. I'll plan on coming by on Sunday, 9-2-01 @ 5pm. Is it at the house? BBQ? dinner dress? I always want to look in top form for my buddy's birthday.....Jason Jason Riley NOVOFORUM 10370 Richmond Ave #200 Houston , Texas 77042 832.201.3120 office <mailto:jason.riley@novoforum.com << File: mailto:jason.riley@novoforum.com >> > See us at: <http://www.novoforum.com> << File: <http://www.novoforum.com> >> Novoforum (Latin for "New Markets") provides e-business infrastructure for manufacturing and energy companies. Novoforum creates competitive advantage for its clients through cost-efficient solutions that enable supply chain integration and collaboration with their key customers, suppliers and service providers.

Message 93 of 176

RE: Merry Christmas and Happy New Year

Sender	d..steffes@enron.com
Recipients	[d_perrino@msn.com]
File	steffes-j/sent_items/1538.

Dave --

I wish you and your family all of the best. May you have a happy and prosperous New Year. Please keep in touch.

Jim

-----Original Message-----

From: "Dave Perrino" <D_Perrino@msn.com>@ENRON Sent: Wednesday, December 19, 2001 10:37 AM To: d_perrino@msn.com Subject: Merry Christmas and Happy New Year

Dear Friends,

As has been my custom for the last several years since my moving from New York to California I am sending a message wishing each and every one of you and your families the Happiest and Healthiest of Holiday Seasons.

This year perhaps more than ever I have had the chance to think about how fortunate I have been to be able to send a greeting out to so many people with whom I have had the opportunity to work with and call my friends over the years. From the old NYPP to ABB, APX and Enron, it has been my pleasure to have worked with you. No matter where I have gone I have been lucky enough to meet and work with some of the best people in the industry.

My hope for each of you is to have a prosperous New Year and that I have the opportunity to see you again as time moves forward.

Happy Holidays,

Dave David F. Perrino 660 Greenview Place Los Altos, CA 94024 Home: 650.948.6937 Cell: 415.794.8740

Message 94 of 176

FW: Balanced schedule paper

Sender	charles.yeung@enron.com
Recipients	[james.steffes@enron.com]
File	steffes-j/deleted_items/613.

-----Original Message-----

From: Gilbert-smith, Doug Sent: Tuesday, November 20, 2001 11:26 AM To: Yeung, Charles Subject: FW: Balanced schedule paper

-----Original Message-----

From: Roan, Michael Sent: Monday, November 19, 2001 3:21 PM To: Maurer, Luiz Cc: Nicolay, Christi L.; Gilbert-smith, Doug Subject: Balanced schedule paper

Luiz, as discussed here is an update of what needs to be done to complete the paper.

1. Need authorization to use Larry Ruff's expertise to check argument structure and provide affidavit. Doug Gilbert Smith has agreed to pay for the use of Larry so I have left a message with Wes Coldwell (ext. 37249) who is the ENA accountant who will approve spending \$5-10k. He has not returned my call so call him tomorrow if I don't get a response today. 2. If approved call Larry (415-440-0654 work or 415-602-7069 mobile) and send him paper tomorrow with a turn around of next Monday (close of business). Give him an idea of expected cost. 3. Paper needs a final redraft after Larry's comments are

in. You should read through and think about this now but get comments from Doug (Christi's changes have largely been accomodated). 4. Final version sent to Doug for wider distribtution and use.

Give me a call with any queries.

regards Mike

Message 95 of 176

Re: Electronic Service of Unredacted Testimony and Exhibits

Sender	sjubien@eob.ca.gov
Recipients	['el00-95@listserv.gsa.gov']
File	steffes-j/california_issues/ca_refunds/117.

To all parties that emailed redacted copies of their testimony:

Please forward unredacted copies to: sjubien@eob.ca.gov ens@eob.ca.gov

All EOB staff and consultants working on this matter have signed nondisclosure certificates.

JFagan@HEWM.COM 11/06/01 05:56PM >>>

To all parties that filed unredacted responsive testimony and exhibits on Tuesday, November 6, please forward electronic versions of the same to me as well as to Stan Berman at sberman@hewm.com. We have both signed the protective order on behalf of PG&E, and are therefore eligible to receive materials labeled "not available to competitive duty personnel". We will only share these protected materials with other individuals who have also signed the protective order. Joseph H. Fagan

*ATTORNEY HellerEhrman tel.: 202.912.2162 fax: 202.912.2020 e-mail: jfagan@hewm.com web: http://www.hewm.com
Address: 1666 K Street, N.W. Suite 300 Washington, D.C. 20006-1228*

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Message 96 of 176

SMUD Response to ISO-DOE-1 PART 1 of 2

Sender	aclair@moheck.com
Recipients	['el00-95@listserv.gsa.gov']
File	steffes-j/inbox/359.

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All,

Attached please find a transmittal letter, text of SMUD's response, and an excel file containing the first portion of the attachments to SMUD's response. The remainder of the attachments will be sent by separate e-mail.

Adrienne Clair Morrison and Hecker, LLP 1150 18th Street, NW Suite 800 Washington, DC 20036 (202) 785-9100

- 13XN01_.XLS - letter.doc - response.doc

Message 97 of 176

RE: Discussion of Market Power Options for FERC

Sender	d..steffes@enron.com
Recipients	['jturnure@icfconsulting.com', 'j..noske@enron.com']
File	steffes-j/sent_items/867.

Jim --

I'll be staying downtown. Once I finalize my plans, I'll get in touch to finalize our meeting. You're right about our thinking - probably just to get a feel for some ideas, nothing formal.

Thanks,

Jim

-----Original Message-----

From: "Turnure, James" <JTurnure@icfconsulting.com>@ENRON [mailto:IMCEANOTES-+22Turnure+2C+20James+22+20+3CJTurnure+40icfconsulting+2Ecom+3E+40ENRON@ENRON.com] Sent: Wednesday, September 05, 2001 11:47 AM To: Steffes, James D. Subject: RE: Discussion of Market Power Options for FERC

Jim--

Thanks for getting back to me. I can make 7:30 AM next Thursday. Are you at a hotel in DC or surroundings? It would probably make the most sense for me to meet you there; we can talk over coffee, or else let me know what would be convenient for the two of you.

If you are truly interested in this topic, and in any sort of hurry, we can prepare a more detailed preliminary proposal in short order; but I am guessing that you are not there yet, and we can just talk about it next week. There are a couple of different ways you could proceed; it might even be interesting to combine forces with other market players through EPSA. So there's both the substance and the process to think about. I look forward to hearing your thoughts on the subject.

--Jim Turnure Principal, Energy Group ICF Consulting 9300 Lee Highway Fairfax, VA 22031 (703) 934-3617 office (202) 423-6583 cell

Message 98 of 176

RE: AReM's 2nd draft of comments responding to Carl Wood

Sender	c..williams@enron.com
Recipients	['susan.mara@enron.com', 'mike.smith@enron.com', 'd..steffes@enron.com']
File	steffes-j/california_issues/337.

Great reading. Sue, I would like to see the Supreme Court brief. I imagine Jim would, too.

-----Original Message-----

From: Mara, Susan Sent: Thursday, November 01, 2001 4:39 PM To: Williams, Robert C.; Steffes, James D.; Smith, Mike; Wu, Andrew Subject: AReM's 2nd draft of comments responding to Carl Wood Importance: High

Gang,

Here is a current draft of AReM's comments due tomorrow. Let me know if you have comments. Enron will not be submitting comments separately.

Sue -----Original Message----- From: Dan Douglass [mailto:douglass@energyattorney.com] Sent: Thursday, November 01, 2001 1:37 PM To: ARM; Gary Ackerman; Bob Anderson; Curt Hatton Subject: SECOND DRAFT OF TOMORROW'S COMMENTS Importance: High

Attached for your review and comment is a second draft of tomorrow's comments on the Wood ACR. I have added a significantly expanded section dealing with how the Commission's inaction and subsequent action contributed to the flow of customers back and forth between DA and bundled service. My thanks to Aaron Thomas for his assistance on this section.

Also, I have deleted the "CYA - not the California Youth Authority" quip -- I had to have some fun while writing this on Halloween night!

Dan

Law Offices of Daniel W. Douglass 5959 Topanga Canyon Blvd. Suite 244 Woodland Hills, CA 91367 Tel: (818) 596-2201 Fax: (818) 346-6502 douglass@energyattorney.com <mailto:douglass@energyattorney.com>

Message 99 of 176

FW: Draft PNW Testimony Will Be Circulated on Saturday

Sender	d..steffes@enron.com
Recipients	['robert.frank@enron.com']
File	steffes-j/sent_items/764.

Is this our responsive testimony? Jim

-----Original Message-----

From: "Dan Watkiss" <dwatkiss@bracepatt.com>@ENRON
[mailto:IMCEANOTES--+22Dan+20Watkiss+22+20+3Cdwtakiss+40bracepatt+2Ecom+3E+40ENRON@ENRON.com]
Sent: Wednesday, August 22, 2001 4:41 PM To: acomnes@enron.com; Steffes, James D.; Robertson, Linda; smara@enron.com; snovose@enron.com Cc: rfrank@enron.com Subject: Draft PNW Testimony Will Be Circulated on Saturday

By early Saturday afternoon, the Steering Committee plans to circulate to the TFG draft testimonies that are being developed jointly by PowerEx, PPI Montana and Enron for filing on Monday, August 27. These testimonies are structured as a suite, each complementing the other. The witnesses filing these testimonies will be Dr. Richard Tabors (PowerEx), Dr. Scott Jones (PPL), Dr. Samuel Van Vactor (Enron), and Dr. Seabron Adamson (Enron).

The sponsors of these testimonies invite TFG member comments and suggestions for improving the drafts. However, in order for your comments to be considered, they will need to be received no later than 3:00 PM EST on Sunday, August 26. All comments and suggestions need to be in writing and can be faxed (not E-mailed) to me at 202-857-2131. If your suggestion is in the nature of an addition (rather than simply an edit), please write it out as you would propose we incorporate it. Sorry that we cannot be more flexible, but you all understand the schedule that we are operating under. Thanks

Jeffrey D. (Dan) Watkiss Bracewell & Patterson, LLP 2000 K St., N.W. Suite 500 Washington, D.C. 20006-1872 (202) 828-5851 dwatkiss@bracepatt.com jdwtakiss@aol.com

Message 100 of 176

IMPORTANT - - Dates for Rescheduled DISCO Meeting and Dinner

Sender	hduncan@caem.org
Recipients	['hduncan@caem.org', 'jwimberly@caem.org']
File	steffes-j/deleted_items/339.

MEMORANDUM

September 25, 20001

RSVP REQUESTED

TO: Members of the DISCO of the Future Forum BY: Jamie Wimberly, President, CAEM RE: Dates and Materials for Rescheduled DISCO Meeting and Dinner

Due to the sad events of a few weeks ago, it was necessary to reschedule the next meeting and dinner of the DISCO of the Future Forum. The rescheduled date of the DISCO meeting is October 24th, with a dinner planned the night before on October 23rd. Both the meeting and dinner will be held at the Grand Hyatt Washington, D.C., the same hotel as previously scheduled, located at 1000 H Street, NW, Washington, D.C.

The agenda and purpose of the meeting remain the same. Our primary focus will be on the draft recommendations found in the regulatory white paper prepared by Nat Treadway, the Regulatory Subcommittee and CAEM. We also will be discussing a white paper prepared by Ron Sutherland and CAEM on the provider of last resort.

I have received some comments on the POLR paper and those comments have been incorporated into the slightly revised draft, which is attached. The Draft Regulatory Paper has NOT been revised since the last distribution, but I have attached it for your convenience.

I would ask that members hold further comment until the presentation of the papers and recommendations at the meeting itself. As always, these should be considered as drafts and your input is highly encouraged.

Please take a moment to RSVP for both the meeting and dinner as soon as possible. To RSVP, contact Hope Duncan via e-mail at hduncan@caem.org or by calling (202) 739.0134. Your quick response would be much appreciated.

Let me know if you have any questions. I can be reached via e-mail at jwimberly@caem.org or by calling (202) 483.4443.

I look forward to seeing you in October.

- DISCO-Regulation-MembersDraft(010907v14).doc - DISCO POLR Revised.doc - DISCO October Agenda.doc

Message 101 of 176

RE: Market Based Rate Analysis

Sender	d..steffes@enron.com
Recipients	['l..nicolay@enron.com', 'jsteffe@enron.com', 'eperrigo@epsa.org', 'sarah.novosel@enron.com']
File	steffes-j/sent_items/610.

Erin --

Enron is working right now to try and develop its policy on this issue. Clearly, our primary goal is to ensure that market makers such as Enron are treated fairly by the FERC rules vis-a-vis other market participants. While we are not yet enamored with any policy option, we are committed to helping FERC do whatever is necessary to create a strong and well functioning marketplace.

As soon as I have any more, I'll let you know. Sarah Novosel and I are intending to come to the meeting.

Jim

-----Original Message-----

From: "Erin Perrigo" <EPerrigo@epsa.org>@ENRON
[mailto:IMCEANOTES--22Erin+20Perrigo+22+20+3CEPerrigo+40epsa+2Eorg+3E+40ENRON@ENRON.com] Sent:
Monday, August 06, 2001 2:21 PM To: jsteffe@enron.com Subject: Market Based Rate Analysis

Hello Jim-

Greetings from the sweltering city of Washington! Per our conversation, you know that we are hosting a one day meeting on market based rate analysis here in Washington in September to "roll up our sleeves" and develop an official EPSA position, if possible, as FERC moves forward on the issue. What I'd like to get out of this message is where Enron stands - what is your take on the hub and spoke, and what are your suggested alternatives? I'd like to get a heads up of our members' perspectives on the matter prior to the meeting so as to structure the agenda in the most effective and helpful manner.

As you know, Commissioner Massey has been very vocal about re-evaluating the hub and spoke, and we now have Commissioner Brownell voicing similar concerns. Whether or not we see a NOPR in the future is anyone's call, but I'd like EPSA to be an industry leader if and when the opportunity arises. Any help you can provide would be appreciated.

Regards- -erin

Erin N. Perrigo Manager of Policy Electric Power Supply Association 1401 New York Ave., NW 11th Floor Washington, DC 20005 p) 202.628.8200 f) 202.628.8260 eperrigo@epsa.org

Message 102 of 176

RE: EL01-68-000 Request to Make a Statement

Sender	robert.frank@enron.com
Recipients	['Alan; Steffes', 'James D.', 'd..steffes@enron.com', 'Comnes']
File	steffes-j/deleted_items/3.

Alan spoke to Belden - he doesn't want to limit our involvement to TFG. We can still join w/ TFG's comments/oral statements, though.

-----Original Message-----

From: Steffes, James D. Sent: Wed 10/17/2001 6:07 PM To: Frank, Robert Cc: Subject: RE: EL01-68-000 Request to Make a Statement

Did we decide not to join with anyone else?

Jim

-----Original Message-----

From: Frank, Robert Sent: Wednesday, October 17, 2001 3:41 PM To: David.Boergers@ferc.fed.us Cc: Comnes, Alan; Steffes, James D. Subject: FW: EL01-68-000 Request to Make a Statement Importance: High

RE: Docket EL01-68-000 Investigation of Wholesale Rates of Public Utility Sellers of Energy and Ancillary Services in the Western Systems Coordinating Council.

Dear Mr. Boergers:

Enron Power Marketing Inc. (EPMI) respectfully requests the opportunity to make a statement during the October 29, 2001 technical conference in the above-referenced proceeding. EPMI would appreciate the opportunity to allow the following representative to make a statement on its behalf:

G. Alan Comnes, Director, Government Affairs Enron Corp. 121 SW Salmon Street Portland, OR 97204 email: AComnes@enron.com telephone: 503-464-8129

EPMI operates as a marketer of electric power and natural gas in markets throughout the Western Systems Coordinating Council (WSCC). EPMI has been an active participant in this and related dockets and has submitted written comments pertaining to Westwide price mitigation on both May 7, 2001 and August 20, 2001. In addition to identifying problems created by continued price mitigation in the WSCC, EPMI will identify problems that will be created if the Commission were to inconsistently apply price mitigation in the WSCC or make rule changes that create further uncertainty in the marketplace. Because of EPMI's unique position as a power marketer that operates throughout the WSCC, it has a unique perspective to provide the Commission and workshop participants.

A letter making the same request, along with Mr. Comnes' credentials, will be filed with the Commission tomorrow. If you have any questions regarding this matter, please contact me at 713-853-3180.

Sincerely,

Robert J. Frank

Message 103 of 176

Southeast RTO draft affidavit

Sender	christi.nicolay@enron.com
Recipients	[d..steffes@enron.com]
File	steffes-j/rto/20.

FYI, I haven't reviewed yet. Also, I told Andrea to not do anything on this. We can decide how we want to use it.

----- Forwarded by Christi L Nicolay/HOU/ECT on 08/01/2001 06:03 PM -----

"Cardell, Judith" <jcardell@tca-us.com> on 08/01/2001 12:26:49 PM To: "Christi.L.Nicolay@enron.com" <Christi.L.Nicolay@enron.com> cc: "Tabors, Richard" <rtabors@tca-us.com>, "Cardell, Judith" <jcardell@tca-us.com>

Subject: Southeast RTO draft affidavit

Hi Christi,

Here's the draft of the affidavit, which I have sent to Andrea Settanni as well, to review. The analysis has two sections 1) historical trading data in the southeast, and 2) a power flow analysis of 61 different transactions to examine parallel flows. We found that for all types of transactions there are extensive parallel flows throughout the southeast (Grid South, Southern Company, Grid Florida, and Entergy), including TVA and SPP as well. SPP seems to be as tightly tied to MAPP as to Entergy and SoCo, so could go either way (i.e. with the Southeast or with the Midwest).

In addition to significant parallel flows throughout, my analysis of the trade data showed quite a bit of marketer activity (both marketers such as Enron and Coral... and also marketing affiliates of transmission providers). To me this says that a large RTO is required because marketers are clearly important participants in the electricity markets in the southeast, and they do not confine themselves to small areas. The regions will need consistent trading and market rules if strong competitive markets are to develop and continue to allow the expansion of trade.

This draft should become a final version once Andrea has had a chance to check the content and format. Please let me know if this affidavit addresses your questions, or if you want to have any additional questions analyzed.

Thank you, Judy

<<affidavit draft 2.wpd>> <<Exhibit JBC-62 SE Map.pdf>> <<Exhibits JBC-1 to 61.pdf>>

Judith Cardell, Ph.D. Senior Associate Tabors, Caramanis & Associates 50 Church St. Cambridge MA 02138 ph: 617-354-5304; fax: 617-354-5882 www.tca-us.com

- affidavit draft 2.wpd - Exhibit JBC-62 SE Map.pdf - Exhibits JBC-1 to 61.pdf

Message 104 of 176

FW: PLEASE SIGN ON TO OR SUPPORT AREM'S CPUC FILING !!!

Sender	susan.mara@enron.com
Recipients	['karen.denne@enron.com', 'janel.guerrero@enron.com', 'd..steffes@enron.com']
File	steffes-j/california_issues/193.

-----Original Message-----

From: =09Mara, Susan =20 Sent:=09Tuesday, August 14, 2001 9:15 AM To:=09Allen, Stevan; arem@electric.com; Bob_Anderson@apses.com; brbarkovich= @earthlink.net; Britton McFetridge; cra@calretailers.com; Dave Modisette; d= ennis.flatt@kp.org; dhunter@s-k-w.com; Dian Grueneich; djsmith@s-k-w.com; D= ominic.DiMare@calchamber.com; drothrock@cmta.net; Erin O'Keefe; Fairchild, = Tracy; gdoar@newpower.com; gharrison@calstate.edu; hgovenar@govadv.com; jac= kson_gualco@gualcogroup.com; James Simonelli; Janie Mollon; jerry@abag.ca.= gov; .gov@mailman.enron.com; johnlatimer@capitoladvocacy.com; Julee Ball; k= en_pietrelli@ocli.com; kgough@calpine.com; kmccrea@sablaw.com; kmills@cbbf.= com; lhastings@cagrocers.com; Manuel, Erica; Margaret Catzen; mday@gmsr.co= m; mmoretti@calhealth.org; nplotkin@rcsis.com; Paul Bauer; randy_britt@robi= nsonsmay.com; richard.seguin@kp.org; RochmanM@spurr.org; Roger Berliner; rr= ichter@calhealth.org; sgovenar@govadv.com; smccubbi@enron.com; spahnn@hnks.= com; sschleimer@calpine.com; vincent.stewart@ucop.edu; vjw@ceert.org; Warne= r, Jami; wbooth@booth-law.com; wbrown@lhom.com; wlarson@calstate.edu Cc:=09'douglass@energyattorney.com'; 'erica.manuekl@edelman.com'; 'tracy.fa= richild@edelman.com' Subject:=09PLEASE SIGN ON TO OR SUPPORT AREM'S CPUC FILING !!!

AREM has a draft filing ready to go to the CPUC Today! Attached is the lat= est draft of the filing and a motion for expedited treatment. The draft giv= es the CPUC an alternative plan and some legal cover to show why they can t= ake our plan rather than kill DA. As promised last week, we would love to h= ave some of the business interests sign on to this. THOSE WHO ARE INTERESTE= D IN SIGNING ON, CONTACT DAN DOUGLASS BY NO LATER THAN 2:00 PM PDT AND HE W= ILL ADD YOU NAME ON TO THE FILING. Here is his contact info:

Law Offices of Daniel W. Douglass 5959 Topanga Canyon Blvd. Suite 244 Woodland Hills, CA 91367 Tel: (818) 596-2201 Fax: (818) 346-6502 douglass@energyattorney.com For those who cannot sign on, please consider sending a letter of support t= o the CPUC. As we said, we need to try everything to have a chance of succ= ess here. THESE FILINGS WILL BE MADE BY THE END OF THE DAY TODAY. We look forward to hearing from you. Sue Mara

Message 105 of 176

RE: Motion to Strike in Illinois Power Proceeding

Sender	janine.migden@enron.com
Recipients	['d..steffes@enron.com']
File	steffes-j/deleted_items/561.

Yes. Can you page me earlier or can we talk at 3:45 HOUSTON Time? I am in my hotel room, but will have to return by 4 EST to the hearing.

-----Original Message-----

From: Steffes, James D. Sent: Monday, November 19, 2001 8:20 AM To: Migden, Janine Subject: RE: Motion to Strike in Illinois Power Proceeding

This means that the DST proceeding moves forward - right?

How about a phone call at 3pm HOUSTON TIME to catch up on all matters?

Jim

-----Original Message-----

From: Migden, Janine Sent: Friday, November 16, 2001 11:02 AM To: Shapiro, Richard; Steffes, James D.; Boston, Roy; Kingerski, Harry; Ulrich, Marc; Sharfman, Guy; Merola, Jeff Subject: FW: Motion to Strike in Illinois Power Proceeding

...has been denied unfortunately. -----Original Message----- From: "Townsend, Christopher J. - CHI" <christopher.townsend@piperrudnick.com>@ENRON Sent: Thursday, November 15, 2001 3:40 PM To: 'jmigden@enron.com'; 'rboston@enron.com' Cc: Fein, David I. - CHI Subject: Motion to Strike in Illinois Power Proceeding

We have been informed that at this morning's status hearing, without substantive discussion, the ALJ in the Illinois Power proceeding denied Enron's motion to strike. Please feel free to call if you would like to discuss. Thank you.

Christopher J. Townsend Piper Marbury Rudnick & Wolfe 203 N. LaSalle Street Chicago, IL 60601 (312) 368-4039 (direct line) (312) 630-6300 (direct fax) christopher.townsend@piperrudnick.com

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For more information about Piper Marbury Rudnick & Wolfe, please visit us at <http://www.piperrudnick.com>

Message 106 of 176

Products on EnronOnline

Sender christi.nicolay@enron.com

Recipients ['sarah.novosel@enron.com', 'james.steffes@enron.com', 'david.forster@enron.com']

File steffes-j/eol/1.

Dave -- Per my voice mail, are you the appropriate person to assist in gathering this data? After hearing back from you, I will alert everyone about Marvin's questions.

Sarah Novosel and I talked with Marvin about his request:

(1) He prefers to have the "Product Long Description" of the gas and power products in "one computer format." (2) Enron's response to Kim Bruno's questions stated: "At the end of each day, EnronOnline makes available to all customers through EnronOnline the weighted average price of that day's transactions. The data associated with US Natural Gas is sent in this format to Gas Daily for inclusion in their automated exchange index." Marvin wants to know how to find this data on EnronOnline. (3) He wants to know who has authority to list and delist products on EnronOnline. In addition, he would like the list of gas and power products that were available on June 30 and whether any of those products have been "delisted" on July 1 (or why some products may only appear at certain times of the month.)

I will be out Thursday, but back on Friday. Sarah can be reached at 202-466-9160. Thanks for your help. Christi 37007.

----- Forwarded by Christi L Nicolay/HOU/ECT on 07/03/2001 10:07 AM -----

"Marvin Rosenberg" <marvin.rosenberg@ferc.fed.us> on 06/29/2001 03:55:54 PM To: <Christi.L.Nicolay@enron.com>, <Sarah.Novosel@enron.com> cc: "Kim Bruno" <kim.bruno@ferc.fed.us>, "Mary Lauermann" <mary.lauermann@ferc.fed.us>, "Perry Brown" <perry.brown@ferc.fed.us>

Subject: Products on EnronOnline

In order to better understand EnronOnline, we need to know more about the physical and financial products that are offered. We would appreciate a list (and description) of all natural gas and power "products" offered on EnronOnline.

Please provide your response in either MS Word 2000, WordPerfect 8 or MS Excel format on 3 1/2" diskettes or a CD-ROM.

In preparing your list, please describe all products that appear on EnronOnLine on the last trading day of June and all products that are regularly offered on EnronOnLine. If the two lists are different, please explain why products may be "delisted" from EnronOnLine. We would also like to know who has authority to add/delete products.

If you have any questions please call me at 202-208-1283.

Message 107 of 176

FW: State-by-state info: website link and password

Sender	d..steffes@enron.com
Recipients	['bryan.gottfredson@enron.com']
File	steffes-j/sent_items/92.

Bryan --

a. A good resource for you. b. Also, if anything is interesting, may want to add. Key would be MI, NV, and VA discussions.

Jim

-----Original Message-----

From: Lindberg, Susan Sent: Tuesday, September 04, 2001 5:05 PM To: Kingerski, Harry; Steffes, James D.; Linnell, Elizabeth; Barnes, Lynnette; Ogenyi, Gloria; Frank, Robert; Nicolay, Christi L. Subject: State-by-state info: website link and password

Those of you on this e-mail list might recall that several weeks ago I was on a quest for information on retail open access ...in every state.

I have since learned of a website that ENA Legal has had outside counsel prepare that contains an impressive amount of information on the topic. It includes compliance requirements, summaries of the relevant law, and much more. I have not studied the website in any detail but have been told that it has been customized for EPMI. Am forwarding it to you in case you might find it useful in the future.

SSL

-----Original Message-----

From: Moore, Janet H. Sent: Thursday, August 30, 2001 11:46 AM To: Lindberg, Susan Subject: Website link and password

As discussed! Janet

Attached please find a memo describing the first quarter updates that are now reflected on the website. Please note that the login password has been changed as follows:

<http://web-2.interliant.com/lgm/enron/lgm.nsf> user name: lgm password: astros

If you have any questions or have trouble accessing the site, please give me a call. Please also distribute the new login to members of your team who are not listed on the distribution above. SC Sandy Cofer LeBoeuf, Lamb, Greene & MacRae, LLP 1000 Louisiana, Suite 1400 Houston, Texas 77002 direct dial: 713.287.2002 fax: 713.287.2100

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Message 108 of 176

RE: Comments Due on FERC June 19 Order

Sender	d..steffes@enron.com
Recipients	['susan.mara@enron.com', 'alvarez.ray@enron.com', 'dave.perrino@enron.com']
File	steffes-j/sent_items/657.

I thought we were responding through some other group?

Jim

-----Original Message-----

From: Mara, Susan Sent: Monday, August 13, 2001 1:49 PM To: Perrino, Dave Cc: Alvarez, Ray; Steffes, James D.
Subject: FW: Comments Due on FERC June 19 Order

This meeting is tomorrow, but when you head up to Portland -- could you see if there is any interest in responding to this FERC request through WPTF or otherwise? (we have to pay, of course) -----Original Message----- From: Dan Douglass [mailto:douglass@energyattorney.com] Sent: Monday, August 13, 2001 8:39 AM To: Vicki Sandler; Mara, Susan; Steve Huhman; Roger Pelote; Rob Nichol; Randy Hickok; Nam Nguyen; Joe Paul; Dasovich, Jeff; Janie Mollon; Jack Pigott; Greg Blue; George Vaughn; Gary Ackerman; Curtis Kebler; Curt Hatton; Corby Gardiner; Charles Miessner; Carolyn Baker; Bob Anderson; Bill Ross; Ed Cazalet; Denice Cazalet Purdum; Robert Berry; Tamara Johnson; Max Bulk Subject: Comments Due on FERC June 19 Order

The FERC's June 19th "market mitigation" order provided that parties could file follow-up comments within 60 days with regard to how the market has functioned under the Order and what changes should be made to the mitigation approaches. The specific language provides as follows:

"8. Mitigation Beyond Summer 2001 Although we are confident of the efficacy of our West-wide mitigation plan throughout the Summer of 2001, we nonetheless wish to obtain comment for the purpose of revising the mitigation methodology for future periods, if necessary. Accordingly, we invite interested parties to file with the Commission comments and proposals concerning: (1) any developments, either beneficial or adverse, which have occurred in the Western region spot markets as a result of this order; (2) any difficulties with implementation of the mitigation plan detailed in the order, and the relevant solutions thereto; and, most importantly (3) any alternative market mitigation approaches. In order to provide for timely review and analysis, we will require that parties' comments and proposals be submitted to the Commission within 60 days of the date of issuance of this order."

At tomorrow's WPTF Board meeting we will be discussing the filing of comments, which would be due next Monday, in response to this invitation. This email is a heads-up that it would be helpful for Board members to begin sending comments and suggestions with regard to the three topics noted above. Thanks!

Dan

Law Offices of Daniel W. Douglass 5959 Topanga Canyon Blvd. Suite 244 Woodland Hills, CA 91367 Tel: (818) 596-2201
Fax: (818) 346-6502 douglass@energyattorney.com <mailto:douglass@energyattorney.com>

Message 109 of 176

FW: Checking in on you

Sender	d..steffes@enron.com
Recipients	['jason.riley@novoforum.com', 'scott.karro@csfb.com']
File	steffes-j/sent_items/119.

Scott --

Good to hear you were ok. Let us know if you need anything. I'm stuck in DC right now and trying to get home.

Jim

-----Original Message-----

From: Jason Riley <jason.riley@novoforum.com>@ENRON
[mailto:IMCEANOTES-Jason+20Riley+20+3Cjason+2Eriley+40novoforum+2Ecom+3E+40ENRON@ENRON.com] Sent:
Tuesday, September 11, 2001 2:06 PM To: 'Jim Steffes - work'; 'Stewart Rowlands - home' Subject: FW: Checking in on
you

-----Original Message-----

From: Karro, Scott [mailto:scott.karro@csfb.com] Sent: Tuesday, September 11, 2001 1:10 PM To: 'Jason Riley' Subject:
RE: Checking in on you Jason - thanks - i'm fine - talked to my mom and gave blood already - will keep in touch

-----Original Message----- From: Jason Riley [mailto:jason.riley@novoforum.com] Sent: Tuesday, September 11, 2001
1:47 PM To: 'Scott Karro - work' Subject: Checking in on you Scott, I know I can't get a phone call through, so thought I'd
drop you an e-mail. Thinking about all my friends in New York and hope you're all safe.....Jason Jason Riley
NOVOFORUM 10370 Richmond Ave #200 Houston , Texas 77042 832.201.3120 office
<mailto:jason.riley@novoforum.com > See us at: <http://www.novoforum.com> Novoforum (Latin for "New Markets")
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should be treated as preliminary only and subject to our formal written confirmation.

Message 110 of 176

Re: EL00-95: Data Problem

Sender	mnkunselman@swidlaw.com
Recipients	['el00-95@listserv.gsa.gov']
File	steffes-j/deleted_items/213.

Parties: As Mr. Acker pointed out, there is, indeed, an error in the formatting of the data included on the Manual
Adjustments disc distributed to parties by the ISO on October 11, 2001. The ISO is aware of the problem and is presently
working to produce new discs. They should be ready for distribution via fed-ex by Wednesday or Thursday at the latest.
Michael Kunselman Swidler Berlin Shereff Friedman, LLP 3000 K Street, NW, Suite 300 Washington, DC 20001 (202)
295-8465 The preceding E-mail message contains information that is confidential, may be protected by the attorney/client

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-----Original Message----- From: AckerCal [mailto:AckerCal@LLGM.COM] Sent: Monday, October 22, 2001 11:40 AM To: EL00-95@LISTSERV.GSA.GOV Subject: EL00-95: Data Problem Phil- I've been informed by my client that the disk that was mailed to Idacorp (and presumably to many others) on October 11, titled Settlement Manual Adjustments IE, UE & AS, is not usable. The disk contains approximately 3.4 million records and is comma delimited. The problem, I am told, is that the ADJ_COMMENTS field contains commas, which shifts the fields containing comments one column to the right causing the resulting array to be unusable. I am told that the ISO can remedy this problem if the ISO sends the same data, but with the ADJ_COMMENTS field on the end, so that it won't matter if it uses the field to the right of it. Please see the attached data sample. Please advise if there is any reason to believe this cannot or will not be corrected in very short order and how long short order will take. Thanks for your attention to this. Lawrence Acker <<Data problems.doc>>

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Message 111 of 176

RE: Kirk House

Sender	d.steffes@enron.com
Recipients	['steve.montovano@enron.com', 'richard.shapiro@enron.com']
File	steffes-j/sent_items/1275.

Thanks.

-----Original Message-----

From: Montovano, Steve Sent: Thursday, November 08, 2001 8:04 AM To: Steffes, James D.; Shapiro, Richard; Migden, Janine; Landwehr, Susan M. Subject: RE: Kirk House

I spoke with Fritz regarding Kirk House, he confirmed negative push back from "several" parties. I explained our support for Kirk as it fits the administrations goals on competition etc. He told me to concentrate on the senate which is where the opposition was building its case against Kirk. He also told me that he would not be sending any names to the seante for awhile until they confirmed next PSC commisioner, probably in Nov. Clearfield tells me that AT&T is strongly supporting Kirk both at the Gov office as well as the Senate. I asked Dan to get our support known for Kirk in the Senate, however if AT&T can't get it done I doubt we will have that much of an impact. We will pursue however to the extent resources allow. SM

-----Original Message-----

From: Steffes, James D. Sent: Tuesday, November 06, 2001 12:57 PM To: Shapiro, Richard; Migden, Janine; Montovano, Steve; Landwehr, Susan M. Subject: RE: Kirk House

I would recommend that either Steve or myself call Bittenbender to recommend Kirk House - we met with him on the RTO discussions.

Jim

-----Original Message-----

From: Shapiro, Richard Sent: Tuesday, November 06, 2001 9:52 AM To: Migden, Janine; Steffes, James D.; Montovano, Steve; Landwehr, Susan M. Subject: RE: Kirk House

We should do it..you all figure out who is best person is. Thanks.

-----Original Message-----

From: Migden, Janine Sent: Tuesday, November 06, 2001 9:48 AM To: Shapiro, Richard; Steffes, James D.; Montovano, Steve; Landwehr, Susan M. Subject: FW: Kirk House

I received a call from Dan Clearfield this morn. Nora Mead-Brownell has asked for his assistance in getting marketers to call the governor's office in support of Kirk House who is a former aide and is seeking the position of Small Business Advocate. Mr. House is a supporter of competition and would be helpful in that position. Apparently, the electric companies are opposing him. I would recommend that we make the call and I would be happy to do so, however, there are others who may have better contacts than I do (such as Sue in her work with the Governors), Please advise.

Janine

-----Original Message-----

From: "Daniel Clearfield" <dclearfield@wolfblock.com>@ENRON Sent: Tuesday, November 06, 2001 8:58 AM To: JMigden@enron.com Subject: Kirk House

Here is the name and number of the person in the Gov's office that deals with utility issues: Fritz Bittenbender, 783-2896. The appointment is made by the Gov. (Schweiker). He has two top aides: Mark Campbell and Dave Sanko. I can get you current phone #s for the latter people if you wish them. Thanks for whatever help Enron can be.

Daniel Clearfield, Esq. Wolf, Block, Schorr and Solis-Cohen LLP 212 Locust St., Suite 200 Harrisburg, PA 17101 (717) 237-7173 (717) 237-7161 fax

Message 112 of 176

FW: EPSA MBR Paper

Sender	d..steffes@enron.com
Recipients	[Amy; Goldberg; Julie Simon; Sheridan; Alex; Thuston; richard.shapiro@enron.com; Tim]
File	steffes-j/sent_items/2241.

FYI -----Original Message----- From: Comnes, Alan=20 Sent: Friday, November 09, 2001 12:26 PM To: Steffes, James; Novosel, Sarah Subject: FW: EPSA MBR Paper

FYI -----Original Message----- From: Neason, Judy [mailto:Judy.Neason@williams.com] Sent: Friday, November 09, 2001 9:41 AM To: 'Erin Perrigo'; fallonr@dsmo.com; mfgildea@duke-energy.com; Steve.Hunto= on@dynegy.com; acomnes@enron.com; dennis.capella@exeloncorp.com; jeffrey.ro= ark@mirant.com; jack.hawks@neg.pge.com; jadillon@pplweb.com Cc: Julie Simon; Sheridan, Amy; Goldberg, Alex; Thuston, Tim Subject: RE: EPSA MBR Paper

Erin,=20 Thanks for the advance copy of the paper. While there are a number= of very good points made in the paper, Williams has a fundamental problem = with EPSA endorsing a new market power test that is more stringent than we = think is necessary. We would recommend that EPSA support the Limited Compe= ting Supplier Test, or perhaps simply take the position in option 5 (no tes= t for bid-based markets operated by an ISO or RTO). We simply believe that= EPSA should not be "negotiating with itself" at this juncture. That is, w= e should not assume that the majority of the Commissioners are with Massey.= We should use this paper to argue to the other Commissioners and staff th= at if they move off Hub and Spoke, they only need to move incrementally, no= t dramatically. In making this recommendation we recognize that this may n= ot be enough for FERC and we may not like what we end up with. But William= s is simply not prepared to support a position we really don't agree with i= n the hope that we can avoid an even worse result. I particularly recall L= inda Breathitt's reservations about these issues (voiced at the meeting a m= onth ago) and am hopeful that we can influence Wood and Brownell in this re= gard.

The language that reiterates EPSA's position that FERC's primary fo= cus should be on getting market design right is very well done. Also the a= rguments on why it would be disastrous to condition our market based rate a= uthority is well done and timely.

We recognize that EPSA has been working on this issue for weeks now= , but this is not a simple issue and we have needed this time to think it t= hrough. We appreciate your efforts and believe this is an important issue = for EPSA. Thanks, Judy Neason

-----Original Message-----=20

From: Erin Perrigo [<mailto:EPerrigo@epsa.org>]=20 Sent: Thursday, November 08, 2001 10:06 AM=20 To: fallonr@dsmo.com; mfgildea@duke-energy.com;=20 Steve.Huntoon@dynegy.com; acomnes@enron.com;=20 dennis.capella@exeloncorp.com; jeffrey.roark@mirant.com;=20 jack.hawks@neg.pge.com; jadillon@pplweb.com; Neason, Judy=20 Cc: Julie Simon=20 Subject: EPSA MBR Paper=20

Attached is the last draft of the MBR paper from Boston Pacific. We are no= t sending it to the entire group at this point - but would like provide tho= se who have been most active an opportunity to see it one more time. We'd = like to have all comments by tomorrow, COB.

-Erin=20

Erin N. Perrigo=20 Manager of Policy=20 Electric Power Supply Association=20 1401 New York Ave., NW=20 11th Floor=20 Washington, DC 20005=20 p) 202.628.8200=20 f) 202.628.8260=20 eperrigo@epsa.org

Message 113 of 176

FW: Texas PUC Staff Questions Market Readiness in SPP

Sender	d..steffes@enron.com
Recipients	['eric.letke@enron.com', 'jean.ryall@enron.com', 'nancy.hetrick@enron.com']
File	steffes-j/sent_items/641.

Jean --

Please call Eric to understand the implications of filing or not filing on this issue.

Jim

-----Original Message-----

From: Letke, Eric Sent: Monday, August 13, 2001 7:56 AM To: Steffes, James D. Subject: Texas PUC Staff Questions Market Readiness in SPP

Give me a call (35676). most of the customer's we are currently engaged with, have very little load behind the non-ERCOT utilities. however, do not have a feel for future prospects.

Question, is this an opportunity to force the utilities to implement pro-dereg measures (i.e., to the PUC, why else would it work behind other utilities and not here?). ----- Forwarded by Eric Letke/HOU/EES on 08/13/2001 07:53 AM

----- From: James D Steffes/ENRON@enronXgate on 08/12/2001 04:58 PM To: Eric Letke/HOU/EES@EES, James B Wood/EWC/Enron@ENRON, Scott Gahn/HOU/EES@EES cc: Nancy Hetrick/ENRON@enronXgate, Thane Twiggs/ENRON@enronXgate, Jeremy Blachman/HOU/EES@EES Subject: Texas PUC Staff Questions Market Readiness in SPP

As you can see from the comments below, staff at the Texas PUC is considering whether or not certain areas of Texas are ready for competition (the non-ERCOT region).

Who on your teams do we need to talk to understand the implications of this action?

Jim

-----Original Message-----

From: Hetrick, Nancy Sent: Friday, August 10, 2001 2:46 PM To: Merola, Jeff; Herod, Brenda F.; Smith, Ben; Woodward, Jason; Fite, Rebecca; Wagner, Joseph Cc: Twiggs, Thane; Ryall, Jean; Kingerski, Harry; Steffes, James D. Subject: Physical Delivery in SPP

The Staff of the PUCT has filed a petition to determine whether the market institutions and participants are ready for competition in the Texas portion of SPP (SERC), namely Entergy Gulf States, SWEPCO, and WTU power regions, copies attached. Staff has also requested the PUCT to suspend the capacity auction for Entergy and SWEPCO but not for WTU. The petition requests the PUCT to make the determination at the November 1, 2001, meeting and to suspend the capacity auction at the August 23, 2001, meeting.

In support of their petition, staff argues that there has been limited participation in the SERC region, based on an "informal survey" of the staff. Staff also explains that the FERC has not yet approved a RTO for the SERC region (SPP). Staff is concerned that if auction of capacity results in a low price, this will have a detrimental effect of the affiliated REPs headroom under the price to beat determination as it is all tied to the price of capacity at the auction. In addition, staff is concerned if Entergy or SWEPCO sells 15% of their capacity and are required to serve 100% of their load. The staff has not requested a delay in the WTU capacity auction due to the fact that the WTU capacity is located in ERCOT and WTU's relatively small load.

In order to prepare for filing comments, if necessary, Enron Government Affairs would like to know the following: 1) Does EES/EWS have signed contracts for physical delivery in Entergy, SWEPCO or WTU? 2) What amount of load do we have contracted in each utility within SPP? 3) It appears that SPP will not open and no RTO will be in place on 1/1/02. Therefore, is EWS prepared to operate in SPP under the existing control area structure?

Please forward your responses to Thane Twiggs and myself. Also, please feel free to contact either of us if you have any questions. Thanks.

Thane Twiggs 713-853-3199 Nancy Hetrick 712-366-3399

Message 114 of 176

FW: ERCOT LSE's

Sender	nancy.hetrick@enron.com
Recipients	['harry.kingerski@enron.com', 'd.steffes@enron.com']
File	steffes-j/deleted_items/133.

FYI! Please see the emails below. I just wanted to let you know that this "political" battle within EES/EWS is brewing. I have been providing support whenever I have been asked, e.g. answering questions, research, etc. I will be in my office tomorrow if you would like to discuss or have any questions. Otherwise you can page me today (I have meetings and flights, but I will call if I can.) Thanks.

Nancy A. Hetrick Enron Corp. Director, Government Affairs Phone: 712-366-3399 Pager: 888-912-1426

-----Original Message-----

From: Ader, Jeff Sent: Tuesday, October 16, 2001 12:21 PM To: Wagner, Joseph Cc: Delainey, David; Dietrich, Janet; Blachman, Jeremy; Holmes, Sean; Bernstein, Mark; Hetrick, Nancy; Herndon, Rogers; Ochsner, Preston Subject: Re: ERCOT LSE's

Joe,

I requested a meeting with you yesterday to work with you and convey what we have learned over the last three months by working with regulatory and the ERCOT ISO to utilize and create additional LSE accounts. As you were informed by Nancy Hetrick of regulatory all three currently available LSE account are committed by Structured Supply for use under currently negotiated masters. We requested the meeting with you yesterday to explain what we were doing and why we needed the other three EES LSE accounts. We also took the time to explain the process for establishing new LSE accounts, under a LLC structure which is not complicated, but the structure that the new LSE accounts would be created under (SPV) is inconsistent with the masters negotiated and EES would not be able to perform under these masters.

We have tried to work with you in cooperation to accomplish your goals consistent with the constraints of the ERCOT rules. We have explained our needs and the reason for them. We conveyed our interest in working together to accomplish

the greater good for the company and offered our help in any way we could. You mark and I agreed that it would be easier to help each other and not duplicate efforts. We were appreciative of your willingness to proceed consistent with this spirit of cooperation. It disheartens and surprises me that you would leave the meeting with this understanding and in agreement of the business situation and send an e-mail the next morning, without picking up the phone or stopping by to discuss this and just attempt to dictatorially commandeer the LSE accounts that you knew were committed and why they were committed.

Moreover; you told us that you thought you might need one more and you have attempted to take three more.

Best regards,

Jeff

From: Joseph Wagner/ENRON@enronXgate on 10/16/2001 09:14 AM To: Mark Bernstein/HOU/EES@EES, Jeff Ader/HOU/EES@EES cc: Nancy Hetrick/ENRON@enronXgate, Rogers Herndon/ENRON@enronXgate, Preston Ochsner/ENRON@enronXgate Subject: ERCOT LSE's

Thank you for taking the time to discuss the LSE situation in ERCOT. The present LSE was set up by EES and is being utilized by EWS Retail and EWS Services Group, for physical delivery in ERCOT for EES load. In order to better manage EES volume and structure growth in ERCOT, billing issues, and optimization of the present and future portfolio, EES/EWS Retail will require the use of the sub LSE's available under EES's existing LSE arrangement. Structured Supply will be responsible for the creation of any LLC's that need to be created to facilitate additional LSE availability. If you have any questions or comments, please either email or call me (ext 33143). Thanks.

-Joe

Message 115 of 176

RE: Market Based Rate Analysis

Sender	d..steffes@enron.com
Recipients	['l.nicolay@enron.com', 'sarah.novosel@enron.com']
File	steffes-j/sent_items/579.

I agree with Christi's point. The problem is that those arguments - effectively that real competition will take away market power - are no longer effective at FERC. I think that Massey and Wood are ready to do something more potent. My primary question is how do we think that Appendix A would apply to Enron? Do we want Hirenymous (sp?) to undertake a proxy exam to see the real impact?

I am going to try and schedule a phone call for next Friday to outline our next steps. Should anyone else be in on the call? Who else could lead this analysis for us (given that we are all so busy)?

Jim

-----Original Message-----

From: Nicolay, Christi L. Sent: Saturday, August 11, 2001 2:21 PM To: Steffes, James D.; Novosel, Sarah Subject: RE: Market Based Rate Analysis

After looking at the EPSA draft documents (Craig Roach etc.), here are some thoughts. Also, it seems that we should be able to work with EPSA (then hopefully it can be Enron's position, as well).

Ideas for Determining Market Power mitigation: --How long can price be influenced? (for example, a generator in a load pocket vs. DSM, onsite generation, new transmission, new technologies, additional generator). --Price spikes in times of shortage are normal -- This can signal the need for more generation, gas, etc. Prices should reflect costs that are incurred during drilling, etc./ keeping rigs available, etc. --Market Power can be mitigated in a variety of ways by new entry through IPPs, merchant transmission, regular cost based transmission, access to interconnection and transmission on a non-discriminatory basis. -- Need real time price and other RTO information (transparency) in order to effectively monitor

and to send good price signals for the new entrants (who are putting their capital at risk, rather than the traditional cost-based, almost guaranteed recovery).

-----Original Message-----

From: Steffes, James D. Sent: Mon 8/6/2001 6:39 PM To: Nicolay, Christi L.; Novosel, Sarah Cc: Subject: FW: Market Based Rate Analysis

Christi & Sarah --

Any preference for how we proceed on developing an Enron position?

My preference is to establish stronger mechanisms but I don't know how to make them only apply to generators, not to marketers.

We need this pretty soon.

Jim

-----Original Message-----

From: "Erin Perrigo" <EPerrigo@epsa.org>@ENRON [
<mailto:IMCEANOTES-+22Erin+20Perrigo+22+20+3CEPerrigo+40epsa+2Eorg+3E+40ENRON@ENRON.com>]

Sent: Monday, August 06, 2001 2:21 PM To: jsteffe@enron.com Subject: Market Based Rate Analysis

Hello Jim-

Greetings from the sweltering city of Washington! Per our conversation, you know that we are hosting a one day meeting on market based rate analysis here in Washington in September to "roll up our sleeves" and develop an official EPSA position, if possible, as FERC moves forward on the issue. What I'd like to get out of this message is where Enron stands - what is your take on the hub and spoke, and what are your suggested alternatives? I'd like to get a heads up of our members' perspectives on the matter prior to the meeting so as to structure the agenda in the most effective and helpful manner.

As you know, Commissioner Massey has been very vocal about re-evaluating the hub and spoke, and we now have Commissioner Brownell voicing similar concerns. Whether or not we see a NOPR in the future is anyone's call, but I'd like EPSA to be an industry leader if and when the opportunity arises. Any help you can provide would be appreciated.

Regards- -erin

Erin N. Perrigo Manager of Policy Electric Power Supply Association 1401 New York Ave., NW 11th Floor Washington, DC 20005 p) 202.628.8200 f) 202.628.8260 eperrigo@epsa.org

Message 116 of 176

FW: REVISED EIA Alternate Electric Power Data Confidentiality

Sender	d..steffes@enron.com
Recipients	['susan.lindberg@enron.com']
File	steffes-j/sent_items/822.

FYI. Please coordinate going forward with EPSA.

Jim -----Original Message----- From: "Samantha Slater" <SSLATER@epsa.org>@ENRON
[mailto:IMCEANOTES-+22Samantha+20Slater+22+20+3CSSLATER+40epsa+2Eorg+3E+40ENRON@ENRON.com]
Sent: Tuesday, August 28, 2001 10:03 AM To: jconnelly@calpine.com; breilley@coral-energy.com;
lebarrett@duke-energy.com; john.j.stauffacher@dynegy.com; steve.dalhoff@dynegy.com; Jenni.Barr@ElPaso.com;
jsteffe@enron.com; pschaub@entergy.com; jtsheehan@mediaone.net; susann.felton@mirant.com;
CParnell@MWGen.com; don.beckham@neg.pge.com; melissa.lavinson@neg.pge.com; joe.isabella@nrgenergy.com;

greg.towstego@opg.com; Kristen.Ludecke@pseg.com; lvollmer@pwrteam.com; chajovsky@reliant.com; dacrabtree@tecoenergy.com; jlsena@tecoenergy.com; gkunkel@TENASKA.com; jmartin@TENASKA.com Cc: Jackie Gallagher Subject: REVISED EIA Alternate Electric Power Data Confidentiality Policy

Last week, EPSA met with EIA to discuss a revised Alternate Electric Power Data Confidentiality Policy proposal. The following are EIA's changes to the original Alternate Policy proposal circulated by EPSA on August 2.

The following items would be held confidential:

EIA - 423: cost of fuels (not previously collected by EIA) Purchase price would also still be held confidential, as noted on the original Alternate Policy. EIA-423 basically duplicates FERC Form 423.

EIA-906: fuel stocks (currently held confidential) Stocks was originally "crossed out" on the Alternate Policy, but it is now back on the list of data items to be held confidential.

EIA-826: energy service provider data on sales, revenues and number of customers Under the original Alternate Policy, regulated utilities and wires companies would have also been able to keep this same information confidential. Now it will only be data submitted by ESPs that will be held confidential. However, please note that EIA-861 collects this same data from ESPs and that data will be released on an annual basis.

EIA-767: Under the revised Alternate Policy, no data submitted on the 767 will be held confidential This is a change from the original Alternate Policy. The original Alternate Policy includes estimated useful thermal output, plant financial information, cooling system costs, etc. as data to be held confidential. The data will now be released 12 months after year-end.

EIA-860: Maximum tested heat rate (currently confidential) No change from original Alternate Policy.

EIA-861: No data submitted on the 861 will be held confidential No change from original Alternate Policy.

EIA-411: No data submitted on the 411 will be held confidential. No change from original Alternate Policy.

EIA-412: Generator plant costs and expense data only for unregulated plants (not previously collected by EIA) No change from original Alternate Policy.

I've attached a copy of the original Alternate Policy in case you need it.

Please forward any comments on these changes to me no later than noon Eastern Time on Friday, August 31.

EIA anticipates a Federal Register Notice on or around September 7. There will then be a 30-day comment period on the proposal submitted by EIA to OMB. We will notify you when the Federal Register Notice is issued.

Mary Hutzler, Acting Administrator at EIA, has expressed an interest in meeting with EPSA and its members to further discuss these issues. If there is an interest in EPSA arranging a meeting for members in Washington, D.C. during the next few weeks, please let me know as soon as possible.

If you have any questions, please let me know.

Thanks again for all of your help!

Samantha

Samantha M. Slater Manager of State & Regional Affairs Electric Power Supply Association 1401 New York Avenue, N.W. 11th Floor Washington, D.C. 20005 Phone: 202-628-8200 Fax: 202-628-8260 E-mail: sslater@epsa.org

- Confidentiality.doc

Message 117 of 176

RE: FW: Midwest ISO Joint Petitioners' Proposed Settlement

Sender	d..steffes@enron.com
Recipients	[l..nicolay@enron.com]
File	steffes-j/sent_items/1319.

Is everything ok??

-----Original Message-----

From: Nicolay, Christi L. Sent: Monday, November 12, 2001 3:58 PM To: Steffes, James D. Subject: RE: FW: Midwest ISO Joint Petitioners' Proposed Settlement Agreement - IURC C...

JIM please call me about this! thanks. -----Original Message----- From: Steffes, James D. Sent: Friday, November 09, 2001 9:28 AM To: Migden, Janine; Roan, Michael; Stroup, Kerry; Nicolay, Christi L.; Novosel, Sarah Subject: RE: FW: Midwest ISO Joint Petitioners' Proposed Settlement Agreement - IURC C...

I think that Enron is interested supporting your idea. Let's weigh in with appropriate language that counters the below language -

I think that the state-level parties (and the IURC) have an interest in the MISO acknowledging that it is an Indiana utility with SOME degree of accountability re (at least) bundled retail load to the Indiana Commission and the Indiana parties.

Please work with Sarah N. to create a reasonable response and our key arguments.

Jim

-----Original Message-----

From: Migden, Janine Sent: Friday, November 09, 2001 9:19 AM To: Roan, Michael; Stroup, Kerry; Steffes, James D.; Nicolay, Christi L. Subject: FW: FW: Midwest ISO Joint Petitioners' Proposed Settlement Agreement - IURC C...

Citizens Action has been going back and forth with Cinergy on the jurisdictional question and the right for the IURC to reinsert itself after approval of transfer, ie rights of review down the road. At this point, I have stayed out of the email traffic, but we could weigh in supporting the concept that MISO is FERC jurisdictional. See below.

-----Original Message-----

From: MullettCAC@aol.com@ENRON Sent: Thursday, November 08, 2001 5:40 PM To: Ron.Brothers@cinergy.com Cc: mork@ucclan.state.in.us; jlyle@mullettlaw.com; tstewart@lewis-kappes.com; jmigden@enron.com Subject: Re: FW: Midwest ISO Joint Petitioners' Proposed Settlement Agreement - IURC C...

Ron:

It seems to me that the IURC cannot approve transfer of operational control to an RTO which does not have FERC approval, but it also seems to me that the IURC is not required to approve transfer of operational control to an RTO which does have FERC approval. In other words, come December 15, or January 1, or January 15, we could have Indiana utilities still being operated in accordance with their own Open Access Tariffs just as they are today. Do you agree or disagree with that proposition?

If my proposition is correct, then the issue becomes whether the proposed transfer of operational control to MISO meets the requirements of Section 83, i.e. a "public interest" standard.

As you know, I think that MISO has done a creditable (although by no means perfect) job in considering and balancing the interests of affected parties and has a meaningful stakeholder input process. So, I think that it would be a mistake for Indiana parties to try and "load up" the IURC approval process with a lot of party-specific "Christmas tree ornaments."

By the same token, I am quite concerned about a "rubber stamp" approach to IURC review. I think that the state-level parties (and the IURC) have a significant interest in the transfer being for a term of years which does not exceed five. I think the State should retain the ability to withdraw its approval of the transfer of operational control and investigate the

effects of MISO operation on Indiana retail load. I think that the state-level parties (and the IURC) have an interest in defining the goals or standards for MISO performance during the initial transfer period, based on which an extension of the authorization would subsequently be granted or denied. I think that the state-level parties (and the IURC) have an interest in the MISO acknowledging that it is an Indiana utility with SOME degree of accountability re (at least) bundled retail load to the Indiana Commission and the Indiana parties. And, I do not see those interests being recognized or accommodated very much, if at all, in your settlement proposal. Do you disagree? If so, tell me how you see those interests addressed in your proposal.

I want to hear what others say, but as matters stand my inclination would be to pursue these issues in the hearing, brief them, and then let the Commission decide. Do you think that this approach would delay the IURC decisional process enough to make a difference? If so, how much delay with what effect?

Thanks.

Mike

Michael A. Mullett Mullett & Associates 309 West Washington Street, Suite 233 Indianapolis, IN 46204 Phone: (317) 636-5165 Fax: (317) 636-5435 E-mail: mullettcac@aol.com

Message 118 of 176

RE: CMTA Legislative Weekly - 11/02/01

Sender	d..steffes@enron.com
Recipients	['jeff.dasovich@enron.com']
File	steffes-j/sent_items/2136.

lower rates first - they still don't get it

-----Original Message-----

From: Dasovich, Jeff Sent: Friday, November 02, 2001 12:13 PM To: Robertson, Linda; Shapiro, Richard; Steffes, James D.; Kaufman, Paul; Mara, Susan; 'bhanson@lhom.com'; 'hgovenar@govadv.com'; Scott Govenar (E-mail) Subject: FW: CMTA Legislative Weekly - 11/02/01

FYI. Note that, in response to Davis' "economic summit," the California Manufacturer's Association included in its top 3 initiatives the need to re-instate DA.

Best, Jeff -----Original Message----- From: Geri L. Royer [mailto:groyer@cmta.net] Sent: Friday, November 02, 2001 11:58 AM To: undisclosed-recipients Subject: CMTA Legislative Weekly - 11/02/01

Legislative Weekly November 2, 2001 Issue 43, Volume 3

A weekly publication from the California Manufacturers & Technology Association detailing legislative and regulatory developments in Sacramento

CMTA PARTICIPATES IN GOVERNOR'S ECONOMIC SUMMIT Press Release

Today at Governor Davis' Economic Summit at Walt Disney Studios in Burbank, California, the California Manufacturers & Technology Association (CMTA) proposed three recommendations to help bring immediate relief to the state's faltering economy.

"California is in a dramatic economic decline," said CMTA President Jack M. Stewart. "Manufacturing employment is down 63,000 this year and by more than 10,000 jobs in September alone. The state's unemployment rate has risen steadily for the eight consecutive months, peaking at its present 5.4 percent."

"It's time for the state to implement new policies that will incent investment sooner rather than later," said Stewart.

CMTA today will introduce proposals to:

Implement a Sales Tax Exemption <<http://www.cmta.net/press/salestax110201>> (<<http://www.cmta.net/press/salestax110201>>) on Manufacturing, Processing and Telecommunications Equipment Reduce Electricity Rates <<http://www.cmta.net/press/electricrates110201>> (<<http://www.cmta.net/press/electricrates110201>>) and Provide Customer Choice in Energy Declare a Moratorium on New and Increased Regulatory Fees <<http://www.cmta.net/press/stopfees110201>> (<<http://www.cmta.net/press/stopfees110201>>) and Taxes

These initiatives will comprise the association's focus in the coming months, and were a collaborative effort among CMTA members.

"The costs associated with a battered business community are not only measured by stock-tickers and cable financial networks. They are the human toll of jobs that are lost, mortgages that fail and families that go with less," added Stewart. "These measures will restore confidence in every manufacturers' ability to remain productive and allow them to reinvest in the state's workforce."

California's manufacturing sector currently produces:

80 percent of state exports One sixth of state payroll 40 percent higher wages than the statewide average And for every manufacturing job, an additional 1-3 jobs are produced

"These proposals are common sense ideas that will send a strong message to the largest and most important sector of our economy that the state will provide the critical relief they need to help themselves and help California through this economic crisis," concluded Stewart.

BAY AREA VENTURE INVESTMENT FALLS

According to just released data from Venture Economics and the National Venture Capital Association (NVCA), venture capital investment in the Bay Area during the 3rd quarter dropped 27 percent over the 2nd quarter of this year. Investment has slowed significantly this year and the 3rd quarter investment is 74 percent lower than the \$9.3 billion high reached during the 2nd quarter of 2000.

The Bay Area drop in investment nearly matched the national trend for the 3rd quarter. Venture capitalists invested \$7.7 billion nationally during the quarter, down 31 percent from the previous quarter, and 73 percent from the \$28.5 billion high of last year.

"Although these are clearly difficult times for all business sectors, the venture industry will persevere. Veterans in our industry recognize this downturn as part of the long-term venture capital cycle. Real value can be created in down cycles by sticking with committed entrepreneurs with strong business models and the tenacity to see their ideas through," commented Mark Heesen, NVCA President.

CMTA GETS VETO ON BILL RESTRICTING SICK LEAVE

At the urging of the California Manufacturers and Technology Association (CMTA) and other employer organizations, Governor Gray Davis vetoed SB 1197 by Senator Gloria Romero (D-Los Angeles). The bill would have prohibited an employer to count any sick leave taken by an employee to tend to a sick child, parent or spouse in any absence control program

Current law permits an employee to use half of their annual accrued sick leave in a calendar year to attend to the illness of a child, parent, or spouse who would not otherwise qualify under the family medical leave act that only applies to serious health conditions. The provision covers brief illnesses such as colds, high temperature, sore throats etc., that are more likely to be associated with children and is less likely to involve physician or hospital care. However, employers opposed the bill because many employees take advantage of the easy threshold and use it to avoid workplace sanctions.

When employees don't show up or show up late for work, it negatively impacts production. In order to mitigate this problem, employers have implemented absentee control programs that may include counseling, suspension and termination. After the above provision became law, employers began to see a steady rise in the use and abuse of sick leave under this provision, so employers decided to include sick leave in their employee absence control programs in order to eliminate the abuse. SB 1197 would have eliminated that option and could have forced employers to take a more drastic action to resolve the problem.

In addition to insuring that production schedules are met, the main reason for an employer's absence policy is to provide a fair way to identify and deal with those employees who have trouble coming to work as scheduled and/or on time. Making a decision to sanction an employee under an absence control policy is not taken lightly by employers and must be based on sound reasoning. For example, if an employee's attendance records were examined and patterns of use involving sick leave were to show unusually high usage on Fridays, Mondays and holiday weekends and the employee were to declare that the absences were for family member sick leave purposes, no disciplinary action could be taken. In other instances, it is used to cover for tardiness that would otherwise be sanctioned under the employer absence control program by calling in just before the shift begins in order to start the shift late.

SB 1197 would have provided for new lawsuits for violation of the statute where an employer has an absence control policy. Consider that employers are not required to provide sick leave and the bill would only apply to those employers who voluntarily provide sick leave for their employees. CMTA discussed with legislators the counter-productive nature of restricting an employer's ability to manage a voluntarily provided benefit. When laws become overly restrictive or very difficult to comply with and the employer is facing sanctions for violations, it provides a strong incentive for the employer to simply eliminate their sick leave program.

CMTA believes that it would be poor public policy to protect those employees who have trouble getting to work under SB 1197 and could end up eliminating the benefit for all employees. CMTA applauds Governor Davis's veto of the bill.

www.cmta.net <<http://www.cmta.net>> Californi

Message 119 of 176

nan	
Sender	susan.mara@enron.com
Recipients	[Lynch', 'jeff.dasovich@enron.com', 'Richard A.', 'Brown', 'Geoffrey F.', 'Duque', 'Loretta', 'Bilas', 'd..st...
File	steffes-j/california_issues/10.

Here it is -----Original Message----- From: Watson, Ann [mailto:anw@cpuc.ca.gov] Sent: Tuesday, August 28, 2001 1:22 PM To: 'smara@enron.com' Subject: FW: MOTION SEEKING ORDER OR STAY CANCELING OR SUSPENDING CALIFORNIA DEPARTMENT OF WATER RESOURCES LONG-TERM ENERGY CONTRACTS AND ASSOCIATED I OU RATE SCHEDULES FOR LACK OF PROPER NOTICE UNDER THE FPA

Ann Watson Advisor to Commissioner Bilas California Public Utilities Commission (415) 703-1175 fax: (415) 703-5091 email: anw@cpuc.ca.gov

-----Original Message-----

From: Boyd, Mike [mailto:Mike.Boyd@Aspect.com] Sent: Tuesday, August 28, 2001 11:22 AM To: 'mdjoseph@adamsbroadwell.com'; 'mgrothus@aol.com'; 'staction@aol.com'; 'mtollstr@arb.ca.gov'; 'wdeboisblanc@baaqmd.gov'; 'pmackin@caiso.com'; 'kena@calpine.com'; 'etewes@ch.morgan-hill.ca.gov'; 'Forrest.williams@ci.sj.ca.us'; 'janis.moore@ci.sj.ca.us'; 'kent.edens@ci.sj.ca.us'; 'pac@cpuc.ca.gov'; 'vfracar@divco.com'; 'williams4064@earthlink.net'; 'pjfoehr@encinal.mhu.k12.ca.us'; 'tflynn@eob.ca.gov'; 'pburnett@garlic.com'; 'murphysmailbox@juno.com'; 'jeff.wade@lmco.com'; 'Mark.harrer@mirant.com'; 'rteeter@ncal.verio.com'; 'dr_j@pacbell.net'; 'rachael.gibson@pln.co.Scl.ca.us'; 'ljaimes@scvwd.dst.ca.us'; 'sascholz@southsanjose.com'; 'iajlouny@us.ibm.com'; 'tate@us.ibm.com'; 'jimcos42@worldnet.att.net' Cc: 'Lynch, Loretta'; 'Bilas, Richard A.'; 'Brown, Geoffrey F.'; 'Duque, Henry M.'; 'Wood, Carl W.'; 'Aguilar, Arocles'; 'Barnsdale, Andrew'; 'Clanon, Paul'; 'Cohen, Gary M.'; 'Dryvynsyde, Geoffrey'; 'Gamson, David M.'; 'Halligan, Julie'; 'Julian, Bill'; 'Kranawitter, Laura L.'; 'Long, Tom'; 'Minkin, Angela K.'; 'Serizawa, Linda'; 'Thompson, Thomas W.'; 'Watson, Ann'; 'Weissman, Steve'; 'saw0@pge.com'; 'Wong, John S.'; 'bk7@pge.com'; 'mikeboyd7@home.com'; 'puma@davis.com'; 'gumbrelli@cs.com'; 'philmitchell@att.net'; 'Robert F. Williams'; 'Jeff Wade-'; 'Jeff Wade - home'; 'Donna Kehne'; 'Jim MacDonald'; 'Joe & Paula Hawkins'; 'Jack Regula'; 'marka'; 'drdalesmith@newworld.net'; 's275@hotmail.com'; 'benduble@jps.net'; 'gmay1@cctimes.com'; 'Nlevey@sjmercury.com'; 'feedback@southsanjose.com'; 'jwoolfolk@sjmercury.com'; 'mark.golden@dowjones.com'; 'jdavid2355@aol.com'; 'davidlaz@sfgate.com';

'rmgordon@aol.com'; 'Letters@sjmercury.com'; 'anna.vasquez@reuters.com'; 'joeg@sfgate.com'; 'paulfenn@local.org'; 'sharron@ynn.com'; 'marcy.kohler@xilinx.com'; 'sascholz@southsanjose.com'; 'schnelson@earthlink.net'; 'tim_alton@ltx.com'; 'jeff.wade@lmco.com'; 'landis1@ibm.net'; 'iajlouny@us.ibm.com'; 'renee.gurza@ci.sj.ca.us'; 'mollie.dent@ci.sj.ca.us'; 'J72ERU@aol.com'; 'Alan Ramo'; 'rtdrury@cbecal.org'; 'ajnapolis@cbecal.org'; 'asimon@cbecal.org'; 'suma@cbecal.org'; 'marka@relaypoint.net'; 'philmitchell@worldnet.att.net'; 'sbroiles@ix.netcom.com'; 'svolker@volkerlaw.com'; 'HeleneL@ch.morgan-hill.ca.gov'; 'Bradley Angel'; 'alvarohuerta@yahoo.com'; 'aramo@ggu.edu'; 'asimon@cbecal.org'; 'bvhpadvocates@earthlink.net'; 'chretienodd@aol.com'; 'dcapjane@aol.com'; 'don@irrevo.net'; 'done@greens.org'; 'henryc11@prodigy.net'; 'jibasml@aol.com'; 'jmendoza@svtc.org'; 'jratner_rose@earthlink.net'; 'jreardon@igc.org'; 'jtorres@cbecal.org'; 'kev-@ocefoundation.org'; 'ladan@globalexchange.org'; 'marie@sfbayview.com'; 'medea@globalexchange.org'; 'mthomas@cbecal.org'; 'mzs@cpuc.ca.gov'; 'rossmon@juno.com'; 'wrostov@cbecal.org'; 'youthonfire@care2.com'

Subject: MOTION SEEKING ORDER OR STAY CANCELING OR SUSPENDING CALIFORNIA DEPARTMENT OF WATER RESOURCES LONG-TERM ENERGY CONTRACTS AND ASSOCIATED IOU RATE SCHEDULES FOR LACK OF PROPER NOTICE UNDER THE FPA

MOTION SEEKING ORDER OR STAY CANCELING OR SUSPENDING CALIFORNIA DEPARTMENT OF WATER RESOURCES LONG-TERM ENERGY CONTRACTS AND ASSOCIATED IOU RATE SCHEDULES FOR LACK OF PROPER NOTICE UNDER THE FPA Pursuant to Rules 212 of the Rules and Practices and Procedures of the Federal Energy Regulatory Commission ("FERC"), 18 C.F.R. 385.212, Californians for Renewable Energy, Inc. ("CARE"), moves for the Commission's consideration and action to remedy the illegal execution of long-term energy contracts by the California Department of Water Resources ("DWR") in regards to the CARE and other party's complaints in EL00-95 et.al. Under section 205(c) of the Federal Power Act (49 Stat. 851; 16 U.S.C. 824d(c)) the DWR long-term energy contracts recently disclosed through legal action by the California legislature and press requires that these contracts "shall be tendered for filing with the Commission and posted not less than sixty days nor more than one hundred-twenty days prior to the date on which the electric service is to commence." We contend that DWR has failed to comply with the requirements of the FPA in this matter. The remedy CARE seeks is for the Commission to issue an Order or Stay canceling or suspending such long-term energy contracts and associated IOU rate schedules (yet to be submitted to the Commission) pursuant to FPA section 205 (c). DWR disputes its requirements to provide proper notice prior to execution of said long-term contracts to all the parties to this case and to the public who have in a statutory and constitutional right to comment on expenditures of the public's funds in this manner by DWR. In response to CARE's CPRA request DWR states the "Department's purchases and sales of power are exempt from the Federal Power Act because DWR is a state agency. Section 201(f). To the extent that the Department engages in purchases or sales with counterparties who are subject to Federal Power Act jurisdiction, any obligation to file with FERC or otherwise comply with the Act lies with the counterparty to the contract, and not the department." CARE contends that DWR is acting as an "designated representative" for the Investor Owned Utilities ("IOUs") in the purchase of energy in California, pursuant to 18 CFR 35.1 (a), without authorization by the Commission. "In cases where two or more public utilities are required to file rate schedules or certificates of concurrence such public utilities may authorize a designated representative to file upon behalf of all parties if upon written request such parties have been granted Commission authorization therefore." CARE contends these actions by DWR violated the requirements of 18 CFR 35.1 (4)(e). "No public utility shall, directly or indirectly, demand, charge, collect or receive any rate, charge or compensation for or in connection with electric service subject to the jurisdiction of the Commission, or impose any classification, practice, rule, regulation or contract with respect thereto, which is different from that provided in a rate schedule required to be on file with this Commission unless otherwise specifically provided by order of the Commission for good cause shown." CARE contends that ample evidence of DWR's acting as the California IOU's "designated representative" is provided by DWR's request to the California Public Utilities Commission ("PUC") for a Revised Revenue Requirement and Power Purchase Costs Pursuant to Water Code Section 80110 and Public Utilities Code Section 451, which is further illustrated by the PUC's Administrative law Judge's Ruling on the August 7, 2001 Revenue Requirement of the DWR regarding the IOU S.D.G. & E. applications 01-10-044, and 01-01-0045 to the PUC, which states: "SDG&E shall present alternative calculations of the required system average rate increases that (1) collect the DWR-relat

Message 120 of 176

Fwd: Re: testimony filings list

Sender	smn@dwgp.com
Recipients	[el00-95@listserv.gsa.gov]
File	steffes-j/california_issues/ca_refunds/45.

The Modesto Irrigation District would like to offer the following issue as an additional issue to the list that Staff has prepared:

1) Is the CAISO's data for calculating the Mitigated Market Clearing Price in such a form that allows other Market Participants to determine whether the Mitigated Market Clearing Price was properly calculated?

Thank you for preparing this list.

Sean Neal

Sean Neal

Duncan, Weinberg, Genzer & Pembroke, P.C. 1615 M Street, NW Suite 800 Washington, D.C. 20036 tel: (202) 467-6370 fax: (202) 467-6379smn@dwgp.com

joann.scott@FERC.FED.US 11/09/01 08:53AM >>>

Judge Birchman asked me to send you his list of testimony he has. (In other words, if your testimony is not on there, heads up!) In the interest of full disclosure, here is our exchange of e-mails. I sent a separate e-mail saying that Avista is part of the Competitive Supplier Group that sponsored Dr. Chicchetti.

Message 121 of 176

FW: Application for Rehearing

Sender	d..steffes@enron.com
Recipients	['susan.mara@enron.com', 'c..williams@enron.com']
File	steffes-j/sent_items/194.

Bob --

Any concerns with this language? Not sure if we are even going to file, but want to be ready.

Sue --

While this draft talks about July 1 retroactive date, I'd guess this would be filed if the CPUC does anything before the Ordering date?

Jim

-----Original Message-----

From: "Dan Douglass" <douglass@earthlink.net>@ENRON Sent: Wednesday, September 19, 2001 4:36 AM To: Mara, Susan Cc: jdasovic@enron.com; jsteffe@enron.com; Kaufman, Paul; rshapiro@enron.com; rwillia2@enron.com; Jeanne Bennett; Ed Duncan Subject: Application for Rehearing

Attached is a first draft of the Application for Rehearing to be filed in the event the Commission issues a retroactive direct access suspension decision. Your comments will be very much appreciated.

Dan

Law Offices of Daniel W. Douglass 5959 Topanga Canyon Blvd. Suite 244 Woodland Hills, CA 91367 Tel: (818) 596-2201 Fax: (818) 346-6502douglass@energyattorney.com

- 9-21-01 Application for Rehearing - Draft 1.doc

Message 122 of 176

RE: Entergy Transactions

Sender	luiz.maurer@enron.com
Recipients	['d..steffes@enron.com', 'reagan.rorschach@enron.com']
File	steffes-j/deleted_items/68.

Reagan

Tks for your effort. I did speak to Juan Hernandez yesterday. He gave us a quick view on SPP liquidity (or lack thereof). Based on this conversation, I prepared the attached document (for internal use only). Feel free to add or comment on it if you see fit.

Jim Steffes and I used this as "ammunition" in a hearing at Texas PUC to support the idea that SPP is not a perfect market, but we should not use its lack of liquidity as an argument for delaying retail competition in non-Ercot Texas. Unfortunately, Comissions were reluctant, and they preferred to postpone non-Ercot RTO retail competition until further notice. The milestone for ERCOT continues the same (Jan 01, 2001)

Regards

Luiz Maurer

-----Original Message-----

From: Rorschach, Reagan Sent: Friday, October 19, 2001 3:17 PM To: Maurer, Luiz Subject: Entergy Transactions

Luiz,

Attached is a file from PowerDat detailing the transactions and counterparties in Entergy. I am not sure that this is what you are looking for as a definition of liquidity.

If you have any questions, we can develop a more specific PowerDat report.

Thanks,

Reagan C. Rorschach Enron North America 1400 Smith Street Houston, Texas 77002 713.345.3363

<< File: Entergy Transactions.xls >>

Message 123 of 176

California Marketers Group

Sender	skelley@bracepatt.com
Recipients	['curry.kimberly@enron.com', 'java.jacqueline@enron.com', 'kelley.shelby@enron.com', 'jdwatkiss@aol.com']
File	steffes-j/california_issues/ca_refunds/11.

This may be a repeat email for some of you, but I wanted to make sure that I got everyone.

As we expected, Judge Birchman has ordered the participants to proceed in groups. A California Marketers Group seems logical. Please take a look at the other individuals receiving this email to see if we have missed anyone that should be included in a California marketers only group. Feel free to forward the email on as necessary.

We will plan to have a conference call on Thursday to discuss issues, including a proposed joint statement of issues, lead counsel, joint witnesses and discovery issues. A status report on the group should be filed with the judge on Friday.

Regards, Shelby Kelley

Shelby J. Kelley, Esq. Bracewell & Patterson, L.L.P. 2000 K Street, NW Suite 500 Washington, DC 20006-1872 (202) 828-5859 skelley@bracepatt.com

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Message 124 of 176

RE: Thank You

Sender	d..steffes@enron.com
Recipients	[amanda.day@enron.com]
File	steffes-j/sent_items/1387.

As with everything else right now, I take no offense. It was a pleasure meeting with you. I wish you all of the best.

Jim

-----Original Message-----

From: Day, Amanda Sent: Tuesday, November 20, 2001 2:47 PM To: Steffes, James D. Subject: Thank You

Jim-

I want to thank you for taking some time to speak with me this morning about my current position relative to Enron's market position. More importantly, I want to thank you for your candor and honesty. I walked away from the meeting feeling elated and confident, regardless of the bleak message.

I only wish you the best of luck these next few weeks. You are in a tough position, a position I do not envy. I am heeding your advice and looking for opportunities outside this organization. I had hoped to work in your group as an associate rotation. I am certain that I could have learned a great deal from you and parlayed it into opportunities for this organization. Maybe our paths will cross in the future.

If there is anything I can do for you, please do not hesitate to contact me. My cell phone number is 713.444.8282 and work extension is 51793.

Yours Sincerely,

Amanda Day

PS. Please forgive me for calling you "Jeff" earlier. I did not realize my grave mistake until I hit the elevators. At least you, hopefully, got a chuckle out of it.

Message 125 of 176

FW: Attached Files

Sender	d..steffes@enron.com
Recipients	[bryan.gottfredson@enron.com]
File	steffes-j/sent_items/61.

Thanks.

Jim

-----Original Message-----

From: "BENNETT YOUNG" <BYOUNG@LLGM.COM>@ENRON [mailto:IMCEANOTES-+22BENNETT+20YOUNG+22+20+3CBYOUNG+40LLGM+2ECOM+3E+40ENRON@ENRON.com] Sent: Tuesday, September 04, 2001 3:36 PM To: Huddleson, Diann; Sager, Elizabeth; Steffes, James D.; Mellencamp, Lisa; Tribolet, Michael; Williams, Robert C.; Hall, Steve C. (Legal); vsharp@enron.com; Curry, Wanda; William.bradford@enron.com Cc: CARL EKLUND; John Klauberg Subject: Attached Files

I enclose the EPMI, ENA and ECC riders revised per my calls with Liz today.

The claims must be filed by September 5; please call ASAP with comments.

Ben Young

Bennett G. Young One Embarcadero Center, Suite 400 San Francisco, California 94111 (415) 951-1167
byoung@llgm.com

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Message 126 of 176

FW: Attached Files

Sender	d..steffes@enron.com
Recipients	['bryan.gottfredson@enron.com']
File	steffes-j/sent_items/98.

Here are the other files.

Jim

-----Original Message-----

From: "BENNETT YOUNG" <BYOUNG@LLGM.COM>@ENRON [mailto:IMCEANOTES-+22BENNETT+20YOUNG+22+20+3CBYOUNG+40LLGM+2ECOM+3E+40ENRON@ENRON.com] Sent: Wednesday, September 05, 2001 10:49 AM To: Huddleson, Diann; Sager, Elizabeth; Steffes, James D.; Mellencamp, Lisa; Tribolet, Michael; Williams, Robert C.; Hall, Steve C. (Legal); vsharp@enron.com; Curry, Wanda; William.c.bradford@enron.com Cc: CARL EKLUND; John Klauberg Subject: Attached Files

I enclose the final versions of the riders to the proofs of claim. We are proceeding to file these today.

Bennett G. Young One Embarcadero Center, Suite 400 San Francisco, California 94111 (415) 951-1167
byoung@llgm.com

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Message 127 of 176

FW: Attached Files

Sender	d..steffes@enron.com
Recipients	['ray.alvarez@enron.com']
File	steffes-j/sent_items/849.

Ray --

FYI. Some information on how we are talking about the claims in the Bankruptcy case.

Jim

-----Original Message-----

From: "BENNETT YOUNG" <BYOUNG@LLGM.COM>@ENRON [mailto:IMCEANOTES-+22BENNETT+20YOUNG+22+20+3CBYOUNG+40LLGM+2ECOM+3E+40ENRON@ENRON.com] Sent: Thursday, August 30, 2001 8:17 PM To: Huddleson, Diann; Sager, Elizabeth; Steffes, James D.; Mellencamp, Lisa; Tribolet, Michael; Williams, Robert C.; Hall, Steve C. (Legal); vsharp@enron.com; Curry, Wanda Cc: CARL EKLUND; John Klauber Subject: Attached Files

I enclosed blacklined versions of the riders for the proofs of claim for EES, EEMC and EPMI. I also enclose the riders for the ECC and ENA claims, which have not changed from the versions circulated last night.

Please let me know your comments as soon as possible.

Ben Young

Bennett G. Young One Embarcadero Center, Suite 400 San Francisco, California 94111 (415) 951-1167
byoung@llgm.com

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Message 128 of 176

RE: Attached Files

Sender	d..steffes@enron.com
Recipients	['jklauber@llgm.com', 'ceklund@llgm.com', 'diann.huddleson@enron.com', 'young"."benett@enron.com']
File	steffes-j/sent_items/848.

I am not sure if we have a claim to "PX Credits". Our claim is to the negative residual of Bundled less the PX Credit = Negative CTC.

Jim

-----Original Message-----

From: "BENNETT YOUNG" <BYOUNG@LLGM.COM>@ENRON [mailto:IMCEANOTES-+22BENNETT+20YOUNG+22+20+3CBYOUNG+40LLGM+2ECOM+3E+40ENRON@ENRON.com] Sent: Thursday, August 30, 2001 8:17 PM To: Huddleson, Diann; Sager, Elizabeth; Steffes, James D.; Mellencamp, Lisa; Tribolet, Michael; Williams, Robert C.; Hall,

Steve C. (Legal); vsharp@enron.com; Curry, Wanda Cc: CARL EKLUND; John Klauberg Subject: Attached Files

I enclosed blacklined versions of the riders for the proofs of claim for EES, EEMC and EPMI. I also enclose the riders for the ECC and ENA claims, which have not changed from the versions circulated last night.

Please let me know your comments as soon as possible.

Ben Young

Bennett G. Young One Embarcadero Center, Suite 400 San Francisco, California 94111 (415) 951-1167
byoung@llgm.com

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Message 129 of 176

RE: Enron v. FERC appeal at DC federal court (Entergy source and

Sender	d..steffes@enron.com
Recipients	['m..presto@enron.com', 'l..nicolay@enron.com', 'sarah.novosel@enron.com']
File	steffes-j/sent_items/109.

Christi --

I am comfortable with trying to settle. I hate that this new Commission has to litigate this case. It is important, however, that we focus FERC staff on the broader policy changes necessary throughout the industry and not just on Entergy's tariff.

Jim

-----Original Message-----

From: Nicolay, Christi L. Sent: Thu 9/6/2001 2:06 PM To: Steffes, James D.; Novosel, Sarah; Presto, Kevin M.; Shapiro, Richard Cc: Subject: Enron v. FERC appeal at DC federal court (Entergy source and sink)

The mediator in our appeal of the Entergy source and sink suggested that Enron may want to try and settle this. I asked B&P for the costs to get through oral argument, which are only \$4000. During the course of our SE RTO mediation, the Entergy person working on congestion management agreed with me that implementation of the LMP/financial rights model in the SE would alleviate the need for the Entergy Attachment M and Southern's similar attachment. However, that model (should we get it) won't be in effect until sometime next year (at the earliest). Also, Enron has sold its control areas. (VEPCO, our co-appellant, still has Batesville in Entergy).

It seems that it would make sense for us to approach FERC staff working on this matter, get their thoughts, and then perhaps approach Entergy. FERC is the one that would actually settle, not Entergy (also, FERC must change the policy -- getting Entergy to simply withdraw Att. M is certainly good for precedent, but Southern can still keep its Att. unless FERC makes Southern change its tariff). If nothing else, having another FERC avenue to voice our support for the LMP financial rights model (no day ahead balanced schedules), which alleviates this discriminatory practice like Entergy Att. M, would be helpful. What are your thoughts?

-----Original Message-----

From: Jacqueline Java [mailto:jjava@bracepatt.com] Sent: Tuesday, September 04, 2001 6:37 PM To: Nicolay, Christi L.
Subject: Costs associated with the Enron v. FERC matter

Christi -

Dan has informed me that Enron's share of remaining costs in the Enron v. FERC matter will not exceed \$4,000, for the work done to prepare for oral argument scheduled for November 7, 2001.

If you need a more formal document indicating this, I would be happy to send one to you. Please let me know. Thanks.

Jackie

Jacqueline R. Java Bracewell & Patterson, L.L.P. 2000 K Street, N.W. Suite 500 Washington, D.C. 20006-1872 (202) 828-5828

Message 130 of 176

FW: Interested in joining the efforts on 9/18 and/or

Sender	d..steffes@enron.com
Recipients	[alyse.herasimchuk@enron.com', 'paul.lebeau@enron.com']
File	steffes-j/sent_items/71.

Paul & Alyse --

If we need help, Sarah is interested. My recollection is that we had filled the slots. Please let me know.

Jim

-----Original Message-----

From: Hunter, Sarah-joy Sent: Tuesday, September 04, 2001 6:29 PM To: Steffes, James D. Subject: Interested in joining the efforts on 9/18 and/or 10/8_Georgetown Recruiting Season is Upon Us!!!

Jim:

I've just been added to the Georgetown recruiting team and was part of the 1st round interview team last year.

Per my conversation with you this evening I would like to participate in the presentation September 18th and/or the 1st rounds on October 8th-9th. I am a Johns Hopkins University (SAIS) graduate, came through the Associate organization and am now a Sr. Manager, Business Development in Enron Corp.

Thanks for the opportunity!

Sarah-Joy Hunter Enron Corporation, Business Development #(713)-345-6541 sarah-joy.hunter@enron.com

-----Original Message-----

From: Herasimchuk, Alyse Sent: Tuesday, August 28, 2001 10:31 AM To: Hunter, Sarah-joy Cc: Lebeau, Paul Subject: FW: Georgetown Recruiting Season is Upon Us!!!

-----Original Message-----

From: Lebeau, Paul Sent: Friday, August 17, 2001 2:11 PM To: Akan, Emel; Bergoglio, Teseo; Canavati, Juan; Furey, Denise; Garg, Alok; Gonzalez, Andrea; Griffin, Scott; Ham, Roshena; Howe, David; Jennaro, Jason; Kose, Ahmet; Malamud, Joselyn; McDonald, Rob; Mitchell, Heather; Neuner, Kirk; Polsky, Phil; Samudio, Juan; Soldano, Louis; Sparling, Jay; Steffes, James D.; Velasco, Enrique; Will, Nathan; Willis, James; Wood, Brian; Xu, Calvin Cc: Herasimchuk, Alyse Subject: Georgetown Recruiting Season is Upon Us!!!

RECRUITING SEASON IS UPON US!!

WE NEED YOUR SUPPORT!

As you know, employing quality recruits has been a key to Enron's continued growth and success and assisting with this effort is everyone's responsibility. Therefore, we urge each of you to set aside some dedicated time to make our campus recruiting effort successful. Clearly, on-campus interviewing is the most critical event, but participation in the outings and presentations is also key to our overall message.

Below are the dates that we will be on campus:

Presentation: Tuesday, Sept 18th, 6:30 - 8:30pm, Carr Barn

Interviews:

Reception & 1st Round Monday-Tuesday, Oct 8th - 9th

2nd Round Wednesday, Oct 10th

Please e-mail me with your availability.

Thank you in advance for your support and participation.

Paul LeBeau/Recruiter (X57588) Alyse Herasimchuk/Recruiting Coordinator (57339)

Message 131 of 176

FW: Terrorism Package

Sender	d..steffes@enron.com
Recipients	['steve.walton@enron.com', 'Linda', 'Robertson', 'charles.yeung@enron.com', 'joe.hartsoe@enron.com']
File	steffes-j/sent_items/159.

John, etal --

Not sure if there is any real "issue" we can push. Maybe something on the P/L side (see Joe Hartsoe). Clearly this idea that RTOs will be anti-security is mistaken - it just implies that there should be redundancy of systems.

Jim

-----Original Message-----

From: Shelk, John Sent: Tuesday, September 18, 2001 9:52 AM To: Steffes, James D.; Terry Allen (E-mail) Cc: Robertson, Linda Subject: FW: Terrorism Package

Jim--

Please see e-mail traffic below on any ideas we have for anti-terrorism efforts that might help us on electricity grid management issues. Any ideas beyond my initial attempt below?

John

P.S. The monopoly utilities are already saying that forcing large RTOs is bad at this time because we shouldn't be making such massive and complicated changes to the the electric system at a time of war.

-----Original Message-----

From: Robertson, Linda Sent: Tuesday, September 18, 2001 10:47 AM To: Shelk, John Subject: RE:

Do want to follow up with Steffes and Terry Allen?

-----Original Message-----

From: Shelk, John Sent: Tuesday, September 18, 2001 10:39 AM To: Robertson, Linda Subject: RE:

The first thing that comes to mind is a directive from Congress to FERC and/or DOE to conduct a rulemaking on "grid management" that essentially recasts the "Large RTO" plan as a security/grid management plan, etc.

-----Original Message-----

From: Robertson, Linda Sent: Tuesday, September 18, 2001 10:31 AM To: Shelk, John Subject: FW:

thoughts?

-----Original Message-----

From: Terry Allen [mailto:tallen@buckham.com] Sent: Tuesday, September 18, 2001 10:24 AM To: Robertson, Linda Cc: Ed Buckham; Karl Gallant (E-mail) Subject:

Linda,

Regarding the grid safety issue, you will remember that I mentioned yesterday that Saxby Chambliss has been tapped by the Speaker to coordinate the terrorism package. I spoke with Krister Holladay of Chambliss' office today, who is staffing that effort and he said he would be more than happy to look at any and all proposals and suggestions that we have on grid safety. He hasn't seen anything yet on this issue and would welcome our input.

If the folks in Houston can identify two or three (or more) things that can be done to enhance safety that also move grid management in the direction we want it to go generally, this will be a fine opportunity to broaden our coalition on transimission / rto's.

It looks like we have an open door here. Let me know what you want me to do.

Terry

Terry Allen Alexander Strategy Group 1300 Pennsylvania Ave. N.W. Suite 700 Washington, DC 20004 O. 202.204.3071
tallen@buckham.com

Message 132 of 176

THANK-YOUIII

Sender	sarah-joy.hunter@enron.com
Recipients	[d..steffes@enron.com]
File	steffes-j/deleted_items/1.

Jim,

I did participate in the Reception and First Round Interviews for Georgetown October 8-10th. Thanks for your support on this! I'll also be part of the team 10/18 to help develop the business plan and success process to welcome new Georgetown Associates.

Thanks again.

Sarah-Joy -----Original Message----- From: Hunter, Sarah-joy Sent: Tuesday, September 04, 2001 6:29 PM To: Steffes, James D. Subject: Interested in joining the efforts on 9/18 and/or 10/8_Georgetown Recruiting Season is Upon Us!!!

Jim:

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Thanks for the opportunity!

Sarah-Joy Hunter Enron Corporation, Business Development #(713)-345-6541 sarah-joy.hunter@enron.com

-----Original Message-----

From: Herasimchuk, Alyse Sent: Tuesday, August 28, 2001 10:31 AM To: Hunter, Sarah-joy Cc: Lebeau, Paul Subject: FW: Georgetown Recruiting Season is Upon Us!!!

-----Original Message-----

From: Lebeau, Paul Sent: Friday, August 17, 2001 2:11 PM To: Akan, Emel; Bergoglio, Teseo; Canavati, Juan; Furey, Denise; Garg, Alok; Gonzalez, Andrea; Griffin, Scott; Ham, Roshena; Howe, David; Jennaro, Jason; Kose, Ahmet; Malamud, Joselyn; McDonald, Rob; Mitchell, Heather; Neuner, Kirk; Polsky, Phil; Samudio, Juan; Soldano, Louis; Sparling, Jay; Steffes, James D.; Velasco, Enrique; Will, Nathan; Willis, James; Wood, Brian; Xu, Calvin Cc: Herasimchuk, Alyse Subject: Georgetown Recruiting Season is Upon Us!!!

RECRUITING SEASON IS UPON US!!

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As you know, employing quality recruits has been a key to Enron's continued growth and success and assisting with this effort is everyone's responsibility. Therefore, we urge each of you to set aside some dedicated time to make our campus recruiting effort successful. Clearly, on-campus interviewing is the most critical event, but participation in the outings and presentations is also key to our overall message.

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Reception & 1st Round Monday-Tuesday, Oct 8th - 9th

2nd Round Wednesday, Oct 10th

Please e-mail me with your availability.

Thank you in advance for your support and participation.

Paul LeBeau/Recruiter (X57588) Alyse Herasimchuk/Recruiting Coordinator (57339)

Message 133 of 176

RE: Enron Notice and Motion for Relief from Stay.DOC

Sender	d..steffes@enron.com
Recipients	['lisa.mellencamp@enron.com']
File	steffes-j/sent_items/799.

Lisa -

I would recommend that you send Mike Day the language to clarify #3.

Jim

-----Original Message-----

From: Mellencamp, Lisa Sent: Monday, August 27, 2001 8:09 AM To: Steffes, James D.; Tribolet, Michael; Williams, Robert C. Subject: RE: Enron Notice and Motion for Relief from Stay.DOC

they are changing 1. yes to 2. 3 i need help with.

-----Original Message-----

From: Steffes, James D. Sent: Monday, August 27, 2001 7:51 AM To: Mellencamp, Lisa; Sanders, Richard B.; Tribolet, Michael Subject: RE: Enron Notice and Motion for Relief from Stay.DOC

A couple of points --

1. The language in the relief indicates that we are trying to "determine the validity and amount of PX Credits owed to EES and EEMC". Is this correct? Isn't our primary goal in this complaint to (a) have the Utility return the net credit to our bills and (b) to allow for recoupment against all non-generation related charges?

2. Throughout the document the idea of "T&D charges" is used. I assume that this is shorthand for all non-generation related charges? We pay CTC and public purpose costs as well as T&D.

3. Not sure if CPUC regulates the ESPs. The filing makes this case in the first paragraph.

Thanks,

Jim

-----Original Message-----

From: Mellencamp, Lisa Sent: Thursday, August 23, 2001 10:02 AM To: Sanders, Richard B.; Tribolet, Michael; Steffes, James D. Subject: FW: Enron Notice and Motion for Relief from Stay.DOC

-----Original Message-----

From: "SANFORD KINGSLEY" <SKINGSLE@LLGM.COM>@ENRON [mailto:IMCEANOTES-+22SANFORD+20KINGSLEY+22+20+3CSKINGSLE+40LLGM+2ECOM+3E+40ENRON@ENRON.com] Sent: Wednesday, August 22, 2001 11:00 PM To: Huddleson, Diann; Mellencamp, Lisa; Williams, Robert C.; Curry, Wanda; Jbennett@gmssr.com Cc: CHARLES FERGUSON; CARL EKLUND; JOHN KLAUBERG Subject: Enron Notice and Motion for Relief from Stay.DOC

Attached is a preliminary draft of a motion to the Bankruptcy Court for relief from stay in connection with the commencement of proceedings at the PUC. Please favor us with your comments at your earliest convenience.

Also, when convenient, Carl would like to schedule a conference call to further define this motion and the next steps.

Sanford Kingsley One Embarcadero Center, Suite 400 San Francisco, California 94111 (415) 951-1119
skingsle@llgm.com

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- EnronNot.DOC << File: EnronNot.DOC >>

Message 134 of 176

FW: Xcel

Sender	d..steffes@enron.com
Recipients	['sarah.novosel@enron.com']
File	steffes-j/sent_items/264.

Sarah --

Pls coordinate with Kerry Stroup. He is the Mike Roan of the Upper Midwest.

Jim

-----Original Message-----

From: Landwehr, Susan M. Sent: Monday, October 08, 2001 9:24 AM To: Steffes, James D. Subject: RE: Xcel

Jim-- I talked with Sarah Novosel on Friday and she thought that Donna/she were the best point people to have an initial conversation with Audrey. We had apparently intervened at FERC on the Detroit Edison transco proposal a few weeks ago and that intervention is what sparked Audrey's thoughts on trying to get us as an ally rather than enemy. I will be sure that Donna shares her thoughts with the midwest group (we have weekly calls and one is scheduled I believe for Wenesday of this week).

-----Original Message-----

From: Steffes, James D. Sent: Monday, October 08, 2001 8:11 AM To: Landwehr, Susan M. Subject: RE: Xcel

I think that Kerry Stroup is handling non-MISO/ARTO midwest matters.

-----Original Message-----

From: Landwehr, Susan M. Sent: Sunday, October 07, 2001 11:08 PM To: Fulton, Donna; Novosel, Sarah Cc: Walton, Steve; Kaufman, Paul; Shapiro, Richard; Hueter, Barbara A.; Nord, Sue; Steffes, James D. Subject: Xcel

Donna/Sarah--I got together with Audrey Zibelman from Xcel on Friday afternoon to catch up and she wanted to talk about the petition that Xcel and the other midwest utilities had filed on transferring their assets into a for profit transco, Translink. In my discussions with Audrey, she expressed a hope that Enron would be able to support the filing and that she'd like to open a dialogue on how to get our support. I indicated that there were at least 2 issues that would be of concern for us---support for one RTO and support for one tariff within that RTO. Although she was open and probably even supportive of one RTO in the midwest, there is a separate tariff for any delivery within the Translink system within her proposal. She described that tariff as being different than the Detroit Edison case that you guys filed against. I confirmed that the publics who are in the transco (NPPD, OPPD, Cornbelt) would not agree to be in the transco without the separate tariff.

I have sent via overnight a copy of materials on the transco to both of you. I told her that Donna was that lead on the Midwest team, and that you'd be willing to talk/meet with her. If practical, it would be good if you could call her in the next few days for a number of reasons---1.) I am sure that Xcel is planning a similiar transco for the west and if you can get a better sense of whether we are on any of the same pages, it would be good to have that input for our western discussion on Wednesday in Houston 2.) she is one of the panelists for RTO week, so you might be able to set up a time in D.C. that you could meet in person 3.) you might be able to get a sense of what she will be talking about at RTO week on her panel.

Here is her info: Audrey Zibelman Vice President Xcel Energy Independent Transmission COmpany 414 Nicollet Mall 6th Floor Minneapolis, MN 55401

audrey.a.zibelman@xcelenergy.com

#612-330-7713

Message 135 of 176

FW: Industry Meeting Regarding the Wholesale Electricity Standard

Sender	d..steffes@enron.com
Recipients	['jose.bestard@enron.com', 'charles.yeung@enron.com']
File	steffes-j/sent_items/1284.

Who will attend and present?

Jim

-----Original Message-----

From: "Michael Reddy" <Mreddy@epsa.org>@ENRON Sent: Thursday, November 08, 2001 3:55 PM To: acomnes@enron.com; Hawkins, Bernadette; Nersesian, Carin; Yeung, Charles; Nicolay, Christi L.; Fulton, Donna; Steffes, James D.; Scheuer, Janelle; Hartsoe, Joe; Shelk, John; Noske, Linda J.; Robertson, Linda; Alvarez, Ray; Shapiro, Richard; Novosel, Sarah; Mara, Susan; Lindberg, Susan; Hoatson, Tom Subject: Industry Meeting Regarding the Wholesale Electricity Standard Organization

MEMORANDUM

TO: Regulatory Affairs Committee Power Marketers Working Group NERC Working Group

FROM: Jim Steffes, Regulatory Affairs Committee Chair Bob Reilley, Power Marketers Working Group Chair Julie Simon, Vice President of Policy Mark Bennett, Senior Manager of Policy

DATE: November 8, 2001

RE: Industry Meeting Regarding the Wholesale Electricity Standard Organization

The Department of Energy (DOE) is sponsoring an industry wide meeting facilitated by EPSA, ELCON and the National Energy Marketers Association. This forum will be held on December 7th, and is designed to provide an opportunity for open discussion on the organizational structure needed to represent the wholesale electric interests in the development of market-based standards and types of standards that should be addressed. As with the previous industry-wide meetings held on standards development activities for the wholesale and retail natural gas and electric topics, the DOE has graciously offered its facilities for the meeting site. The meeting specifics are below and a draft agenda is attached.

WHERE: Department of Energy Forrestal Building 1000 Independence Avenue, S.W. Washington, D.C. 20585

ROOM: Large Auditorium, Room GE-086

WHEN: Friday, December 7th 10:00 a.m. to 5:00 p.m.

The nature of the debate should address the framework for an organization whose role would be to develop wholesale electric standards, including scope of activity, segments for each of the industry quadrants, and any additional key principles that are necessary. As supporting information for the meeting is prepared, which would include a more detailed agenda, it will be posted on the GISB web site, (www.gisb.org) and sent out to both the Regulatory Affairs Committee and the NERC Working Group. A draft agenda for the meeting is attached.

If you are unable to attend the meeting, or would like to provide written comments in addition to attendance, please provide them to the GISB office via email (contact: gisb@aol.com) by December 3rd. The work papers and comments received by December 3rd will be posted on GISB's web site (www.gisb.org) and emailed to all registered participants on December 4th. The meeting will be transcribed and transcripts will be available for purchase.

The DOE has security procedures for visitors, so those intending to attend the meeting should notify the GISB office (contact: gisb@aol.com) by end of business Monday, December 3rd and provide the following information:

? Name of Attendee ? Company Represented ? Phone Number ? Email Address ? Fax Number ? Country of Citizenship

In addition to its normal security process, the DOE has additional security measures if should you bring in cell phones or laptop computers. The auditorium has very limited number of power outlets for laptops, and it is advised not to bring them to the meeting. Should you need to bring in a cell phone or a laptop, you should allow more time for a longer procedure for checking through security. The auditorium has a seating capacity of 200, with limited standing room. An attendance list will be provided to the DOE to facilitate the sign in procedures, and will be made available at the meeting.

Please feel free to contact Mark Bennett at 202-628-8200 if you have any questions or comments.

- DOEdraftAgenda.doc

Message 136 of 176

FW: Industry Meeting Regarding the Wholesale Electricity

Sender	l.nicolay@enron.com
Recipients	['d..steffes@enron.com']
File	steffes-j/inbox/259.

I think Charles plans to go to this. Would you rather have Jose attend? I don't think we need more than one person there.

-----Original Message-----

From: Michael Reddy [<mailto:Mreddy@epsa.org>] Sent: Thursday, November 08, 2001 3:55 PM To: acomnes@enron.com; Hawkins, Bernadette; Nersesian, Carin; Yeung, Charles; Nicolay, Christi L.; Fulton, Donna; Steffes, James D.; Scheuer, Janelle; Hartsoe, Joe; Shelk, John; Noske, Linda J.; Robertson, Linda; Alvarez, Ray; Shapiro, Richard; Novosel, Sarah; Mara, Susan; Lindberg, Susan; Hoatson, Tom Subject: Industry Meeting Regarding the Wholesale Electricity

StandardOrganization

MEMORANDUM

TO: Regulatory Affairs Committee Power Marketers Working Group NERC Working Group

FROM: Jim Steffes, Regulatory Affairs Committee Chair Bob Reilley, Power Marketers Working Group Chair Julie Simon, Vice President of Policy Mark Bennett, Senior Manager of Policy

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Please feel free to contact Mark Bennett at 202-628-8200 if you have any questions or comments.

Message 137 of 176

RE: ASE Dinner -- Enron Vice Chair Request....

Sender	d..steffes@enron.com
Recipients	['lisa.jacobson@enron.com', 'Cooney', 'Jeff', 'Carolyn; Mitchell', 'Heather; Heather Mitchell (E-mail); Keeler...
File	steffes-j/sent_items/868.

Lisa --

I don't have any funds for this. Sorry.

Jim

-----Original Message-----

From: Jacobson, Lisa Sent: Wednesday, September 05, 2001 11:01 AM To: Terraso, Michael; Roberts, Dave; Robertson, Linda; Steffes, James D. Cc: Cooney, Carolyn; Mitchell, Heather; Heather Mitchell (E-mail); Keeler, Jeff Subject: ASE Dinner -- Enron Vice Chair Request.... Importance: High

Mike, Linda, Dave and Jim,

We received a request from the Alliance to Save Energy (www.ase.org) for Enron to be a Vice Chair of the annual dinner on October 24, 2001 in DC.

-- Enron is a member (Associate) of ASE

-- Enron has been a Vice Chair for the previous 9 years

-- The letter of invitation was sent to Ken Lay on July 3, 2001.

-- The Vice Chair level is 10 K and covers the cost of a table.

-- This year's award recipients are Gov. Pataki (R-NY) and the ESCO Industry - Enron would be eligible to receive the award as part of the industry group at the dinner.

-- Senators Bingaman and Jeffords and Rep. Boehlert are expected to give out the awards.

Invitations are going to print first thing tomorrow morning and will list the Vice Chairs to date -- but we can commit to the Vice Chair level after the print deadline and we will be recognized at the event.

-- There is also an opportunity for Enron to speak at their Associate's policy seminar on Oct. 25, Energy Secretary Abraham has been invited to be the keynote speaker at the seminar.

Please let me know if you would be willing to pay for, our contribute to, the cost of the table/Vice Chair level.

Please see the invite below.

Thanks and I apologize for the short notice.

-Lisa

-----Original Message-----

From: LCordes@ase.org [mailto:LCordes@ase.org] Sent: Tuesday, September 04, 2001 5:46 PM To: jacobson@enron.com Subject: FW: Enron Vice Chair.doc Importance: High

*July 3, 2001 Dr. Kenneth L. Lay Chairman Enron P.O. Box 1188 Houston, TX 77251-1188 Dear Ken: On behalf of the Alliance to Save Energy, we invite you to become a Vice Chair of the 2001 Evening with the Stars of Energy Efficiency reception and dinner to be held on Wednesday, October 24, 2001 from six until ten in the evening in Washington, DC. We are extremely pleased this year to honor: * The Honorable George E. Pataki, Governor of the State of New York - Charles H. Percy Award for Public Service for the Governor's strong support and promotion of energy efficiency. He has personally championed the purchase of Energy Star products and created one of the largest public benefit funds for energy efficiency programs in the nation. * The ESCo Industry - Star of Energy Efficiency Award for its collective success in bringing performance-based energy efficiency contracting to energy consumers worldwide. * Howard S. Geller, Former Executive Director of the American Council for an Energy Efficient Economy - Star of Energy Efficiency Award for his twenty years of leadership at ACEEE. The benefits of becoming a Vice Chair include: * A table for you and nine guests at the Awards Dinner; * Invitation to our private VIP reception prior to the dinner; * Participation at the following day's Energy Efficiency Policy Summit (details to follow); and * Prominent mention of your company on programs and invitations. With energy problems and energy efficiency opportunities at the forefront of our nation's agenda, the Alliance deserves your support more than ever. It is unique in that it is our nation's only bipartisan, nonprofit organization that allows business executives to join with government, environmental and consumer leaders to promote energy efficiency. By becoming a Vice Chair, you will honor those who have made outstanding contributions to energy efficiency, and support the Alliance's efforts to ensure that energy efficiency remains a key element of our national energy strategy. A \$10,000 contribution is required for a Vice Chair designation. This event will be a wonderful opportunity to meet members of the energy community. We expect an audience of over 300, including members of Congress, CEOs, White*

House and other Bush Administration officials, as well as staff from federal agencies, and the press. We hope you will show your dedication and support for the Alliance's energy efficiency programs by joining us for this stellar evening with America's business and government leaders dedicated to promoting energy efficiency. Should you have questions, please call Leslie Cordes, Director of Corporate and Program Development at (202) 530-2211. Thank you for your consideration. Sincerely, Jeff Bingaman Dean T. Langford Chairman, Alliance to Save Energy Co-Chair, Alliance to Save Energy United States Senator President OSRAM SYLVANIA Inc.

Message 138 of 176

RE: Southeast RTO: Southern's Load

Sender	l.nicolay@enron.com
Recipients	['d.steffes@enron.com', 'john.shelk@enron.com', 'sarah.novosel@enron.com']
File	steffes-j/deleted_items/255.

I am getting the info, but so far:

Peak Loads SPP 34000 FL 31000 TVA 25000 PJM 54000 NY 31000 NEPOOL 25000 Entergy 24000 Southern 35000

We are getting the Midwest, VACAR, and Santee Cooper etc. (which would be added to Southern)

-----Original Message-----

From: Shelk, John Sent: Tuesday, October 23, 2001 4:07 PM To: Nicolay, Christi L.; Novosel, Sarah; Steffes, James D.
Subject: Southeast RTO: Southern's Load

The Barton discussion draft says that FERC's hands would be tied and that they would have to approve a proposed RTO, as to size and scope, if the proposed RTO owns or has operational control over transmission facilities that serve at least 40,000 MW of load. Southern's CEO testified in Congress recently that their load is over 35,000. I assume the 40,000 MW minimum would permit the SeTrans proposal to meet the proposed statutory minimum since it is Southern plus a few munis, as I understand it. Is this correct?

Who would know how many RTOs there would be if each were just over the 40,000 MW minimum? I assume it is much more than 4-5 RTOs -- if so, this is a good contrast to use in our Hill efforts.

Thanks.

Message 139 of 176

FW: Texas Conversion to EDI Version 1.4

Sender	nancy.hetrick@enron.com
Recipients	['d.steffes@enron.com']
File	steffes-j/deleted_items/450.

Just an FYI. Input from EES desk.

Nancy A. Hetrick Enron Corp. Director, Government Affairs Phone: 712-366-3399 Pager: 888-912-1426

-----Original Message-----

From: Ochsner, Preston Sent: Monday, October 29, 2001 11:00 AM To: Hetrick, Nancy Cc: Wagner, Joseph; Misra, Narsimha Subject: RE: Texas Conversion to EDI Version 1.4

Nancy,

Thanks. That does help.

We want Option C. Let us know if there is anything we can do to ensure that option is selected.

-----Original Message-----

From: Hetrick, Nancy Sent: Monday, October 29, 2001 10:56 AM To: Ochsner, Preston Subject: RE: Texas Conversion to EDI Version 1.4

That is true in Option A and Option B. The key to Option C is that we would have January and February meter read cycle to switch our customer before they would be switched to the affiliate as a customer who did not switch. Option A and B, EES would not possibly get customers in TNMP and AEP if their meters are read during the first two weeks of the month. We could send switches for Reliant and TXU for the first two weeks of the month, before the December moratorium. Does this help?

Nancy A. Hetrick Enron Corp. Director, Government Affairs Phone: 712-366-3399 Pager: 888-912-1426

-----Original Message-----

From: Ochsner, Preston Sent: Monday, October 29, 2001 10:54 AM To: Hetrick, Nancy Subject: RE: Texas Conversion to EDI Version 1.4

So.

Best case - We submit on January 2 and the customers get switched on their January meter read date.

Worst case - We submit on January 2 and the customers get switched on their February meter read date.

Is this correct?

-----Original Message-----

From: Hetrick, Nancy Sent: Monday, October 29, 2001 10:48 AM To: Ochsner, Preston Subject: RE: Texas Conversion to EDI Version 1.4

Yes, it is. Do we have a lot of customers lined up in those two service areas?

Nancy A. Hetrick Enron Corp. Director, Government Affairs Phone: 712-366-3399 Pager: 888-912-1426

-----Original Message-----

From: Ochsner, Preston Sent: Monday, October 29, 2001 10:47 AM To: Hetrick, Nancy; Fite, Rebecca; 'ahafner2@csc.com'; 'sharms@csc.com' Subject: RE: Texas Conversion to EDI Version 1.4

Nancy,

Is it a given that we will not be able to submit any switches in TNMP or AEP until January 2?

-----Original Message-----

From: Hetrick, Nancy Sent: Monday, October 29, 2001 10:10 AM To: Fite, Rebecca; Ochsner, Preston; 'ahafner2@csc.com'; 'sharms@csc.com' Subject: Texas Conversion to EDI Version 1.4 Importance: High

Please review the attached documents and provide input to me no later than noon, Tuesday, October 30th. I have made notes in red on items of interest, etc. I have also attached a document of questions and concerns from the PUCT staff. RMS is holding a workshop on Wednesday and Thursday of this week to finalize our recommendation and plan for the conversion. Please let me know if you have any questions. << File: Enron - Version 1.4 Conversion Options.doc >> << File: FW PUC Concerns with V. 1.4 Cutover.rtf >>

Nancy A. Hetrick Enron Corp. Director, Government Affairs Phone: 712-366-3399 Pager: 888-912-1426

Message 140 of 176

FW: Contacts

Sender	j..noske@enron.com
Recipients	[d..steffes@enron.com']
File	steffes-j/california_issues/254.

Sending you to in case you want to save in one of your e-mail folders. :)

-----Original Message-----

From: "Scott Govenar" <sgovenar@govadv.com>@ENRON
[mailto:IMCEANOTES--+22Scott+20Govenar+22+20+3Csgovenar+40govadv+2Ecom+3E+40ENRON@ENRON.com]
Sent: Wednesday, September 05, 2001 3:59 PM To: Noske, Linda J. Subject: Contacts

As discussed:

In Governor Davis' office, the key senior contacts, in order, are Lynn Schenk at (916) 445-2841 and Susan Kennedy at (916) 445-6131. Energy specific contacts in the Governor's office include Richard Katz and/or Nancy McFadden, both at (916) 445-0131. CEO level calls should be directed towards Lynn and Susan.

In Assembly Speaker Robert Hertzberg's office, the key contact is Rick Simpson at (916) 319-2040.

With respect to the California Manufacturers and Technology Association, the association is run by Jack Stewart at (916) 441-5420. The California Chamber of Commerce is run by Alan Zaremborg at (916) 444-6670. Bill Dombrowski runs the California Retailers Association at (916) 443-1975.

Please let me know if you need additional information.

Scott Govenar

Message 141 of 176

RE: Midwest Meeting with ARTO

Sender	michael.roan@enron.com
Recipients	[d..steffes@enron.com']
File	steffes-j/rto/33.

i would prefer Wednesday (but i don't need to be on the call or meet)....numbers are:

Exelon (Jack Crowley) 6107656612 Constellation (Harvey Reed) 410 468 3480 Edison Mission Energy (Reem Fahey) 312 583 6033 Reliant (John Orr) 713 207 3490 Duke (Mike Gildea or Lee Barrett) 713 627 6519 Lee or 713 627 5529 Mike Mirant (Jim Mayhew) 478 579 3421 PG&E (Richard Doying) 301 280-6780 Cinergy (Dennis Flaherty) can't find his number...let me know if you cant get it.

cheers MR -----Original Message----- From: Steffes, James D. Sent: Friday, October 26, 2001 10:19 AM To: Roan, Michael Subject: RE: Midwest Meeting with ARTO

I will let Ashley Brown know. Do you have phone numbers for these guys? Also, NG is willing to do a conference call late Wednesday or meeting on Thursday. What do you think?

Jim

-----Original Message-----

From: Roan, Michael Sent: Friday, October 26, 2001 10:18 AM To: Steffes, James D. Subject: RE: Midwest Meeting with ARTO

Jim, i suggest that the group includes Exelon (Jack Crowley), Constellation (Harvey Reed), Edison Mission Energy (Reem Fahey), Reliant (John Orr), Duke (Mike Gildea or Lee Barrett), Mirant (Jim Mayhew), PG&E (Richard Doying) and Cinergy (Dennis Flaherty). Some of these parties may not be supportive but would appreciate being contacted (which at least opens up the communications channel for NG).

I suggest that NG make contact with the executives rather than Enron (we need to continue to hedge our position, the old no fingerprints approach)...

cheers Mike -----Original Message----- From: Steffes, James D. Sent: Friday, October 26, 2001 8:23 AM To: Roan, Michael Subject: Midwest Meeting with ARTO

Mike --

When you have the list of customers we should contact, please let me know. I should try and get back with Ashley today.

Jim

Message 142 of 176

RE: Texas Legislative Oversight Committee

Sender	nancy.hetrick@enron.com
Recipients	[d..steffes@enron.com]
File	steffes-j/deleted_items/458.

Thanks. I remember everything you have taught me!

Nancy A. Hetrick Enron Corp. Director, Government Affairs Phone: 712-366-3399 Pager: 888-912-1426

-----Original Message-----

From: Steffes, James D. Sent: Monday, October 29, 2001 3:31 PM To: Ryall, Jean; Hetrick, Nancy; Keene, Patrick; Lindberg, Susan; Nicolay, Christi L.; Ogenyi, Gloria; Twiggs, Thane Subject: RE: Texas Legislative Oversight Committee

Nancy --

Go get 'em!!! You'll do great. Just be factual and explain how you've worked on these issues in multiple states.

Jim

-----Original Message-----

From: Ryall, Jean Sent: Monday, October 29, 2001 1:57 PM To: Hetrick, Nancy; Keene, Patrick; Lindberg, Susan; Nicolay, Christi L.; Ogenyi, Gloria; Steffes, James D.; Twiggs, Thane Subject: RE: Texas Legislative Oversight Committee

I have spoken to Mark, he will send a list of issues to Nancy prior to the hearing. The committee will acknowledge that you are an Enron employee, however, you are appearing in the capacity of Chair of RMS subcommittee. Bill B. from Ercot will be present, however he was not the most stellar witness. Mark thinks Chairman Wolens will want to hear directly from the Chair of RMS. The questions that you may be asked include: what has RMS recommended to TAC, address issues of cutover from version 1.3 to 1.4...where are we, where do we go next, where are the participants on the issue? Mark is preparing the list of questions and will email it to you soon.

Representative Paul Hilbert died last night. If the funeral services are scheduled for Friday, the hearing will be postponed to enable the members of the committee to attend the funeral. We may not know the date of the funeral until Wednesday. I will let everyone know ASAP whether or not the legislative takes place on Friday. Thanks, Jean

-----Original Message-----

From: Hetrick, Nancy Sent: Mon 10/29/2001 11:33 AM To: Keene, Patrick; Lindberg, Susan; Nicolay, Christi L.; Ogenyi, Gloria; Ryall, Jean; Steffes, James D.; Twiggs, Thane Cc: Subject: Texas Legislative Oversight Committee

Mark Bruce, Policy Analyst, Electric Restructuring Legislative Oversight Committee, attended the October 25th RMS meeting. When he left, he gave me his card and asked me to contact him after the meeting, which I did. He asked that I forward my contact information and asked if I could be available to attend the Legislative Oversight Committee meeting on Friday, November 2nd. This is the email that I received from him after I sent my contact information. He has not elaborated on exactly what questions he has or would have for me.

Nancy A. Hetrick Enron Corp. Director, Government Affairs Phone: 712-366-3399 Pager: 888-912-1426

-----Original Message-----

From: "MARK BRUCE_HC" <Mark.Bruce_hc@house.state.tx.us>@ENRON Sent: Friday, October 26, 2001 12:21 PM To: Hetrick, Nancy Subject: Re: Contact Information

Thanks for your response ... Connie shared her V 1.4 cutover questions and concerns with me ... if you reply to her e-mail prior to the Wed. RMS meeting, please include me in your reply.

I'll keep in touch with you regarding possible questions from the oversight committee on Nov. 2.

/Mark Bruce policy analyst Electric Utility Restructuring Legislative Oversight Committee office: 512-463-0814 mobile: 512-576-8995 fax: 512-463-6783 e-mail: mark.bruce_hc@house.state.tx.us
<<mailto:mark.bruce_hc@house.state.tx.us>>

Message 143 of 176

Texas Legislative Oversight Committee

Sender	nancy.hetrick@enron.com
Recipients	['susan.lindberg@enron.com', 'l.nicolay@enron.com', 'patrick.keene@enron.com']
File	steffes-j/deleted_items/472.

Mark Bruce, Policy Analyst, Electric Restructuring Legislative Oversight Committee, attended the October 25th RMS meeting. When he left, he gave me his card and asked me to contact him after the meeting, which I did. He asked that I forward my contact information and asked if I could be available to attend the Legislative Oversight Committee meeting on Friday, November 2nd. This is the email that I received from him after I sent my contact information. He has not elaborated on exactly what questions he has or would have for me.

Nancy A. Hetrick Enron Corp. Director, Government Affairs Phone: 712-366-3399 Pager: 888-912-1426

-----Original Message-----

From: "MARK BRUCE_HC" <Mark.Bruce_hc@house.state.tx.us>@ENRON Sent: Friday, October 26, 2001 12:21 PM To: Hetrick, Nancy Subject: Re: Contact Information

Thanks for your response ... Connie shared her V 1.4 cutover questions and concerns with me ... if you reply to her e-mail prior to the Wed. RMS meeting, please include me in your reply.

I'll keep in touch with you regarding possible questions from the oversight committee on Nov. 2.

/Mark Bruce policy analyst Electric Utility Restructuring Legislative Oversight Committee office: 512-463-0814 mobile: 512-576-8995 fax: 512-463-6783 e-mail: mark.bruce_hc@house.state.tx.us

Message 144 of 176

FW: EPSA Fall Membership Meeting, October 23-24, 2001

Sender	d..steffes@enron.com
Recipients	[j..noske@enron.com]
File	steffes-j/sent_items/174.

I will be attending.

Jim

-----Original Message-----

From: "Laurie Martin" <LMARTIN@epsa.org>@ENRON Sent: Tuesday, September 18, 2001 3:52 PM To: acomnes@enron.com; bmoore@enron.com; Yeung, Charles; Nicolay, Christi L.; clong@enron.com; Allegretti, Daniel; Fulton, Donna; Whalley, Greg; Eghneim, Gus; Boyd, Hap; Kingerski, Harry; jader@enron.com; Guerrero, Janel; Scheuer, Janelle; jbrown1@enron.com; jhartso@enron.com; jkeeler@enron.com; jmigden@enron.com; Shelk, John; jsteffe@enron.com; Noske, Linda J.; Robertson, Linda; Will, Lloyd; Phillips, Marc; mfrevert@enron.com; Terraso, Michael; mpalmer@enron.com; mschoen@enron.com Subject: EPSA Fall Membership Meeting, October 23-24, 2001

Attached is an updated schedule and registration form for the EPSA Fall Membership Meeting, October 23-24 at the Monarch Hotel in Washington, DC. Please complete the registration and fax it back to Sherri Jackson at 202-628-8260.

I am pleased to announce that The Honorable Francis Blake, Deputy Secretary of Energy will be our keynote speaker on October 23rd.

The Monarch Hotel has extended a group rate of \$269.00 to meeting attendees. Please contact the hotel directly at 202-429-2400 to make your reservations. The cut-off date for the special group rate is October 2. After that date, we cannot guarantee either availability or rates.

If you have any questions regarding the meeting, please call Sherri Jackson at 202-628-8200. I hope that you and your families are safe and well and I look forward to seeing you in October.

Laurie Martin Director of Meetings & Membership EPSA lmartin@epsa.org Phone: 202-628-8200 ext. 121 Fax: 202-628-8260

- Registration form.doc

Message 145 of 176

RE: EPSA Fall Membership Meeting, October 23-24, 2001

Sender	d..steffes@enron.com
Recipients	[l..nicolay@enron.com]
File	steffes-j/sent_items/173.

too late.

-----Original Message-----

From: Nicolay, Christi L. Sent: Tuesday, September 18, 2001 5:05 PM To: Steffes, James D. Subject: FW: EPSA Fall Membership Meeting, October 23-24, 2001

Didn't you tell EPSA to not use the Monarch?!

-----Original Message-----

From: Laurie Martin [mailto:LMARTIN@epsa.org] Sent: Tuesday, September 18, 2001 3:52 PM To: acomnes@enron.com; bmoore@enron.com; Yeung, Charles; Nicolay, Christi L.; clong@enron.com; Allegretti, Daniel;

Fulton, Donna; Whalley, Greg; Eghneim, Gus; Boyd, Hap; Kingerski, Harry; jader@enron.com; Guerrero, Janel; Scheuer, Janelle; jbrown1@enron.com; jhartso@enron.com; jkeeler@enron.com; jmigden@enron.com; Shelk, John; jsteffe@enron.com; Noske, Linda J.; Robertson, Linda; Will, Lloyd; Phillips, Marc; mfrevert@enron.com; Terraso, Michael; mpalmer@enron.com; mschoen@enron.com Subject: EPSA Fall Membership Meeting, October 23-24, 2001

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Laurie Martin Director of Meetings & Membership EPSA lmartin@epsa.org Phone: 202-628-8200 ext. 121 Fax: 202-628-8260

Message 146 of 176

RE: RTO's Slide for 3Q Analyst Presentation

Sender	d..steffes@enron.com
Recipients	['l..nicolay@enron.com', 'david.leboe@enron.com']
File	steffes-j/sent_items/295.

David --

My thoughts.

I would change the section "Reliability" to "Operations". The Current framework is Non-standardized; Poor Seams Interface

Under Access to Transmission I would change it to say that "Not all Users on the System take service in a non-discriminatory manner." Utilities can't discriminate versus like users.

Under Generation - I would change "optional" to Optimal.

I don't also understand the 99%. Easier to say 100%* * - Public Power recipricoiity issues.

Thanks,

Jim

-----Original Message-----

From: Nicolay, Christi L. Sent: Thursday, October 11, 2001 10:05 AM To: Leboe, David; Steffes, James D. Subject: RE: RTO's Slide for 3Q Analyst Presentation

David, some suggestions (I cannot write directly on your presentation for some reason, so please call me at 713-301-3421 if you have questions.)

Add "real time" price Add costs and "risk premiums" Add Generation "and Transmission" Add lack of "valid" grid information Change the benefits to "Better ability for customers to utilize numerous energy products, including forward hedging tools and demand side management." [[Which Enron sells!]]

Change Market to "Wholesale Market" open

Also, why do you say 99% open after RTOs? Is this due to publics that don't participate? If so, then maybe say "100% open to the extent that non-jurisdictional entities, such as federal power agencies and state power authorities, participate" or name some examples, such as TVA and BPA.

-----Original Message-----

From: Leboe, David Sent: Thu 10/11/2001 9:14 AM To: Steffes, James D.; Nicolay, Christi L. Cc: Subject: RTO's Slide for 3Q Analyst Presentation

Please find the latest draft of the RTO slide for inclusion in next week's 3Q Analyst Conference Pitchbook. Greg Whalley will be presenting the Wholesale Section which will include a brief RTO's discussion.

Please take a minute and review and let me know if you have any comments/concerns with the wording.

Kind Regards.

Untitled Attachment

David T. Leboe Director, Investor Relations Enron Corp.

Office 713.853.4785 Cell 713.562.2160 Fax 713.646.3002 Pager 877.237.7732 david.leboe@enron.com

Message 147 of 176

FW: Indiana Midwest ISO Joint Petitioners - IURC Cause Nos. 42027

Sender	janine.migden@enron.com
Recipients	['michael.roan@enron.com', 'kerry.stroup@enron.com', 'jeff.merola@enron.com', 'd..steffes@enron.com', 'l..nico...
File	steffes-j/rto/64.

Cinergy has just emailed today a proposed settlement which has to be filed by Friday - a very short window of time. I will be reviewing it in the next hour so I can't yet give you a summary. Please review and let me know your thoughts.

Jeff, This doc. is drafted by Cinergy. I am wondering whether we can leverage our signature - assuming we are basically ok with the doc. to a commitment to talk about the imbalance issues. I don't think we have leverage to force a conclusion on the imbalance issue unless I can get other parties on board. Facing a friday deadline, we will have to move fast.

Janine -----Original Message----- From: "Brothers, Ron" <Ron.Brothers@Cinergy.COM>@ENRON Sent: Tuesday, November 06, 2001 6:28 AM To: rmork@ucclan.state.in.us; jlyle@mulletlaw.com; tstewart@lewis-kappes.com; jmigden@Enron.com Cc: rheidorn@vectren.com; bhouse@ipalco.com; zhmglaw@psci.net; donm@wvpa.com; critz@parrlaw.com; mbreece@impa.com; mcracraft@hhclaw.com; LSpence@midwestiso.org; SKozey@midwestiso.org Subject: Indiana Midwest ISO Joint Petitioners - IURC Cause Nos. 42027 and 42032 - Proposed Settlement Agreement

Attached below is my draft of a proposed Settlement Agreement prepared on behalf of the Midwest ISO Joint Petitioners in the consolidated proceeding on IURC Cause Nos. 42027 and 42032.

My draft also reflects the comments of IMPA and the Midwest ISO.

I have not and will not circulate my draft to NIPSCO or I&M. Since they will not be a party to the Settlement Agreement, I do not believe that they need to see my draft.

To facilitate execution (if we reach agreement), I have included 10 separate entity specific signature pages.

Under my draft, the Midwest ISO Joint Petitioners would request IURC permission to withdraw their participation in the Joint Motion To Strike Prefiled Testimony Of Intervenor Enron.

My draft attempts to include all of the commitments made in prefiled testimony by the Midwest ISO Joint Petitioners and all of the representations made to the IURC in prefiled testimony by Mr. James P. Torgerson on behalf of the Midwest ISO.

It is my understanding from the IURC's recent Docket Entry that any settlement agreement should be filed with the IURC by Friday, November 9.

Please let me know when you would like to meet in person or by conference call to discuss my draft proposed Settlement Agreement.

<<IURC JOINT PETITION OF INDIANA MISO TOs - Proposed Settlement - AS SENT TO THE OUCC ON NOVEMBER 5.doc>>

Ron Brothers

- IURC JOINT PETITION OF INDIANA MISO TOs - Proposed Settlement - AS SENT TO THE OUCC ON NOVEMBER 5.doc

Message 148 of 176

RE: EES/PJM Margin

Sender	d..steffes@enron.com
Recipients	['vicki.sharp@enron.com', 'marcus.nettelton@enron.com', 'harry.kingerski@enron.com', 'l.nicolay@enron.com']
File	steffes-j/sent_items/1482.

I don't know of any EES collateral at PJM. Very small position in PECO territory.

Jim

-----Original Message-----

From: Nicolay, Christi L. Sent: Sunday, December 09, 2001 4:17 PM To: Nettelton, Marcus Cc: Sharp, Vicki; Steffes, James D.; Kingerski, Harry Subject: FW: EES/PJM Margin

I can check with PJM, if necessary, unless there is someone else at EES that may know of the collateral situation. Thanks.

-----Original Message-----

From: Sacks, Edward Sent: Sun 12/9/2001 3:36 PM To: Nicolay, Christi L. Cc: Ring, Richard Subject: RE: PJM Margin

I don't have any knowledge of EES or EEMC posting collateral.

-----Original Message-----

From: Nicolay, Christi L. Sent: Friday, December 07, 2001 3:48 PM To: Sacks, Edward Cc: Ring, Richard Subject: FW: PJM Margin

Ed--Does EES or EEMC have collateral at PJM? Is it \$0? Thanks. Christi

-----Original Message-----

From: Sacks, Edward Sent: Wednesday, December 05, 2001 9:46 AM To: Nettelton, Marcus Subject: RE: PJM - Cash Margin

PJM EPMI - \$31,000,000 in cash

ISO New England Enron Power Marketing, Inc. \$52,000,000 in bonds (aggregate) Enron Energy Services, Inc. \$20,000,000 in bonds (aggregate) Enron Energy Marketing Corp. \$14,423,297.39 in bonds

NYISO I will need to look into this. Based on my information, I see that we have provided gtys for EPMI, but I'm not quite certain what collateral we may have posted for EES.

-----Original Message-----

From: Nettelton, Marcus Sent: Wednesday, December 05, 2001 8:33 AM To: Sacks, Edward Subject: RE: PJM - Cash Margin

Who at Enron will have the details as to what we have posted, for which company and in what form the collateral is held?

-----Original Message-----

From: Sacks, Edward Sent: Wednesday, December 05, 2001 7:34 AM To: Nettelton, Marcus Subject: RE: PJM - Cash Margin

- NYISO - These are the names that I have. I believe that Andy is the guy that we would want to talk to but I don't have his number. Phil is also a credit contact, so he should be able to answer any questions.

Phil Gootee 518-356-7636 Ray Staleer 518-356-6077 Andy Ragona

Rgds, Ed Sacks

-----Original Message-----

From: Nettelton, Marcus Sent: Tuesday, December 04, 2001 4:46 PM To: Sacks, Edward Subject: RE: PJM - Cash Margin

Thank you Ed. Who can I speak to about any collateral posted with the NYISO?

Marcus

-----Original Message-----

From: Sacks, Edward Sent: Tuesday, December 04, 2001 4:31 PM To: Nettelton, Marcus Subject: PJM - Cash Margin

We currently have \$31MM in cash margin posted to PJM Interconnection, LLC. My contact is Jay Niemeyer and he can be reached at 610-666-4407.

I will get the bond information to you tommorrow. To the extent that you would like to contact them, I suggest that you contact Cheryl Arnold, 413-535-4018 and Ellen Francoeur, 413-535-4000. Another is the CFO, Ed McCann.

Ed

Message 149 of 176

RE: Final (almost) RTO's slide

Sender	d..steffes@enron.com
Recipients	['l..nicolay@enron.com', 'david.leboe@enron.com']
File	steffes-j/sent_items/327.

Change the language on Operations to include ...Coordination of Service and Planning for Transmission ...

Thanks,

Jim -----Original Message----- From: Leboe, David Sent: Monday, October 15, 2001 10:55 AM To: Steffes, James D.; Nicolay, Christi L. Subject: Final (almost) RTO's slide

Thanks for last week's feedback on the RTO slide. We would like to go with the following slide assuming you are OK with content.

Please let me know if you are OK with the slide.

Thanks.

<< OLE Object: Picture (Metafile) >>

David T. Leboe Director, Investor Relations Enron Corp.

Office 713.853.4785 Cell 713.562.2160 Fax 713.646.3002 Pager 877.237.7732 david.leboe@enron.com

Message 150 of 176

FW: EPMI -PX Account Summary as of August 10 2001 & EPMI total of

Sender	chris.stokley@enron.com
Recipients	['kit.blair@enron.com', 'p..o'neil@enron.com', 'd..steffes@enron.com', 'c..hall@enron.com', 'ray.alvarez@enron...]
File	steffes-j/california_issues/191.

The attachment in the e-mail below contains the EPMI balance with the PX(EPMI 081001.xls). The Win zip files sent by the ISO contain the backup to the 1480 Overview file.

Chris 503-807-8959

-----Original Message-----

From: DDeach@calpx.com [mailto:DDeach@calpx.com] Sent: Monday, August 13, 2001 2:54 PM To: Stokley, Chris
Subject: EPMI - Account Summary as of August 10, 2001

----- Forwarded by Don Deach/users/PX_CALIF on 08/13/2001 12:54 PM -----

Don Deach 08/13/2001 09:55 AM

To: EPMI cc: Subject: EPMI - Account Summary as of August 10, 2001

PARTICIPANTS: Enclosed is your updated Account Activity Statement summarizing all accounts receivable/payables activities with CalPX occurring during 2001 starting with the issuance of the December Day-Ahead/Day-Of Market invoice back in January through the April Real Time invoices in August. The April billing cycles are adjustments being made by CAISO that go back as far as Spring 2000. CAISO is continuing to make these adjustments, which are basically meter corrections and approved scheduling coordinator disputes, for prior periods. These will probably continue for a few more months because of the recent FERC ruling regarding refunds. Please feel free to call Don Deach (626-685-9876), Rachel Axelrad (626-685-9843) or Clark Cheng (626-685-9846) with any questions. Thank You. (See attached file: EPMI 081001.xls)

Message 151 of 176

Partial Draft of Paper for Friday's Conference Call

Sender	charles.yeung@enron.com
Recipients	['sscott3@enron.com', 'jhughes@elcon.org', 'janderson@elcon.org', 'mbennett@epsa.org', 'andy.rodriquez@enron.c...]
File	steffes-j/nerc/12.

This document, although lengthy, contains insight to what NERC's BOT may be asked to endorse as far as establishment of a NERC position on reliability standards and market practices. It also has implications on how to split the baby between NERC and GISB.

I suggest all to review this draft and be ready to provide the MIC feedback when it appears on their agenda. I am unsure if it will show up in the July meeting, perhaps Terry Lane of Dynegy, who is on the subcommittee that put this together can provide us with more info.

Mark, please forward this to the EPSA-NAERO group list.

Thank You Charles Yeung 713-853-0348

----- Forwarded by Charles Yeung/HOU/ECT on 06/28/2001 11:15 PM -----

Gerry Cauley <gcauley@att.net>@nerc.com on 06/28/2001 08:12:25 PM Sent by: owner-mips@nerc.com To: mips@nerc.com cc:

Subject: Partial Draft of Paper for Friday's Conference Call

Attached is a partial draft of a MIPS paper addressing the process for MI and Commercial practices. It got a little more complicated than I anticipated so it is not finished. However, I did outline the unfinished sections so you can get an idea of how it is supposed to finish. I will try to get it completed before the call so you can see the whole paper. I would appreciate your comments on the call.

For the additional items that the MIPS is presenting to the MIC, please refer to Agenda Item 7 in the MIC package. The MIC package is at following URL: <http://www.nerc.com/~filez/micmin.html>

Gerry - Attachment 7c3 - Need for Uniform Practices.doc

Gerry Cauley gcauley@att.net gcauley@nerc.com (408) 323-1129 Tel. (408) 323-1129 Fax (408) 835-4213 Cell

Message 152 of 176

Reinstatement of Credit Balances

Sender	diann.huddleson@enron.com
Recipients	['cferguso@llgm.com', 'evan.hughes@enron.com', 'd..steffes@enron.com', '?????.????@enron.com']
File	steffes-j/california_issues/210.

----- Forwarded by Diann Huddleson/HOU/EES on 08/17/2001 01:17 PM -----

Diann Huddleson 08/17/2001 01:09 PM To: cmy1@pge.com cc: maa6@pge.com, Evan Hughes/HOU/EES@EES
Subject: Reinstatement of Credit Balances

Calvin, per our discussion, at the time we returned our commercial customers to utility service earlier this year, all accounts had accrued credit balances. PG&E transferred these credits off each account as they were setting them up for utility billing.

These same accounts are now being returned to direct access. We began receiving the first DA bills from PG&E earlier this month, all with zero beginning balances. Enron expects that all credit balances will be reinstated on the respective accounts before the next billing cycle.

Don't hesitate to contact me if you have any questions regarding this request. Page me if you need to. 888.740.8480.

Thanks.

Diann Huddleson Director, Services Group 713.853.0584

----- Forwarded by Diann Huddleson/HOU/EES on 08/17/2001 01:17 PM -----

Diann Huddleson 08/17/2001 01:17 PM To: diane.romeyko@sce.com cc: Evan Hughes/HOU/EES@EES Subject: Reinstatement of Credit Balances

Diane, as we discussed, at the time we returned our commercial customers to utility service earlier this year, all accounts had accrued credit balances. SCE transferred these credits off each account as they were setting them up for utility billing.

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Thanks.

Diann Huddleson Director, Services Group 713.853.0584

Message 153 of 176

RE: Reinstatement of Credit Balances

Sender	d..steffes@enron.com
Recipients	[diann.huddleson@enron.com]
File	steffes-j/sent_items/722.

Diann --

What's the next step?

Jim

-----Original Message-----

From: Huddleson, Diann Sent: Friday, August 17, 2001 1:18 PM To: CFerguson@lrgm.com Cc: Wanda C Curry; Steffes, James D.; Hughes, Evan Subject: Reinstatement of Credit Balances

----- Forwarded by Diann Huddleson/HOU/EES on 08/17/2001 01:17 PM -----

Diann Huddleson 08/17/2001 01:09 PM To: cmy1@pge.com cc: maa6@pge.com, Evan Hughes/HOU/EES@EES Subject: Reinstatement of Credit Balances

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Thanks.

Diann Huddleson Director, Services Group 713.853.0584

<Embedded Picture (Device Independent Bitmap)> <Embedded Picture (Device Independent Bitmap)>

Message 154 of 176

RE: Reinstatement of Credit Balances

Sender	diann.huddleson@enron.com
Recipients	[d..steffes@enron.com']
File	steffes-j/california_issues/211.

If I don't get a response by noon today, I plan on calling Calvin.

From: James D Steffes/ENRON@enronXgate on 08/20/2001 08:15 AM To: Diann Huddleson/HOU/EES@EES cc:
Subject: RE: Reinstatement of Credit Balances

Diann --

What's the next step?

Jim

-----Original Message-----

From: Huddleson, Diann Sent: Friday, August 17, 2001 1:18 PM To: CFerguson@llgm.com Cc: Wanda C Curry; Steffes, James D.; Hughes, Evan Subject: Reinstatement of Credit Balances

----- Forwarded by Diann Huddleson/HOU/EES on 08/17/2001 01:17 PM -----

Diann Huddleson 08/17/2001 01:09 PM To: cmy1@pge.com cc: maa6@pge.com, Evan Hughes/HOU/EES@EES
Subject: Reinstatement of Credit Balances

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Don't hesitate to contact me if you have any questions regarding this request. Page me if you need to. 888.740.8480.

Thanks.

Diann Huddleson Director, Services Group 713.853.0584

----- Forwarded by Diann Huddleson/HOU/EES on 08/17/2001 01:17 PM -----

Diann Huddleson 08/17/2001 01:17 PM To: diane.romeyko@sce.com cc: Evan Hughes/HOU/EES@EES Subject:
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Don't hesitate to contact me if you have any questions regarding this request. Page me if you need to. 888.740.8480.

Thanks.

Diann Huddleson Director, Services Group 713.853.0584

<Embedded Picture (Device Independent Bitmap)> <Embedded Picture (Device Independent Bitmap)>

Message 155 of 176

FW: Expense Report

Sender	ginger.dernehl@enron.com
Recipients	[elizabeth.linnell@enron.com', 'd..steffes@enron.com']
File	steffes-j/inbox/192.

Just FYI.

Ginger Dernehl Administrative Coordinator Global Government Affairs Phone# 713-853-7751 Fax# 713-646-8160

-----Original Message-----

From: Montovano, Steve Sent: Wednesday, December 26, 2001 11:28 AM To: Dernehl, Ginger Subject: RE: Expense Report

Ginger - Per your request: 1) I charged Enron for this portion of my trip since I was going to NJ, Albany, and Md. to clean out each of those offices before they were closed of documents and personal items. I did not charge Enron fro my flight to iah from cmh. 2) Doubletree Hotel - I did meet with Steffes on that Monday regarding a NY PSC Order regarding certain EES natural gas accounts. I did not charge Enron for any other expenses while in iah. 3) I met with Dan & Tom over dinner to get a download on their activities prior to their layoffs. They met with me after the had been laid off on their own personal time. 4) I met with gary Alexander also to get a download of activity from him. Since I drove to Md.to save airfare and didn't get there until the evening I met with Gary for a late dinner. 5) I went to the NJ BPU meeting on 12/12 because the BPU was meeting with respect to EES's customers in NJ and whether Enron would be allowed to continue to serve those customers. While in the area I also met with the NY PSC regarding the same matter. I only spent the night and incurred a hotel charge because my evening flight back to cmh was cancelled.

In the future I will not be traveling on Enron business unless directed/approved in advance. Should you have any additional q's regarding this matter please call me. I keep getting "kicked off" email with the dial up. Thanks Steve

-----Original Message-----

From: Dernehl, Ginger Sent: Friday, December 21, 2001 3:56 PM To: Montovano, Steve Subject: Expense Report

Steve,

Before we can finalize your expense report, you need to elaborate on the following:

1) Houston/Newark/Newark/Columbus - Why is Enron paying for the Houston/Newark portion of this trip? It was our understanding that you were here for an interview. 2) Doubletree Hotel - What Enron business did you conduct while here? 3) Dinner with Tom & Dan? 4) Gary Alexander dinner? 5) NJ BPU mtg?

All these expenses have to go through the "Cash Committee" and we need to be prepared for any questions that they might have. There is hardly any travel being conducted at this time so this is going to stick out like a sore thumb. Help us out with the details of these expenses.

Thanks!!!!!!

Ginger Dernehl Administrative Coordinator Global Government Affairs Phone# 713-853-7751 Fax# 713-646-8160

Message 156 of 176

Environmental Policy Issues?

Sender	d..steffes@enron.com
Recipients	[michael.terraso@enron.com']
File	steffes-j/sent_items/1430.

Mike --

Going forward, should all enviro be sent to you?

-----Original Message-----

From: Terraso, Michael Sent: Monday, December 03, 2001 6:57 AM To: Steffes, James D.; Landwehr, Susan M.; Nord, Sue Cc: Shapiro, Richard Subject: RE: NOx SIP

Thanks for informing me, we will handle it. Mike

-----Original Message-----

From: Steffes, James D. Sent: Sunday, December 02, 2001 8:24 PM To: Landwehr, Susan M.; Nord, Sue Cc: Shapiro, Richard; Terraso, Michael Subject: RE: NOx SIP

Pls send to Mike Terraso with Environmental Policy.

Jim

-----Original Message-----

From: Landwehr, Susan M. Sent: Sunday, December 02, 2001 9:26 AM To: Steffes, James D.; Nord, Sue Cc: Shapiro, Richard Subject: FW: NOx SIP

I'm looking for direction on who in the company this request should be sent to. I typically would have forwarded to Jeff Keeler/Mary Shoen with a copy to Fred Mitro and Ben Jacoby. Let me know if you have any other suggestions and I will forward this message on.

ps--I believe that the answer to the question is that we do not own any units, as we sold the Lincoln Center project last year, but I am not in the know enough about whatever else we might have an ownership interest in to make that determination.

-----Original Message-----

From: "Kim Bolt" <EPA2537@epa.state.il.us>@ENRON Sent: Friday, November 30, 2001 4:20 PM To: susan_m_landwehr@enron.com Subject: NOx SIP

217/782-5811 TDD 217/782-9143

December 3, 2001

Susan M. Landwehr, Director Enron Corp. Government Affairs 900 Second Ave. South, Suite 890 Minneapolis, Minnesota 55402

Dear Ms. Landwehr:

According to Illinois EPA records, Enron Corp. owns or operates one or more emission units that are subject to the Pollution Control Board's regulations for the control of nitrogen oxides (NOx SIP rules) specifically, 35 Ill. Adm. Code Part 217, Subparts U and W. As such, this letter is intended to remind Enron Corp. of its obligation to submit to the U.S. EPA Clean Markets Division a complete account certification of representation as required by the NOx SIP rules. This certification must include information sufficient to establish an account representative for the source and an account for each unit at the source that is subject to the NOx SIP rules.

If Enron Corp. has not already done so, please forward the requisite certification to:

NOx Budget Trading Program U.S. EPA Clean Air Markets Division Mail Code 6204N 1200 Pennsylvania Avenue, NW Washington, DC 20460

As required by the NOx SIP rules, please forward a copy of the certification to:

Compliance and Enforcement Section, Bureau of Air Illinois EPA Mail Code 40 P.O. Box 19276 Springfield, IL 62794-9276

Should you have questions regarding the certification please contact U.S. EPA's Clean Air Markets Division Hotline at 202/564-9620 or Scott Owens of my staff at the above-referenced telephone number.

Sincerely,

Julie K. Armitage, Acting Manager Compliance and Enforcement Section Bureau of Air

JKA:kb/nox2

Message 157 of 176

RE: Reinstatement of Credit Balances

Sender diann.huddleson@enron.com

Recipients ['d..steffes@enron.com']

File steffes-j/california_issues/227.

Jim, I spoke with Janet Covington, SCE, and Calvin Yee, PG&E today. My request has been escalated to both UDC's legal and credit departments. SCE should have a response to us by the end of the week. PG&E will probably not respond until next week unless I request a more immediate response. Should I push them?

From: James D Steffes/ENRON@enronXgate on 08/20/2001 10:07 AM To: Diann Huddleson/HOU/EES@EES cc:
Subject: RE: Reinstatement of Credit Balances

thanks

-----Original Message-----

From: Huddleson, Diann Sent: Monday, August 20, 2001 8:37 AM To: Steffes, James D. Subject: RE: Reinstatement of Credit Balances

If I don't get a response by noon today, I plan on calling Calvin.

From: James D Steffes/ENRON@enronXgate on 08/20/2001 08:15 AM To: Diann Huddleson/HOU/EES@EES cc:
Subject: RE: Reinstatement of Credit Balances

Diann --

What's the next step?

Jim

-----Original Message-----

From: Huddleson, Diann Sent: Friday, August 17, 2001 1:18 PM To: CFerguson@llgm.com Cc: Wanda C Curry; Steffes, James D.; Hughes, Evan Subject: Reinstatement of Credit Balances

----- Forwarded by Diann Huddleson/HOU/EES on 08/17/2001 01:17 PM -----

<< OLE Object: Picture (Device Independent Bitmap) >> Diann Huddleson 08/17/2001 01:09 PM To: cmy1@pge.com cc: maa6@pge.com, Evan Hughes/HOU/EES@EES Subject: Reinstatement of Credit Balances

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Don't hesitate to contact me if you have any questions regarding this request. Page me if you need to. 888.740.8480.

Thanks.

Diann Huddleson Director, Services Group 713.853.0584

----- Forwarded by Diann Huddleson/HOU/EES on 08/17/2001 01:17 PM -----

<< OLE Object: Picture (Device Independent Bitmap) >> Diann Huddleson 08/17/2001 01:17 PM To: diane.romeyko@sce.com cc: Evan Hughes/HOU/EES@EES Subject: Reinstatement of Credit Balances

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These same accounts are now being returned to direct access. We began receiving the first DA bills from SCE earlier this month, all with zero beginning balances. Enron expects that all credit balances will be reinstated on the respective accounts before the next billing cycle.

Don't hesitate to contact me if you have any questions regarding this request. Page me if you need to. 888.740.8480.

Thanks.

Diann Huddleson Director, Services Group 713.853.0584

Message 158 of 176

EL00-95 Call on Confidentiality

Sender	jeffrey.jakubiak@troutmansanders.com
Recipients	['el00-95@listserv.gsa.gov']
File	steffes-j/deleted_items/617.

Pursuant to our discussion on the 3pm call today, below is dial-in information for a conference call this Monday, November 26, at 1pm EST to discuss means to satisfying Judge Birchman's request to eliminate confidentiality concerns in the EL00-95 proceeding before him. Please review prior to the call any confidential exhibits that you may have submitted in this proceeding and come with ideas/proposals as to how the Judge's concerns may be addressed. Dial In: 1 (888) 490-6954 Alternate Dial-In: 1 (847) 413-2433 Passcode: 7041116 Jeffrey Jakubiak Troutman Sanders LLP 202.274.2892 Attorney for Mirant

Message 159 of 176

RE: Landwehr info

Sender	d..steffes@enron.com
Recipients	['sue@sheltercorp.com']
File	steffes-j/sent_items/1488.

Sue -

Lyndon's info is:

(713) 751-3048 (w)

ltaylor@h-s.com

Happy Holidays,

Jim

-----Original Message-----

From: sue@sheltercorp.com@ENRON Sent: Tuesday, December 11, 2001 8:55 AM To: Steffes, James D. Subject: Landwehr info

Hi Jim. Here's my info. I am staying on at my current office address and will still have the same phone number as before. My fax has changed, as well as my e mail address, so update your rolodex so you don't lose track of me!

Send me Lyndon's phone number and I'll give him a shout. Thanks.

-- Susan M. Landwehr Phone: (612) 339-4599 Fax: (612) 343-7517 Email: sue@sheltercorp.com

Message 160 of 176

Regulatory Affairs Conference Calls REMINDER

Sender	jgallagher@epsa.org
Recipients	['carin.nersesian@enron.com', 'l.nicolay@enron.com', 'donna.fulton@enron.com']
File	steffes-j/deleted_items/298.

The Regulatory Affairs Committee will be holding two conference calls this week. Our weekly Power Marketers Working Group conference call has been moved to TODAY, Thursday, October 25th, at 11:00 a.m. EDT. To access the call, dial 1-800-937-6563 and ask for the Julie Simon/EPSA call.

Tomorrow, Friday, October 26th, we will be holding a conference call to discuss the draft leave-behind on market-based rate authority at 11:00 a.m. EDT. If you need a copy of the draft, please contact Jackie Gallagher at jgallagher@epsa.org. To access the call, dial 1-800-937-6563 and ask for the Julie Simon/EPSA call.

In addition, the NERC Working Group will holding a conference call TODAY at 2:30 p.m. EDT. To access the call, dial 1-800-937-6563 and ask for the Mark Bennett/EPSA call.

Message 161 of 176

Re: EL00-95 Call on Confidentiality

Sender	jeffrey.jakubiak@troutmansanders.com
Recipients	['el00-95@listserv.gsa.gov']
File	steffes-j/california_issues/ca_refunds/52.

As a reminder...

From: Jakubiak, Jeffrey M.[SMTP:jeffrey.jakubiak@TROUTMANSANDERS.COM] Sent: Tuesday, November 20, 2001 5:57 PM To: EL00-95@LISTSERV.GSA.GOV Subject: EL00-95 Call on Confidentiality

Pursuant to our discussion on the 3pm call today, below is dial-in information for a conference call this Monday, November 26, at 1pm EST to discuss means to satisfying Judge Birchman's request to eliminate confidentiality concerns in the EL00-95 proceeding before him.

Please review prior to the call any confidential exhibits that you may have submitted in this proceeding and come with ideas/proposals as to how the Judge's concerns may be addressed.

Dial In: 1 (888) 490-6954 Alternate Dial-In: 1 (847) 413-2433 Passcode: 7041116

Jeffrey Jakubiak Troutman Sanders LLP 202.274.2892 Attorney for Mirant

Message 162 of 176

Delays in retail competition SPP-Texas

Sender	luiz.maurer@enron.com
Recipients	['susan.lindberg@enron.com', 'jean.ryall@enron.com', 'd.steffes@enron.com', 'l.nicolay@enron.com']
File	steffes-j/deleted_items/202.

Susan

You may want to communicate our trading and EES folks regarding a recent decision made by Texas Public Utility Commission to delay retail competition in Texas-SPP region. (Docket 24468)

"Based on the evidence and arguments presented regarding open access transmission tariff, pilot-project participation, wholesale and retail system readiness, and independence issues, the Commission finds that the area of Texas located within the SPP is unable to offer fair competition and reliable services to all customer classes on January 1, 2002" ...

.."the Comission is required to delay customer choice in this area" .." the pilot project will continue" ..

Also, " the Comission is initiating the Southwest Power Pool Market Readiness Implementation Project, number 24869".

Enron provided a testimony opposing any delay in retail competition.

There is a similar docket discussing Texas-SERC (24469). No decision made so far.

LM

Message 163 of 176

Re: EL00-95 Call on Confidentiality

Sender	meg.meiser@spiegelmcld.com
Recipients	['el00-95@listserv.gsa.gov']
File	steffes-j/deleted_items/615.

Counsel for Northern California Power Agency will probably not be able to be on the call. NCPA supports lifting the protective order on everything, as Judge Birchman suggested, as long as this change applies to every party.

-----Original Message-----

From: Jakubiak, Jeffrey M. [mailto:jeffrey.jakubiak@TROUTMANSANDERS.COM] Sent: Tuesday, November 20, 2001 5:57 PM To: EL00-95@LISTSERV.GSA.GOV Subject: EL00-95 Call on Confidentiality

Pursuant to our discussion on the 3pm call today, below is dial-in information for a conference call this Monday, November 26, at 1pm EST to discuss means to satisfying Judge Birchman's request to eliminate confidentiality concerns in the EL00-95 proceeding before him.

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Jeffrey Jakubiak Troutman Sanders LLP 202.274.2892 Attorney for Mirant

Message 164 of 176

FW: Ercot Schedule

Sender	rogers.herndon@enron.com
Recipients	[e.keller@enron.com', 'd..steffes@enron.com', 'harry.kingerski@enron.com', 'l.nicolay@enron.com']
File	steffes-j/credit_issues/7.

Jim -

Below is a copy of the schedule we sent to APX this am. After receiving the info, I spoke with APX (Rosalie and Eric). They said that they had discussed the schedule with ERCOT (Cheryl Mosely) and that because we do not have a physical supply source that they actually could not submit a schedule to ERCOT. ERCOT would like to be notified, however, so that they could anticipate load and that we would be billed the ERCOT Imbalance market prices.

We have also sent Monday's schedule to APX and they plan to handle the same way. I think this is ok for now, however, I think it would be best if we could de-DASR Lockheed and Packaged Ice as soon as possible. That way we would not have to submit a schedule at all - what are your thoughts? Evan, how long would this take?

Rogers 713-523-5704 (home) 713-854-2605 (cell)

-----Original Message-----

From: Hemani, Sanjay Sent: Saturday, December 01, 2001 9:35 AM To: 'helpdesk@apx.com' Cc: Herndon, Rogers
Subject: Ercot Schedule

Sanjay Hemani Associate EWS- Commodity Risk Management 713 345 4282

Message 165 of 176

RE: CAEM Invoice

Sender	d..steffes@enron.com
Recipients	[j..noske@enron.com', 'jsteffe@enron.com', 'jmangold@caem.org']
File	steffes-j/sent_items/689.

Jeff --

Please send the invoice to my assistant - Linda Noske - to have her take it through the system. Her phone number is 713-853-6082.

Thanks,

Jim

-----Original Message-----

From: Jeff Mangold - CAEM <jmangold@caem.org>@ENRON
[mailto:IMCEANOTES-Jeff+20Mangold+20-+20CAEM+20+3Cjmangold+40caem+2Eorg+3E+40ENRON@ENRON.com]
Sent: Tuesday, August 14, 2001 3:08 PM To: jsteffe@enron.com Subject: CAEM Invoice

Jim,

In trying to clear up some of our outstanding invoices, I contacted the Enron Accounts Payable Department and they have no record of our May invoice for \$12,500.

They told me to go ahead and send a copy of the invoice directly to them, but it will expedite things if I include on the invoice your Enron company name and number and your external identification number. If you could reply to this message with that info, I'd appreciate it.

If I can answer any questions regarding the invoice, or anything else for that matter, please don't hesitate to contact me.
Thanks.

Regards, Jeff

Jeff Mangold Vice President, Administration Center for the Advancement of Energy Markets www.caem.org
jmangold@caem.org Voice: 703-729-2710 Fax: 703-783-8720

Message 166 of 176

FW: Gover Norquist on Reagan and Rick Santorum on Stem Cells

Sender	d..steffes@enron.com
Recipients	['jeff.dasovich@enron.com']
File	steffes-j/sent_items/575.

YOUR BUDDY -----Original Message----- From: "Jerry Bowyer" <jerrybowyer@home.com>@ENRON
[mailto:IMCEANOTES--+22Jerry+20Bowyer+22+20+3Cjerrybowyer+40home+2Ecom+3E+40ENRON@ENRON.com]
Sent: Friday, August 10, 2001 1:57 PM To: jerrybowyer@home.com Subject: Gover Norquist on Reagan and Rick Santorum on Stem Cells

Monday on Jerry Bowyer in the Morning: ? Monday is the 20th anniversary of Reagan's signing his famous tax cut bill, and Americans for Tax Reform's Grover Norquist is here to talk about what it has meant for our economy. ? Senator Rick Santorum responds to President Bush's decision on stem cell research funding. ? Brian Wesbury gives us the economic news. Listen Monday morning and every weekday morning, from 6-9am, on Pittsburgh's New Talk Radio, 1360 WPTT. Call with your comments, at (412) 333-1360 To comment on the program, e-mail me at susan@jerrybowyer.com . To unsubscribe reply to jerrybowyer@home.com with "remove" in the subject line. Jerry Bowyer Pennsylvania Newsmakersseen across the state on these television stations: www.jerrybowyer.com/coveragemap.php The Jerry Bowyer Programon WPTT radio in Pittsburgh, 1360am: www.1360wptt.com/bowyer Focus on the Issueson Cornerstone Television Audio clips from these programs can be heard at www.jerrybowyer.com/audio.php 412.771.2282 phone 412.771.2363 faxjerrybowyer@home.com

Message 167 of 176

SeTrans Stakeholder Advisory Committee Meeting, January 14-15, 2002

Sender	jgallagher@epsa.org
Recipients	['l.nicolay@enron.com', 'sarah.novosel@enron.com']
File	steffes-j/inbox/164.

TO: Regulatory Affairs Committee Power Marketers Working Group Southeast Mediation Generators and Marketers Groups

FROM: Jim Steffes, Regulatory Affairs Committee Chair Bob Reilley, Power Marketers Working Group Chair Jack Cashin, Senior Mgr. of Policy

DATE: December 21, 2001

RE: SeTrans Stakeholder Advisory Committee Meeting, January 14-15, 2002 in Atlanta Conference Call on Tuesday, January 8, 2002 at 3:30 p.m. (EST) Call 1-800-937-6563 and ask for the Jack Cashin/EPSA call

SeTrans announced that they are going to convene a Stakeholder Advisory Committee Meeting on January 14th and 15th in Atlanta. EPSA is going to have a conference call to prepare for the stakeholder meeting and revisit the industry positions established during the Southeast Mediation on the SeTrans model and its recent addition of Entergy. Further

information regarding the meeting can be found at <http://www.setransgrid.com/stakeholder.htm>.

For your information, attached are EPSA's final comments on the SeTrans Supplemental Status report filed today.

A conference call to discuss the upcoming meeting and SeTrans/Southeast will be held on Tuesday, January 8th, at 3:30 p.m. (EST). To access the call, dial 1-800-937-6563. Ask for the Jack Cashin/EPSA Call.

If you have any questions, please call Jack Cashin, 202-628-8200 or email at jcashin@epsa.org.

- setransentergyprotest1221.doc

Message 168 of 176

FW: contact info

Sender	nancy.hetrick@enron.com
Recipients	['harry.kingerski@enron.com', 'd..steffes@enron.com']
File	steffes-j/credit_issues/10.

I spoke to Texas PUC staff and they have informed us that we should contact Martha Hinkle (contact details below) and she will work with Enron on exactly how things need to be handled and filed. We also need to address this for both Enron Energy Services and Enron Power Marketing Inc, because they are both registered REPs. They would also like to know how many customers we have signed up for January delivery, what customer classes they are in and they would like this information by service territory. Please let me know if there is anything I can do or if you have any questions. You can reach me by pager tomorrow and I will be in my office on Friday. Thanks.

Nancy A. Hetrick Enron Corp. Director, Government Affairs Phone: 712-366-3399 Pager: 888-912-1426

-----Original Message-----

From: "Corona, Connie" <Connie.Corona@puc.state.tx.us>@ENRON Sent: Wednesday, November 28, 2001 3:47 PM To: Hetrick, Nancy Cc: Hinkle, Martha Subject: contact info

Nancy, To memorialize our phone conversation, you indicated that you will have a better idea of a contact person for PUC staff following your 4 pm conference call. You expect to have contact info for both Enron Energy Services and Enron Power Marketing. Those people should followup with Martha Hinkle, Director of Financial Review here at the Commission. Her phone number is 512-936-7425 or e-mail to martha.hinkle@puc.state.tx.us.

Thanks.

Connie Corona Policy Development Division

connie.corona@puc.state.tx.us

Message 169 of 176

FW: Renewables

Sender	stacey.bolton@enron.com
Recipients	['michael.terraso@enron.com', 'richard.shapiro@enron.com', 'd..steffes@enron.com']
File	steffes-j/inbox/278.

Wanted to give you brief update (see below from Chris Calger) on the current value of renewables/strategy within wholesale and retail businesses. Both a West Desk and East Desk have been established. I am continuing to work closely with Elliot and Richard. On the retail side, we're putting together product descriptions for the originators to put before current and new customers. On the wholesale side, we're working with generators to list their RECs on EOL. Stacey Bolton Environmental Strategies Enron Corp 713-853-9916 direct 713-303-2632 cell stacey.bolton@enron.com

<mailto:stacey.bolton@enron.com>

-----Original Message-----

From: Mainzer, Elliot Sent: Thursday, November 15, 2001 11:23 AM To: Bolton, Stacey; Bruce, James; Bryson, Jesse; Page, Jonalan; Ring, Richard; Shields, Jeff; Thome, Jennifer Subject: FW: Renewables

-----Original Message-----

From: Calger, Christopher F. Sent: Thursday, November 15, 2001 9:06 AM To: Mainzer, Elliot Cc: Belden, Tim Subject: Renewables

Elliot,

I spoke with Rogers about the renewables function within EES Risk Management. It seems as though Richard Ring has a clear mandate to set up a book and cover the short positions in the East. It sounds like our EES position in the West is more manageable (slightly long). Rogers and I agreed that you and Richard should work together to the extent it makes sense, but there is no pressing need to try to re-org anything at this time - this can be addressed at year-end or Q1. In general, your objectives should be to try to transact through EES or with wholesale parties. Rogers is focused on covering his short position so I think there is an orig opportunity for you if you can procure tags that can be used in the East.

Tim or Elliot let me know if you want to discuss further.

Chris Calger 503-464-3735

Message 170 of 176

RE:	
Sender	chris.long@enron.com
Recipients	['pager.linda@enron.com', 'm..schmidt@enron.com', 'd..steffes@enron.com', 'sarah.novosel@enron.com']
File	steffes-j/deleted_items/426.

Enron was part of a consortium of energy trading companies known as the Energy Group (this included Goldman Sachs, Morgan Stanley, BP America, Enron, Koch Industries, Mobil Business, Phibro, and Sempra). The Energy Group was managed by Sullivan Cromwell in NY - contact is Ken Raisler at (212) 558-4675. We also worked with the International Swaps and Derivatives Association (ISDA). The Energy consortium and ISDA worked with Congress to bring legal certainty to the OTC derivatives market, including those transactions completed on a electronic trading facility, during the debate on the Commodities Futures Modernization Act (CFMA) which became law earlier this year. We were simply one of many parties that asked Congress to swiftly move to eliminate legal uncertainty over OTC derivative transactions and reduce the regulatory burden placed on sophisticated market participants.

In the end, bilateral trading facilities (like Enron) were exempted from the Commodity Exchange Act. However, Enron Online is not without any oversight. The CFTC retained antifraud and antimanipulation authority over transactions completed on Enron OnLine and the Department of Justice and FTC can review these facilities.

In the Spring, we answered questions from FERC about EnronOnLine and had several FERC staff to Houston to better understand the EnronOnline, but this could hardly be called lobbying.

You may want to take a look at the Q&A document produced by Lisa Yoho for more information.

Feel free to call me at home over the weekend. Cell is (202) 253-2524 or home (703) 721-2036.

-----Original Message-----

From: Steffes, James D. Sent: Friday, October 26, 2001 4:01 PM To: Long, Chris; Novosel, Sarah Subject:

What lobbying did Enron do last year with regard to EnronOnline and the Commodity Futures Modernization Act?

Message 171 of 176

FW: We'd like your opinion! DISCO of the Future Executive Survey

Sender	d..steffes@enron.com
Recipients	['j..noske@enron.com']
File	steffes-j/sent_items/840.

Please arrange on my schedule.

Jim

-----Original Message-----

From: "Jamey Gotch" <jgotch@wmonitor.com>@ENRON

[mailto:IMCEANOTES-+22Jamey+20Gotch+22+20+3Cjgotch+40wmonitor+2Ecom+3E+40ENRON@ENRON.com] Sent: Friday, August 24, 2001 2:50 PM To: james_d_steffes@enron.com Subject: We'd like your opinion! DISCO of the Future Executive Survey

Dear James:

Wattage Monitor has partnered with the Center for the Advancement of Energy Markets to provide the DISCO of the Future Executive Survey. We'd like your opinion!

As part of the survey launch, we're asking energy executives like you to complete the survey with us over the phone. Not only do we want your responses to the questions but we're hoping to have your feedback on the survey itself, too. You'll be assisting in the development of policy recommendations for the DISCO of the Future.

Please email (jgotch@wmonitor.com) or call (415-387-8841) me to schedule a time to participate in the survey. The following appointments are available:

Tuesday, August 28th (Pacific Standard Time): 9:00 - 9:45am 10:00 - 10:45am 11:00 - 11:45am 1:00 - 1:45pm 2:00 - 2:45pm

Wednesday, August 29th: 9:00 - 9:45am 10:00 - 10:45am 11:00 - 11:45am 1:00 - 1:45pm 2:00 - 2:45pm

Thursday, August 30th: 9:00 - 9:45am 10:00 - 10:45am 11:00 - 11:45am 1:00 - 1:45pm 2:00 - 2:45pm

Tuesday, September 4th: 9:00 - 9:45am 10:00 - 10:45am 11:00 - 11:45am 1:00 - 1:45pm 2:00 - 2:45pm

The survey is approximately 20 questions and is scheduled in 45 minute intervals to ensure we have time to review the questions with you and allow for any discussion that might arise. We will cover general topics like your existing business policies, activity and opinions of the DISCO of the Future.

If there is a time that fits your schedule better, please contact me and I'd be happy to make additional appointments. Please feel free to forward this email to any additional people you believe would be interested in participating as well.

Thank you for your help.

Regards,

Jamey Gotch

Jamey M. Gotch Marketing Manager

Wattage Monitor E: jgotch@wmonitor.com T: 415-387-8841 F: 415-387-8842<http://www.wattagemonitor.com>

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- Blank Bkgrd.gif

Message 172 of 176

RE: Anti-competitive Subgroup

Sender	d..steffes@enron.com
Recipients	['harry.kingerski@enron.com', 'janine.migden@enron.com']
File	steffes-j/sent_items/632.

But where in statue does the ICC have that as one of their issues?

Jim

-----Original Message-----

From: Migden, Janine Sent: Sunday, August 12, 2001 9:56 PM To: Steffes, James D.; Kingerski, Harry Subject: RE: Anti-competitive Subgroup

Marc is out til next wednesday or so with surgery. I already sent him an email to refocus. This is not what I had expected. I will talk to him next week when I get back. However, Jim on your point that the ICC doesn't care if we lose market share, the premise of the anticompetitive argument is that the increase threatens our existing market share and prevents us from competing for more market. That is the essence of the impact of an anticompetitive situation. This would be the result not only for us but for others as well.

-----Original Message-----

From: Steffes, James D. Sent: Sunday, August 12, 2001 6:21 PM To: Kingerski, Harry; Migden, Janine Subject: RE: Anti-competitive Subgroup

Janine --

Where does this stand? I just read the text and agree with Harry. Most importantly, the HHI may not be suitable given the high degree of regulation of ComEd service.

As important, I don't think the ICC cares too much about Enron losing market share. Not the best lead argument.

Let's talk.

Jim

-----Original Message-----

From: Kingerski, Harry Sent: Monday, August 06, 2001 12:12 PM To: Migden, Janine; Steffes, James D. Subject: FW: Anti-competitive Subgroup

Janine - this is getting insane. With all due respect to Marc, this has nothing to do with the issues at hand.

-----Original Message-----

From: Ulrich, Marc Sent: Monday, August 06, 2001 11:17 AM To: Migden, Janine; rspilky@newenergy.com; poconnor@newenergy.com; jhextell@newenergy.com; dfabrizius@kaztex.com; Christopher.townsend@pipperrudnick.com Cc: Sharfman, Guy; Surface, Jerald; Kendall, Heath; Kingerski, Harry; Boston, Roy Subject: Anti-competitive Subgroup

Here is a copy of my uncompleted 1st draft of my testimony. I will hopefully be finishing this week. << File: M-Ulrich Direct Testimony.doc >>

Also here is a proposed agenda for today's conference call at 3pm

<< File: Agenda ComEd 2001 DST Rate Case 08-06-01.doc >>

Call number and pass code are as follows.

Monday, August 6, 2001 from 3 p.m. - 4 p.m. CST. 800-991-9019. Passcode 7314194#.

Marc L. Ulrich 713-345-4784 (office) 877-720-7711 (pager)

Message 173 of 176

RE: We'd like your opinion! DISCO of the Future Executive Survey

Sender	d..steffes@enron.com
Recipients	['j..noske@enron.com']
File	steffes-j/sent_items/808.

I didn't calendar (or at least I don't remeber). When will this happen?

Jim

-----Original Message-----

From: Noske, Linda J. Sent: Monday, August 27, 2001 9:20 AM To: Steffes, James D. Subject: RE: We'd like your opinion! DISCO of the Future Executive Survey

I see you have already calendared, so I have RSVP's for you to Loreyna Garcia this a.m.

-----Original Message-----

From: Steffes, James D. Sent: Monday, August 27, 2001 7:25 AM To: Noske, Linda J. Subject: FW: We'd like your opinion! DISCO of the Future Executive Survey

Please arrange on my schedule.

Jim

-----Original Message-----

From: "Jamey Gotch" <jgotch@wmonitor.com>@ENRON
[mailto:IMCEANOTES-+22Jamey+20Gotch+22+20+3Cjgotch+40wmonitor+2Ecom+3E+40ENRON@ENRON.com] Sent:
Friday, August 24, 2001 2:50 PM To: james_d_steffes@enron.com Subject: We'd like your opinion! DISCO of the Future
Executive Survey

Dear James:

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Please email (jgotch@wmonitor.com << File: mailto:jgotch@wmonitor.com >>) or call (415-387-8841) me to schedule a time to participate in the survey. The following appointments are available:

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Tuesday, September 4th: 9:00 - 9:45am 10:00 - 10:45am 11:00 - 11:45am 1:00 - 1:45pm 2:00 - 2:45pm

The survey is approximately 20 questions and is scheduled in 45 minute intervals to ensure we have time to review the questions with you and allow for any discussion that might arise. We will cover general topics like your existing business policies, activity and opinions of the DISCO of the Future.

If there is a time that fits your schedule better, please contact me and I'd be happy to make additional appointments. Please feel free to forward this email to any additional people you believe would be interested in participating as well.

Thank you for your help.

Regards,

Jamey Gotch

Jamey M. Gotch Marketing Manager

Wattage Monitor E: jgotch@wmonitor.com T: 415-387-8841 F: 415-387-8842http://www.wattagemonitor.com << File: http://www.wattagemonitor.com/ >>

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Message 174 of 176

Jack in the Box

Sender	lamar.frazier@enron.com
Recipients	['d..steffes@enron.com']
File	steffes-j/inbox/294.

----- Forwarded by Lamar Frazier/HOU/EES on 11/16/2001 12:04 PM -----

Delivery Failure Report Your document: Jack in the Box was not delivered to: James D Steffes/HOU/EES@EES because: User James D Steffes/HOU/EES (James D Steffes/HOU/EES@EES) not listed in public Name & Address Book

What should you do? You can resend the undeliverable document to the recipients listed above by choosing the Resend button or the Resend command on the Actions menu. Once you have resent the document you may delete this Delivery Failure Report. If resending the document is not successful you will receive a new failure report Unless you receive other Delivery Failure Reports, the document was successfully delivered to all other recipients.

EESHOU-LN12/EES, EESHOU-LN12/EES

To: James D Steffes/HOU/EES@EES cc: From: Lamar Frazier/HOU/EES Date: 11/16/2001 12:02:42 PM Subject: Jack in the Box

----- Forwarded by Lamar Frazier/HOU/EES on 11/16/2001 12:02 PM -----

Enron Energy Services From: Michele Sorensen 11/06/2001 04:57 PM Phone No: 562 901 3807 Office 714 813-0742 Cell 888 578 8404 Pager

To: Andrew Wu/HOU/EES@EES, Mike D Smith/HOU/EES@EES cc: Lamar Frazier/HOU/EES@EES, Ian McAbeer/HOU/EES@EES Subject: Jack in the Box

Andy and Mike,

Jack in the Box is in the process of opening 14 new stores in CA. They have requested these stores be added to the Enron Agreement. Based on the recent information from the CPUC - can we add new facilities to the Jack in the Box contract?

Here's the CPUC language:

"We reaffirm that for the time being, and unless the Commission states otherwise in a subsequent decision, utilities are required to process DASRs relating to contracts or agreements that were executed on or before September 20th, 2001, including DASRs for service to new facilities or accounts if the underlying contract pursuant to which those DASRs are submitted allowed for the provision of that additional service. Thus, for example, with respect to the specific ESP contract described by UC/CSU in their rehearing application, the utilities are required to accept, even after September 20, 2001, any DASRs they receive that legitimately relate to that contract...[W]e want to make it clear that...utilities cannot set a

deadline after which they could refuse to process DASRs relating to contracts executed on or before September 20, 2001."

Here's the provision in the Jack in the Box contract:

ADDITIONAL FACILITIES At any time during the term of this Transaction, you may request that we add to this Transaction certain additional facilities owned and operated by you on mutually agreeable terms and conditions, including pricing. If the account(s) at such facility(ies) is/are eligible to receive "direct access service" and the Parties are able to agree to the terms and conditions for adding any such additional facility(ies), the Parties will execute an appropriate amendment to this Transaction effecting such addition.

Please advise. Thanks, Michele

Message 175 of 176

FW: E Source - Teleconferences on Retail Markets and Industry

Sender	d..steffes@enron.com
Recipients	['rita.hartfield@enron.com']
File	steffes-j/sent_items/414.

FYI.

Jim

-----Original Message-----

From: "Ransome, Renee" <rransome@ESOURCE.COM>@ENRON Sent: Tuesday, October 23, 2001 3:04 PM To: TELECON2@LISTSERV.FTENERGY.COM Subject: E Source - Teleconferences on Retail Markets and Industry Restructuring

[IMAGE]

E Source teleconferences on retail markets and industry restructuring Join us for two informative teleconferences designed to help you respond to highly volatile retail energy markets and shifting corporate imperatives. Please forward this e-mail to colleagues in other departments who might be interested in participating. Sign up by replying to this e-mail with the appropriate information completed below. "Creating a Vibrant Retail Electricity Market" Tuesday, October 30, 2001, at 10 am (MST), 12 noon (EST) What key findings have marketing practitioners and restructuring architects gleaned from retail energy markets that have opened to date? If currently closed markets are to open successfully, what critical elements must be in place? Which stumbling blocks need to be removed? E Source has convened a panel of experienced players to distill what can be learned from recently opened markets and offer advice for incorporating these lessons into your strategic and marketing planning. The panel will include: [IMAGE] Karen O'Neill, Vice President of New Markets, Green Mountain Energy [IMAGE] John Hanger, CEO of Penn Future and former Commissioner with the Pennsylvania Public Utility Commission [IMAGE] Joe Douglas, Marketing Manager with npower direct, one of the largest retail energy suppliers in the United Kingdom "Is it Possible to Restructure Retail Electric Markets?" Tuesday, November 6, 2001, at 10 am (MST), 12 Noon (EST) The catastrophic failure of California's restructuring efforts, coupled with extremely low switching rates in overseas and various U.S. state markets, raises anew the debate over whether it is even possible to restructure retail electric markets. Is there something fundamentally different about electric markets that render them impossible to open? Over the past quarter-century, numerous once-regulated industries, such as financial services, airlines, and telecommunications, have been successfully restructured. Why is electricity an outlier? Will it change? Two distinguished industry analysts, Ken Malloy, CEO of the Center for the Advancement of Energy Markets and publisher of the RED Index, and Dr. Mark Cooper, Director of Research for Consumer Federation of America, will debate two interrelated propositions: 1. All retail customers should be required to choose a new energy supplier. 2. Non-commodity products--such as demand-side management, distributed generation, green power, and combined heat and power--will penetrate faster and more deeply in open retail markets than they would under the continuation of traditional regulation. To Register Registration

fee is \$50 for each dial-in connection for companies that are not members of E Source. To register, contact our customer response team at 800-424-2908 or 720-548-5700. Or complete the form below and e-mail it to: custserv@ftenergy.com. To register via this e-mail, please hit the "reply" button in your e-mail program, and then type an "X" next to the title of the teleconference(s) you wish to attend. Yes, I'd like to register for the teleconferences selected below: ____ = ____ "How to Create a Vibrant Retail Energy Market" When: Tuesday, Oct. 30, 2001, at 10 am (Mountain), 12 noon (Eastern) ____ "Can Retail Electric Markets be Restructured?" When: Tuesday, Nov. 6, 2001, at 10 am (Mountain), 12 noon (Eastern) Name: Title: Company: Address: E-mail: Phone: Fax: Payment Information Credit Card Number: Expiration Date: Name on Card: Address, if different from above: Recordings Available If your schedule does not allow you to participate in these events, a compact disc recording of each teleconference will be available for purchase within one week of each event. Please contact our customer response team at 720-548-5700 for more information. If you wish to unsubscribe from this Platts promotion, click here and type UNSUBSCRIBE in the subject line, then send. [IMAGE] = 09 09

=20 09

Message 176 of 176

RE: E-Notes: Risk Considerations for Enron Counterparties:

Sender	d..steffes@enron.com
Recipients	['richard.shapiro@enron.com', 'sarah.novosel@enron.com']
File	steffes-j/sent_items/2214.

Agreed.

-----Original Message-----

From: Novosel, Sarah Sent: Friday, November 09, 2001 7:12 AM To: Shapiro, Richard; Robertson, Linda; Steffes, James D.; Nicolay, Christi L. Subject: FW: E-Notes: Risk Considerations for Enron Counterparties: Failure to Exercise Rights May Constitute Waiver

Here's one law firm we want to make sure we never use -- it's Baker and McKenzie, not Baker Botts. -----Original Message----- From: Fulton, Donna Sent: Thursday, November 08, 2001 9:47 PM To: Novosel, Sarah Subject: FW: E-Notes: Risk Considerations for Enron Counterparties: Failure to Exercise Rights May Constitute Waiver

Is this ambulance chasing? Oh how unbecoming and I do believe it's Baker, Botts??

-----Original Message-----

From: Zimmer, Michael J Sent: Wed 10/31/2001 3:21 PM To: Cc: Subject: E-Notes: Risk Considerations for Enron Counterparties: Failure to Exercise Rights May Constitute Waiver

<<...OLE_Obj...>> E-Notes provides regular briefings on new developments in global energy and public utility law. October 31, 2001 RISK CONSIDERATIONS FOR ENRON COUNTERPARTIES: FAILURE TO EXERCISE RIGHTS MAY CONSTITUTE WAIVER The reduction by Moody's Investor Service Inc. of Enron Corp.'s senior unsecured long-term debt to Baa2 from Baa1 this week may be an issue of concern for companies that are counterparts to Enron obligations. This downgrade may have immediate consequences under existing transactions with Enron given that its current credit rating is now two levels above non-investment grade. Any further downgrade into non-investment grade levels could seriously affect relationships between counterparties and Enron, and possibly Enron counterparties and their counterparties. Enron is the principal in nearly one-quarter of all electricity and natural gas trades in the United States. For Enron's power and gas trading counterparties, a credit event such as a downgrade by Moody's may precipitate certain obligations under the terms of their trading transactions. For example, any downgrade, not just a downgrade resulting in a sub-investment grade rating, may entitle a counterparty to require Enron to provide additional credit in support of Enron's purchase obligations. Counterparties should examine all power, gas or other commodity purchase and sale documentation to confirm whether they possess this right. The failure to exercise this right may constitute a waiver and foreclose access to critical performance and payment assurance, threatening to alter the risk assessment and mitigation considerations upon which the transactions were originally based. Furthermore, a failure to declare a credit event or default against Enron could cause a default on the part of the counterparty itself in collateral or

ancillary arrangements, such as its financing. The potential for a domino effect, causing defaults or credit events in a series of transactions, is considerable. It is uncertain whether Enron's efforts to obtain new lines of credit will be sufficient to overcome the current difficulties. Regardless, it is prudent to review the terms of existing transactions with Enron or its affiliates, including any guarantees or other forms of corporate credit support. It is also advisable to examine the terms of transactions dependent on, or otherwise ancillary to, transactions with Enron or its affiliates to avoid any consequential effects of the Enron credit ratings downgrade. For further information on how Enron's current financial situation could impact your firm's transaction risk profile, please contact Michael Zimmer at 202.452.7055 or michael.j.zimmer@bakernet.com, Jonathan W. Gottlieb at 202.452.7084 or jonathan.w.gottlieb@bakernet.com or Samir Desai at 202.452.7057 or samir.s.desai@bakernet.com. Michael J. Zimmer Jonathan W. Gottlieb Samir S. Desai

E-Notes is a publication of Baker & McKenzie. It does not constitute legal advice or a legal opinion on any specific facts or circumstances. The contents are intended as general information only. You are urged to consult your attorney concerning your situation and specific legal questions you may have. For further information on the subjects discussed in E-Notes, contact Michael J. Zimmer, <<mailto:michael.j.zimmer@bakernet.com>> or Jonathan W. Gottlieb, <<mailto:jonathan.w.gottlieb@bakernet.com>>. For more information about BAKER & MCKENZIE and our global energy and utility practice, click on our electronic business card: <<...OLE_Obj...>> or visit our website at <<http://www.bakerinfo.com/Practice Areas/nabfmp/energy/viewme.htm>>.
